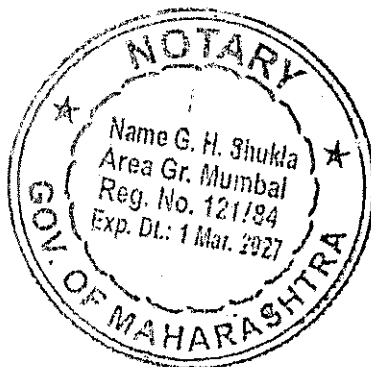


**BEFORE THE HON'BLE SOLE ARBITRATOR**  
**MR. NITIN N. SARDESSAI, SR. ADVOCATE**  
**AT PANAJI GOA**

IN THE MATTER OF :-

Mr. Vikarm Shah  
son of late Chinubhai Manilal Shah,  
aged 74 years, married,  
businessman, Indian National,  
resident of 28, Capri Building,  
9, Manav Mandir Road,  
Near Teen Batti Walkeshwar,  
Malabar Hill,  
Mumbai – Maharashtra,  
400 006.

...Claimant



**Versus**

1. Mr. Riva Trindade

Major of age, Resident of

Palbrika Mansion,

NIO Circle,

Dona Paula,

Tiswadi, Goa - 403004;

2. Mrs. Albertina Trindade

Major of age,

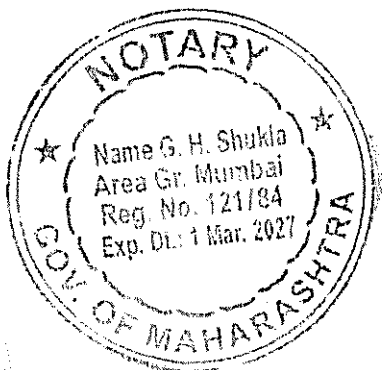
Resident of Palbrika Mansion,

NIO Circle, Dona Paula,

Tiswadi, Goa - 403004;

3. Mrs. Karita Trindade

Major of age,



Resident of Palbrika Mansion,  
NIO Circle, Doha Paula,  
Tiswadi, Goa - 403004;

4. Mr. Murilidhar Sadarangani  
Son of Shamdas Jetaram Sadarangani,  
Aged about 55 years,  
Resident of S-3, Eदन Hall,  
Dr. Annie Beasant Road,  
Worli, Mumbai - 400 018.

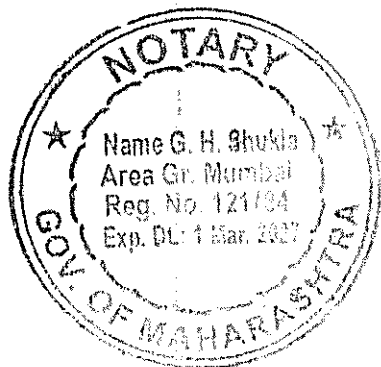
...Respondents

(all the above are registered addresses of the parties)

THIS HUMBLE CLAIM

STATEMENT OF THE CLAIMANT

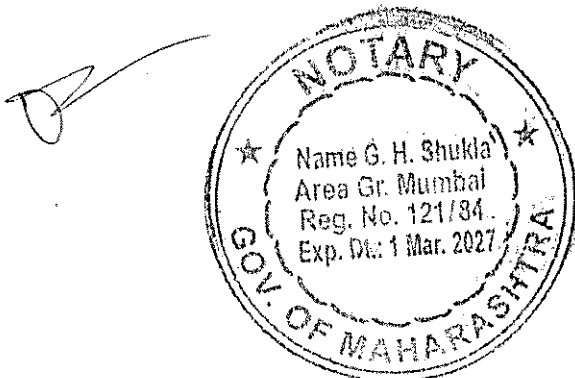
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**MAY IT PLEASE THE LD. ARBITRATOR**

The Claimant above named most respectfully states and submits as under:

1. The Claimant is constrained to file the present Claim against the Respondents before this Hon'ble Tribunal.
2. The addresses of the parties mentioned hereinabove are the registered addresses.
3. The Claimant states that the Claimant is a businessman and has interests in real estate projects as well.
4. The Respondent No.1 to 3 are the heirs of Late Mr. Pascoal Trindade, who was a business associate of the Claimant for more than 30 years. The Claimant and Late Mr. Pascoal

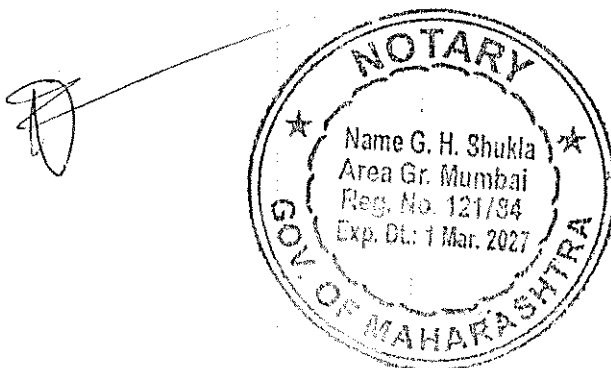


Trindade formed various commercial entities for various projects undertaken by them on mutual understanding. They have been in the construction and development business since 1990.

5. The Claimant states that the present Arbitration is pursuant to invocation of Arbitration Clause of Articles of Association dated 01/04/2013 entered into between the Claimant, the Mr. Pascoal Trindade(Pascoal) and the Respondent No.4 herein. Hereto annexed and marked as **Annexure A** is a copy of the Articles of Association dated 01/04/2013.

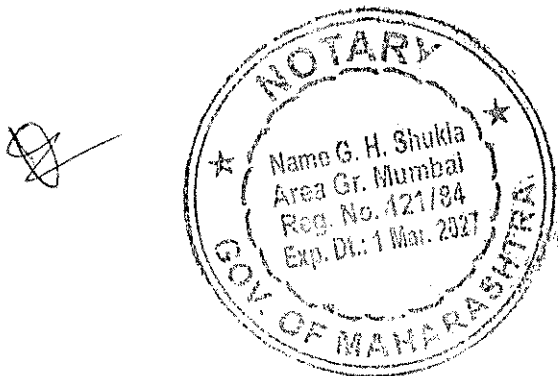
6. The Claimant states that brief facts necessary to decide the cause urged in the present Claim are as under:

a. The Claimant states that in the year 2006, one Mr. Tamba who had entered into agreement for sale with the original



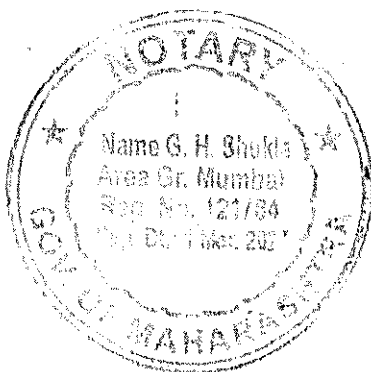
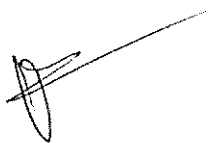
owner, through an acquaintance of the Claimant and Late Mr. Pascoal Trindade, Mr. Joao Dsouza (John) approached Late Mr. Pascoal Trindade(Pascoal) and the Claimant to purchase properties bearing Survey no.93/2, 93/3 and 93/4 of village Bambolim (hereinafter referred to as the said properties).

- b. The Claimant states that since the funding required to purchase the afore-referred properties was large Mr. Pascoal requested the Claimant to identify investors in Mumbai.
- c. The Claimant states that the Claimant identified M/s. Loonkar Developers Pvt. Ltd. and persuaded them to invest for the purchase of above referred properties and entered into an MOU accordingly. Hereto annexed and



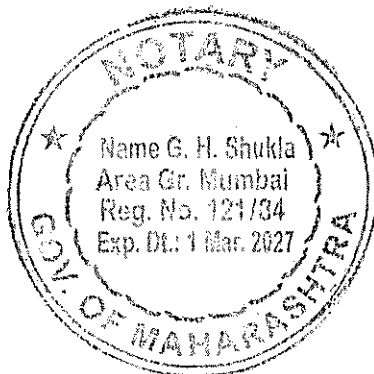
marked as Annexure B is a copy of the MOU dated 06/06/2006.

- d. The Claimant states that pursuant to the foregoing, and after negotiations positively concluded between the Mr. Tamba, Mr. Maximo Mergulhao, Mrs. Dionisia Dias E Mergulhao alias Mrs. Dionisia Dias, the consortium of Late Mr. Pascoal Trindade, Mr. Vikram Shah, the Claimant herein, M/s. Loonkar Developers Pvt. Ltd. approached the Vendors to execute the Sale Deed of the said properties in its favour.
- e. The Claimant states that the Land owners, insisted that the Sale Deed would only be executed in favour of a Goan and refused to execute the same in favour of the consortium. Accordingly, the consortium partners, agreed that the Sale deeds would be executed in the name of Mr.



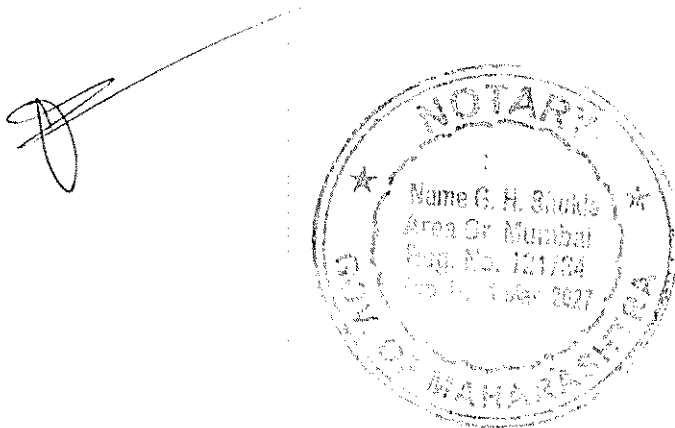
Pascoal Trindade who will at thereafter convey the same in favour of the other consortium members.

- f. The Consortium members, including the Claimant through its Company M/s. Pravar Trade Invest Pvt. Ltd, but with the exclusion of Mr. Pascoal Trindade, arranged the funding required to make the payments to the Land Owners and the Confirming Party, Mr. Tamba. Hereto annexed and marked as **Annexure C** is a copy of the Statement of Investment.
- g. The Claimant states that accordingly, vide Deeds of sale dated 25th April 2006 registered with the sub-registrar of Assurances at Ilhas, District of North Goa the original land owner, Mrs. Dionisia Dias E Mergulhao alias Mrs. Dionisia Dias sold, conveyed, transferred and assigned to Mr. Pascoal Trindade, (1) all that property being Survey

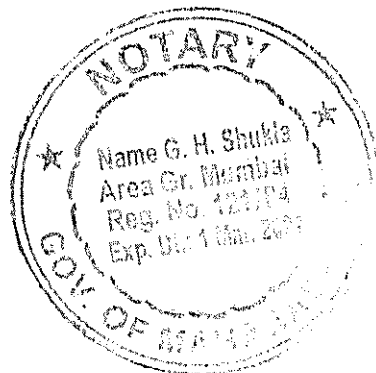


No. 93/2 situated at Bambolim, admeasuring about 35600 sq. mts, (2) all that property being Survey No. 93/3 situated at Bambolim, admeasuring about 26825 sq. mts. and (3) all that property bearing Survey No. 93/4 situated at Bambolim admeasuring about 35075 sq. mts. Hereto annexed and marked as **Annexure D Colly** are the copy of the Deed of Sale dated 25/04/2006.

- h. The Claimant states that pursuant to the above, the Claimant with the help and efforts of Consortium and other partners, various clearances as required for the purpose of development and construction on the said properties were obtained viz sanad, technical clearance from TCP, construction license environmental clearance etc. Hereto annexed and marked as **Annexure E Colly** are the copies of the Clearances as obtained.

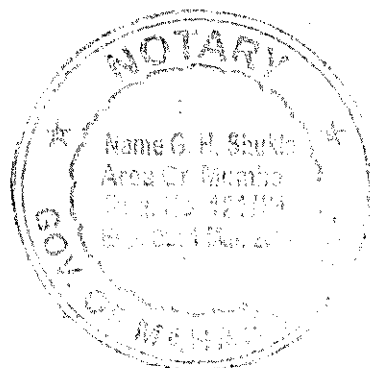
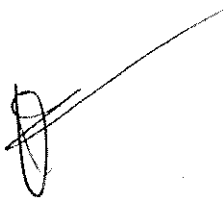


- i. The Claimant states that in 2009-2010, the components of the Comunidade of Bambolim initiated litigations against the said properties, which were successfully defended before the Hon'ble High Court and the Hon'ble Supreme Court of India by the Claimant and its consortium partners.
- j. The Claimant states that, owing to the delay occasioned in developing the said properties, due to litigations, M/s. Loonkar Developers Pvt. Ltd. opted to withdraw itself from the project and demanded the refund of the investment made by them and owing to the fact that the funds needed to be repaid, the investment was unavailable, accordingly, vide Agreement of Sale dated 12.11.2012 executed with Loonkar Developers Pvt. Ltd., it was agreed the property bearing Survey No. 93/2 of Village Bambolim would be conveyed to Loonkar



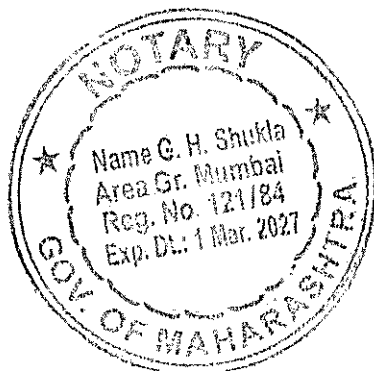
Developers Pvt. Ltd., as an adjustment of their investment to the tune of Rs.2.10 crores out of the total investment made by it and vide Deed of Sale dated 14.07.2014, the said portion was conveyed to Loonkar Developers Pvt. Ltd. Hereto annexed and marked as **Annexure F** is a copy of the Deed of Sale 14.07.2014.

- k. The Claimant states that pursuant to the foregoing, the Claimant, Mr. Pascoal Trindade and Mr. Murali Sadarangi entered into M/s PVM Associates, vide Article of Association dated 01/04/2013 (AOA) in respect of the said properties i.e. Survey Nos. 93/3 and 93/4 of Village Bambolim.
- l. The Claimant states that a bare perusal of the Article of Association dated 01/04/2013, clearly brings out that the Claimant and Mr. Murali Sadarangi have advanced sums



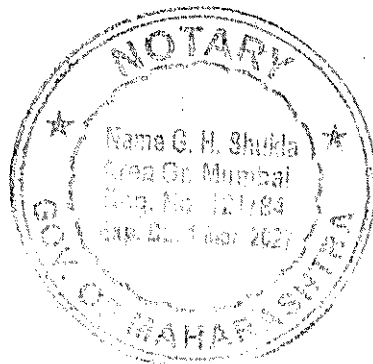
of Rs.71,00,000/- and Rs.68,50,000/- respectively, to Mr. Pascoal Trindade from time to time for the purpose of obtaining various clearances / sanctions / Nocs / license and payment towards Legal and professional charges with respect to the development to be undertaken on the said properties.

m. The Claimant states that the AOA dated 01/04/2013 also categorically records therein that Mr. Trindade, by way of his share of contribution to the Association thereby brought and introduced into the Association the said properties valued at Rs. 3,09,50,000/- and accordingly recorded in the books of account of the Association. The members agreed that the capital account of Mr. Trindade, shall be credited amount of Rs.1,23,01,250/- and the balance amount of Rs.1,86,48,750/- was credited to the current account of Mr. Trindade. The said properties



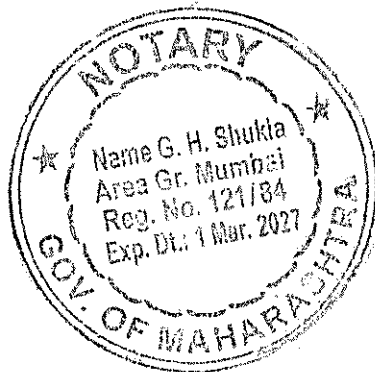
having been introduced into the Association ceased to remain properties of Mr. Trindade and were now properties of the Association and Trindade would hold the same for and on behalf of the Association.

- n. The Claimant states that in or around 2012, Mr. Ram Daryanani of M/s. Kuval Projects Pvt. Ltd. was in look out for a business proposal, i.e. construction project in the vicinity, of the Village Bambolim approached the other members of the Association through Late Pascoal Trindade who showed the property, i.e. survey No. 93/3 to them and after due discussion and negotiations along with Late Mr. Pascoal Trindade and the other members of the AOA i.e., the Claimant and the Respondent No.4, the proposal was approved to enter into joint venture development with M/s. Kuval Projects Pvt. Ltd. through its Director Mt. Ram Daryanani to develop the property.



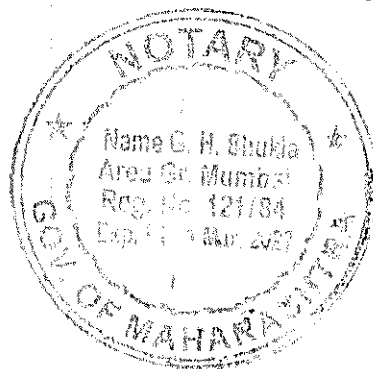
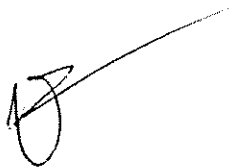
Accordingly, Joint Venture Agreement (JVA) dated 25th April 2014 was executed between the PVM Associates and Kuval Projects Pvt. Ltd. Hereto annexed and marked as **Annexure G** is a copy of the JVA dated 25/04/20214.

- o. The Claimant states that M/s. Kuval Projects Pvt. Ltd., paid an amount of Rs.2,21,00,000/- (Rupees Two Crores Twenty One Lakhs Only) to PVM Associates as provided in the said JVA as and by way of non-interest bearing refundable deposit.
- p. The Claimant states that after certain modifications in the plans and upon obtaining approval from the concerned authorities, the construction on the said property commenced in the later part of the year 2015 and continued till 2020 by which time 80% of the construction was completed.



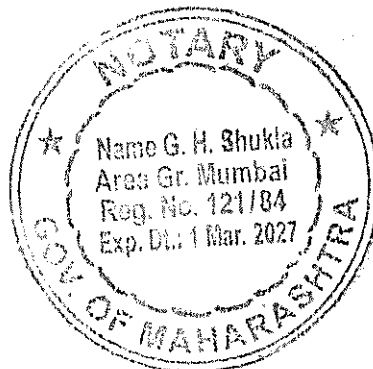
q. The Claimant states that all the construction activities on the said property and on the property bearing survey no. 93/2 sold to M/s. Loonkar Developers Pvt. Ltd. had to be abandoned due to an "injunction order" dated 13/03/2020 issued by Hon'ble Civil Court at Panaji, Goa in the Declaration Suit No.52/2013/A dated 04/11/2013 filed by the Comunidade of Bambolim against Late Mr. Pascoal Trindade and Mrs. Albertina Trindade being Defendant Nos. 1 and 2 in the said suit as their names were only reflected as owners in the revenue record. Hereto annexed and marked as **Annexure H** is a copy of the Order dated 13/03/2020.

r. The Claimant states that in accordance with the Agreement dated 25th April 2014, it was the responsibility of Late Mr. Pascoal Trindade and the Claimant to resolve any interferences/dispute by the



Villagers in respect of the said properties at their own cost.

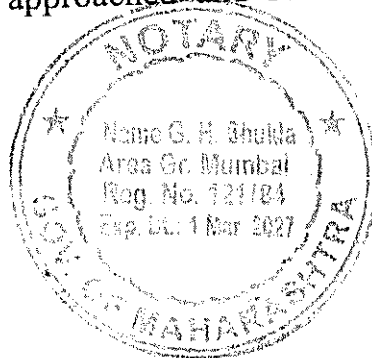
- s. The Claimant states that Mr. Ram Daryanani, had contacted Late Pascoal Trindade several times to expedite the process of settling the litigation to enable the continuation of the stalled development activities.
- t. The Claimant states that upon and after great persuasion the Claimant, the Late Mr. Pascoal Trindade agreed to settle the disputes raised by Comunidade of Bambolim amicably and requested the Claimant to negotiate the settlement terms with the Comunidade of Bambolim which terms were finally and mutually agreed by the parties concerned and accordingly a consent term draft was prepared and both the parties in the said suit viz. Comunidade of Bambolim and Late pascoal Mr.



Trindade along with his wife Mrs. Albertina Trindade put their signatures of approval on the same.

u. The Claimant states that prior to the demise of Mr Pascoal Trindade, he had forwarded the draft of approved consent terms to the Claimant. However due to intervening Covid pandemic and due to the untimely demise of Mr Pascoal Trindade, the same could not be pursued further viz. obtaining various approvals from the Administrator of Comunidade, Tribunal of Comunidade and Revenue Department Govt. of Goa. The consent terms remained to be filed before the Hon'ble Court.

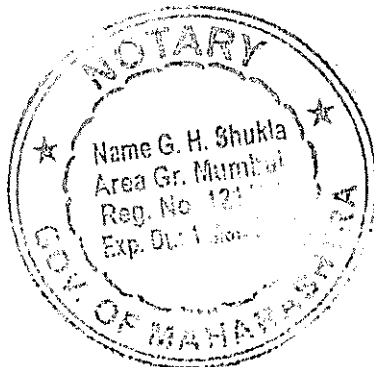
v. The Claimant states that after untimely demise of Late Mr. Pascoal Trindade, the Claimant and the Respondent No.4 approached and solicited the co-operation of the



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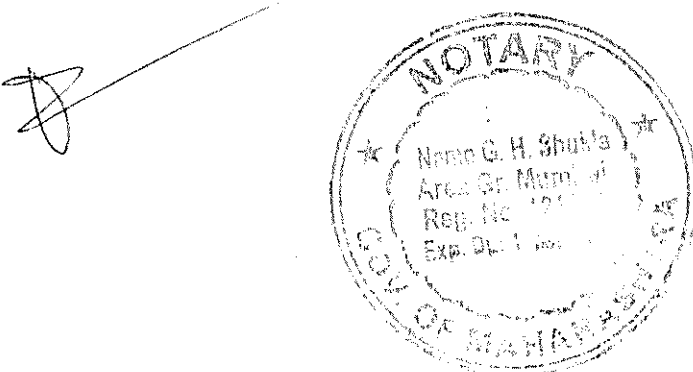
Respondent Nos. 1 to 3 as legal representatives of Late Mr. Pascoal Trindade in order to defend the said suit, filling of consent terms. The other stake holders viz. M/s. Kuval projects pvt. Ltd. and M/s. Loonkar Developers Pvt Ltd. also vide their notices dated 22/02/2023 and 29/10 /2022 solicited the support and co-operation of the Respondent Nos. 1 to 3 in lieu of their huge investments in the said properties. Hereto annexed and marked as **Annexure I** Colly are the copies of the Notices dated 22/02/2023 and 29/10/2022.

- w. The Claimant states that the Respondent Nos. 1 to 3 however, without assigning any reasons whatsoever, despite being the legal heirs and representatives of Late Pascoal Trindade and in spite of repeated requests and pleas by all the concerned parties, the Respondent Nos. 1 to 3 have neither responded nor come forward to co-



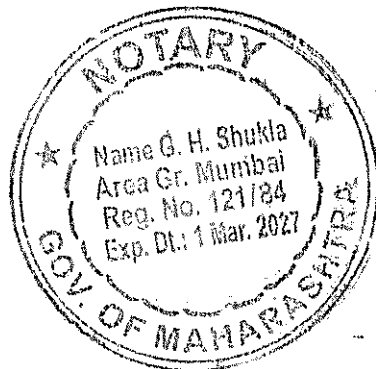
operate to either attend or pursue the proceedings pending before the Hon'ble Court nor to sign documents required by intending purchaser.

- x. The Claimant states that pursuant to the demise of Mr. Pascoal Trindade, the Respondent No.1 and 2 have been arrayed as parties to the Civil Suit as his legal representatives and heirs.
- y. The Claimant states that in October 2020, the Claimant, with the knowledge and consent of the stake holders approached the comunidade of Bambolim seeking an amicable settlement of all the litigations and finalised the draft consent terms and accordingly, vide Letter dated 20/11/2020 addressed by Late Pascoal Trindade and his wife, to the Managing committee of the Comunidade of Bambolim, a proposal of Settlement was offered in order



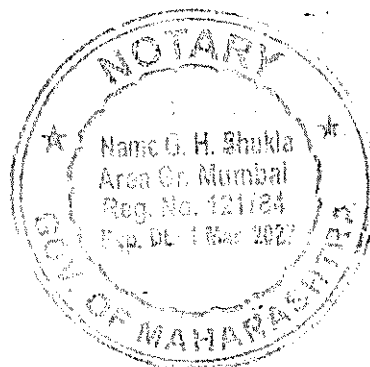
to compromise all pending litigation and disputes with the Comunidade of Bambolim, the Respondent No.1 has admitted this fact in his deposition before the Hon'ble Civil Court as well. Hereto annexed and marked as **Annexure J** is a copy of the Deposition.

- z. The Claimant states that on the basis of the representation made by the Claimant and Late Mr. Trindade, Loonkar developers Pvt. Ltd. earmarked an area of 5,000 sq. mts. for allotment to the Comunidade of Bambolim for the construction of certain facilities to be used as a recreational and welfare centre for the villagers on mutually agreed terms by and between Loonkar Developers and PVM associates.

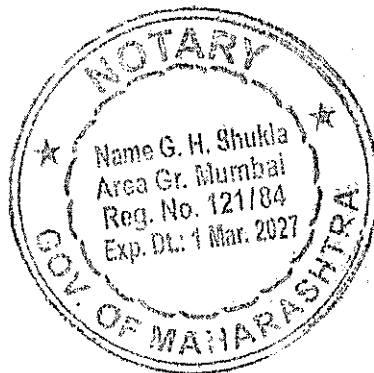


aa. The Claimant states that vide Letter dated 27/11/2020, addressed by the Legal Representative of the Comunidade of Bambolim certain clarifications were sought in respect of the terms of settlement and the Comunidade had informally accepted the same. Hereto annexed and marked as **Annexure K** is a copy of the letter dated 27/11/2020.

bb. The Claimant states that in response to the letter dated 27/11/2020, the Claimant vide its legal representative addressed a communication dated 02/12/2020 and provided the clarification sought for by the comunidade specifically stating on instructions that Late Mr. Pascoal Trindade and Mrs. Albertina Trindade were ready and willing to execute the consent terms based on the settlement offered. Hereto annexed and marked as **Annexure L** is a copy of the Letter dated 02/12/2020.



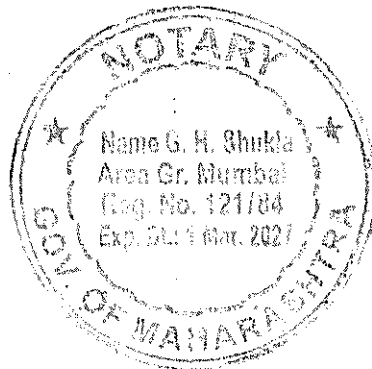
cc. The Claimant states that as the terms of settlement with the Comunidade of Bambolim involves financial implications Late Mr. Pascoal Trindade and the other members of PVM Associates had mutually agreed to sell the property bearing survey no.93/4 to intending purchaser as identified by Late Mr. Pascoal Trindade, to generate the funding required to meet the commitments made vide the consent terms viz payment to Comunidade of Bambolim, payment to M/s. Loonkar Developers Pvt. Ltd for and towards their allotment of part of their property and towards the construction cost of the football ground/welfare centre at the time of execution of consent terms and accordingly all the members of the consortium, were taken into confidence and their consent was taken in respect of the execution of Consent Terms and the allotment of the areas as required by the Comunidade



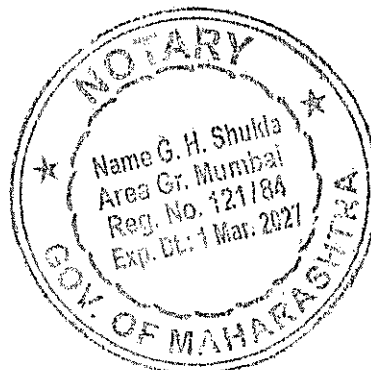
of Bambolim at a very reasonable valuation. This clearly constituted a binding concluded Agreement which would now bind the Respondent Nos. 1 to 3 as well.

dd. The Claimant states that in pursuance of the foregoing, the draft of the consent terms were also forwarded for approval through the Administrative Tribunal and to the Revenue Department, Government of Goa.

ee. The Claimant states that owing to the ill health of Late Pascoal Trindade in the later part of the year 2021, and thereafter his untimely demise, the entire process of obtaining the approvals as required by the Comunidade of Bambolim for the filling of the consent terms in suit bearing no.52/2013A were stalled.

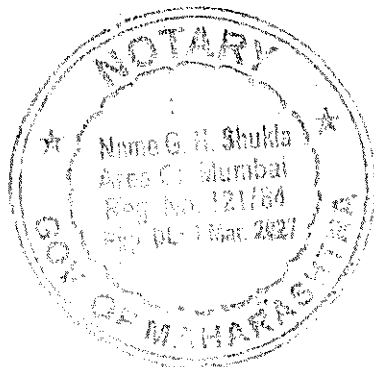
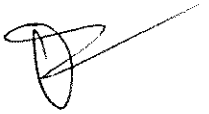


7. The Claimant states that the factual matrix enumerated hereinabove clearly brings out that despite the Late Pascoal Trindade having addressed various communications to the Comunidade of Bambolim and to other authorities, which has been admitted by the Respondent No.1 in his deposition, the Respondent Nos. 1 to 3 have failed and neglected to come forth and render and co-operation for the closure of the proceedings and/or to execute the necessary documentation with respect to the same, which has resulted in the delay of the project and has jeopardised the investment made by the Claimant in the purchase and development of the said properties.
8. The Claimant states that since no one is representing the interest of Late Pascoal Trindade in the Special Civil Suit No. 52/2013/A pending before the Civil Judge Senior Division at Panaji, there is likelihood of an adverse Order being passed affecting the interest of the Claimant and also of that of M/s.



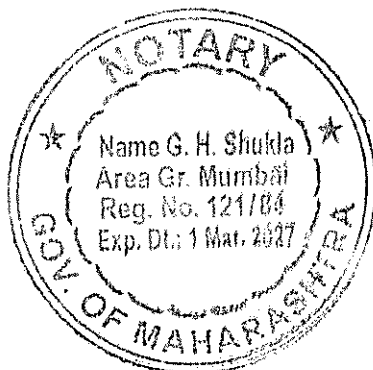
Loonkar Developers Pvt. Ltd and M/s. Kuval Projects Pvt. Ltd. hereto annexed and marked as **Annexure M Colly** are the Roznamas of Special Civil Suit No. 52/2013/A.

9. The Claimant states that the Respondent Nos. 1 to 3 have also failed to defend the interest of the Claimant and the Respondent No.4 in proceedings CRVA/43/2019 and case No. CRVA/3/2020 initiated by Comunidade of Bambolim against the development permissions in the properties bearing Survey No. 93/2 and 93/4 of village Bambolim, and solely owing to the default on the part of the Respondent Nos. 1 to 3, the Hon'ble District Court vide order dated 30/10/2023 has been pleased to set aside the order dated 28/11/2019 passed by the Director of Panchayats, Panaji, Goa thereby occasioning huge loss of Rs. 20,00,00,000/- (Rupees Twenty Crores) to PVM associates and further losses to M/s. Kuval Projects Pvt. Ltd who was given the development rights in respect of the said properties and is

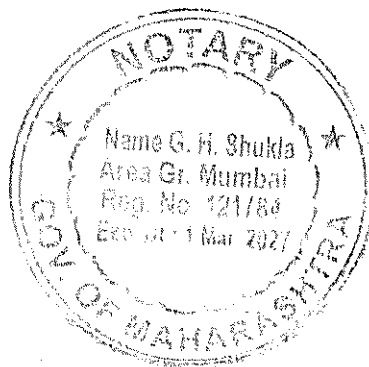
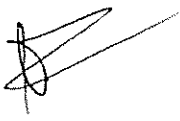


bound to initiate proceedings against for the recovery of the losses occasioned to them.

10. The Claimant states that the Respondent Nos. 1 to 3 have also failed to defend the Civil Revision Application No.41/2018 instituted before the Hon'ble High Court of Bombay at Goa against Order dated 23/10/2018 passed by the Civil Judge Senior Division in Case No.CRA/2/2016/B directing the holding of an enquiry in respect of the consent terms arrived in Case No.SCS/222/1994, which consent terms are the basis of the title to the said properties. The Hon'ble High Court owing to the non-appearance of the Respondent Nos. 1 and 3 has been pleased to dismiss the same as abated as the Respondent Nos. 1 to 3 have failed to co-operate and get impleaded as the legal heirs of Late Pascoal Trindade. Hereto annexed and marked as **Annexure N** is a copy of the Order dated 15/07/2023.

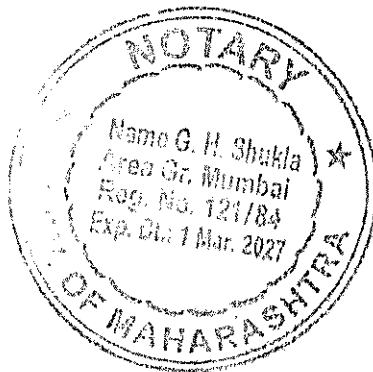


11. The Claimant states that it is evident that the Respondent Nos. 1 to 3 are solely responsible for the losses incurred by the Claimant and the Respondent No.4 and for not defending the interest of PVM associates. Hereto annexed and marked as Annexure O Colly are copies of the Balance Sheets of PVM Associates.
12. The Claimant states that the Claimant is entitled to an Order directing the Respondent Nos. 1 to 3 to pay to the Claimant, the sum of Rs.20,00,00,000 towards losses incurred by the Claimant.
13. The Claimant is also entitled to an Order from this Hon'ble Tribunal directing the appointment of a Valuer as decided by this Tribunal to determine the Value of the said Properties and Assess the losses incurred by the Claimant.



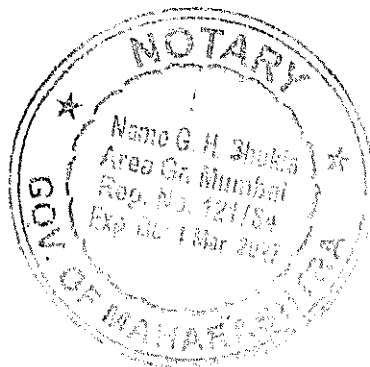
14. The Claimant is also entitled to an Order from this Hon'ble Tribunal directing the appointment of a Court Commissioner to partition the property by metes and bounds in terms of the agreed ratios found in the AOA and thereafter deduct the losses incurred by the Claimant from the capital account of the Respondent Nos. 1 to 3 and reduce the same accordingly and also adjusting the profit/loss to the Claimant commensurately.

15. The Claimant states that the Claimant is entitled to an Order directing the Respondent Nos. 1 to 3 to pay to the Claimant, the sum of Rs.100,00,00,000 towards damages, loss of opportunity to do business, loss of reputation, loss of mental peace and harassment, and towards future losses to be incurred by the Claimant.



16. The Claimant states that the Claimant is entitled to an Order pending hearing and final disposal of the present proceedings directing the Respondent Nos. 1 to 3 to deposit a sum of Rs.50 crores as tentative value of the share of the claimant the said properties before this Hon'ble Court.

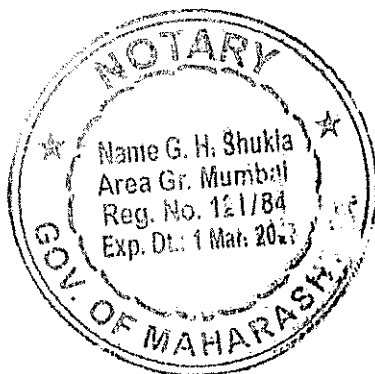
17. Pending hearing and final disposal of the present Claim, the Claimant is entitled to an Order appointing the Claimant as a Receiver in respect of the said properties and removing the said properties from the custody of the Respondent Nos. 1 to 3 and committing the same to the custody and management of the Claimant and conferment upon the claimant all powers as to bringing, defending and settlement of suits and for the realisation, management, protection, preservation and improvement of the said properties, and the execution of documents as the owner himself has, or such of those powers as this Hon'ble Tribunal thinks fit.



18. Pending the hearing and final disposal of the present Claim, the Claimant is entitled to an Order directing the Respondent Nos. 1 to 3 to deposit before this Hon'ble Tribunal or into an account as directed by this Hon'ble Tribunal an amount of Rs.20 Crores or such further amounts as directed by this Tribunal or to file an Affidavit of their movable and immovable assets before this Hon'ble Tribunal which can be attached by this Hon'ble Tribunal to secure the claim of the Claimant in the present proceedings.

19. Pending the hearing and final disposal of the present Claim, the Claimant is entitled to an Order from this Hon'ble Court attaching the said properties on such terms and conditions as this Hon'ble Tribunal deems fit and proper.

20. The present claim is within limitation.



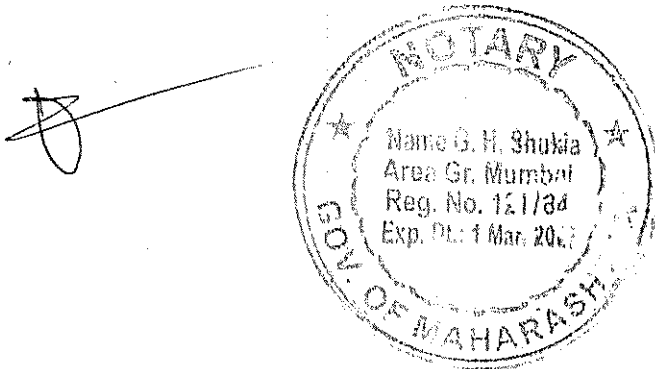
21.The Claimant has not instituted any other proceedings for recovery of the sums as claimed in the present Statement of Claim.

22.This Hon'ble Tribunal has the requisite jurisdiction to decide all disputes arising out of the present reference.

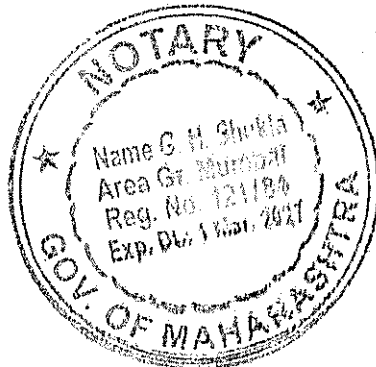
#### PRAYER

23.It is therefore prayed that:-

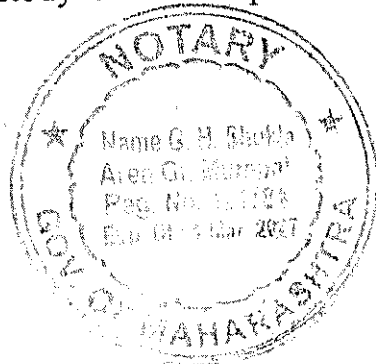
- a. This Hon'ble Tribunal be pleased to pass a judgment, order and decree directing the Respondent Nos. 1 to 3 to pay to the Claimant, the sum of Rs.20,00,00,000 towards losses incurred by the Claimant;



- b. This Hon'ble Tribunal be pleased to pass a judgment, order and decree directing the appointment of a Valuer as decided by this Tribunal to determine the Value of the said Properties and Assess the losses incurred by the Claimant;
- c. This Hon'ble Tribunal be pleased to pass a judgment, order and decree directing the appointment of a Court Commissioner to partition the property by metes and bounds in terms of the agreed ratios found in the AOA and thereafter deduct the losses incurred by the Claimant from the capital account of the Respondent Nos. 1 to 3 and reduce the same accordingly and also adjusting the profit/loss to the Claimant commensurately;

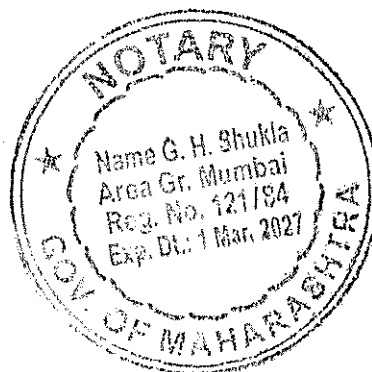
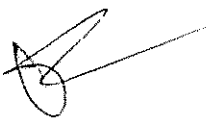


- d. This Hon'ble Tribunal be pleased to pass a judgment, order and decree directing the Respondent Nos. 1 to 3 to pay to the Claimant, the sum of Rs.100,00,00,000 towards damages, loss of opportunity to do business, loss of reputation, loss of mental peace and harassment, and towards future losses to be incurred by the Claimant;
- e. This Hon'ble Tribunal be pleased to, pending hearing and final disposal of the present proceedings, direct the Respondent Nos. 1 to 3 to deposit a sum of Rs.50 crores as tentative value of the share of the claimant the said properties before this Hon'ble Court;
- f. This Hon'ble Tribunal be pleased to pass an Order appointing the Claimant as a Receiver in respect of the said properties and removing the said properties from the custody of the Respondent Nos. 1 to 3 and committing



the same to the custody and management of the Claimant and conferment upon the claimant all powers as to bringing, defending and settlement of suits and for the realisation, management, protection, preservation and improvement of the said properties, and the execution of documents as the owner himself has, or such of those powers as this Hon'ble Tribunal thinks fit;

- g. This Hon'ble Tribunal be pleased to, pending the hearing and final disposal of the present Claim, directing the Respondent Nos. 1 to 3 to deposit before this Hon'ble Tribunal or into an account as directed by this Hon'ble Tribunal an amount of Rs.20 Crores or such further amounts as directed by this Tribunal or to file an Affidavit of their movable and immovable assets before this Hon'ble Tribunal which can be attached by this



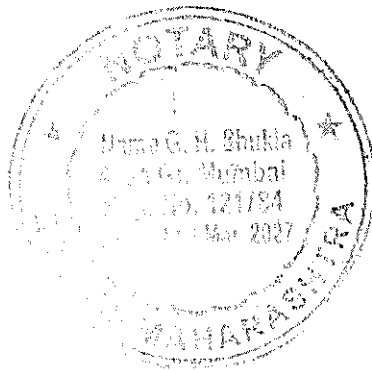
Hon'ble Tribunal to secure the claim of the Claimant in the present proceedings;

- h. This Hon'ble Tribunal be pleased to, pending the hearing and final disposal of the present Claim, by way of an of Order of Attachment secure the said properties against alienation or creation of any third party rights on such terms and conditions as this Hon'ble Tribunal deems fit and proper;
- i. Ad interim reliefs in terms of prayer clauses 'e', 'f', 'g' and 'h';
- j. Any other order or relief in the circumstances of the case.



Panaji – Goa

22.01.2025





VIKRAM C. SHAH

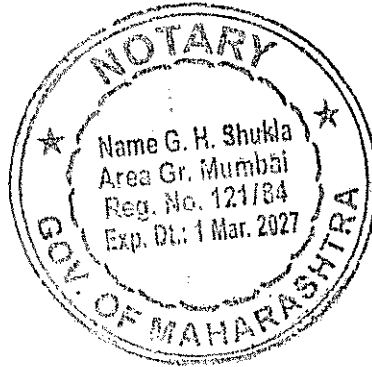
CLAIMANT

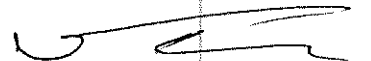
VERIFICATION

I, Vikram Shah, son of Chinubhai Shah, aged 74 years, Indian national and resident of 28, Capri, Manav Mandir Road, Walkeshwar, Mumbai, the Applicant herein, do hereby on solemn oath verify the contents of the foregoing paragraphs 1 to 11, 12 part, 13 part, 14 part, 15 part, 16 part, 17 part, 18 part, 19 part and 20 part of the present Application to be true and correct to my knowledge as well as on the basis of the record available with me, whereas the contents of paragraphs 12 part, 13 part, 14 part, 15 part, 16 part, 17 part, 18 part, 19 part and 20 part is based on legal advice which I believe to be true.

Solemnly verified at Mumbai on this 22<sup>nd</sup> day of January, 2025.

Before me:-

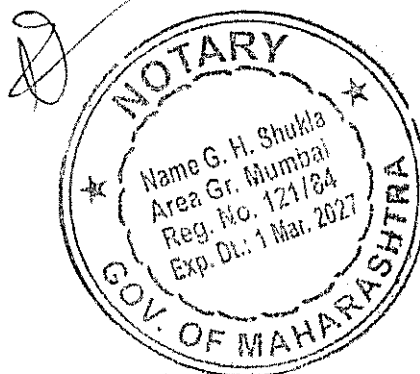


  
DEPONENT

AFFIDAVIT

I, Vikram Shah, son of Chinubhai Shah, aged 74 years, Indian national and resident of 28, Capri, Manav Mandir Road, Walkeshwar, Mumbai, the Applicant herein, do hereby on solemn oath state as under:-

1. I say that I have read and understood the contents of the accompanying Statement of Claim and accordingly affirm the contents of the foregoing paragraphs 1 to 11, 12 part, 13 part, 14 part, 15 part, 16 part, 17 part, 18 part, 19 part and 20 part of the present Application to be true and correct to my knowledge as well as on the basis of the record available with me, whereas the contents of paragraphs 12 part, 13 part, 14 part, 15 part, 16 part, 17 part, 18 part, 19 part and 20 part is based on legal advice which I believe to be true.

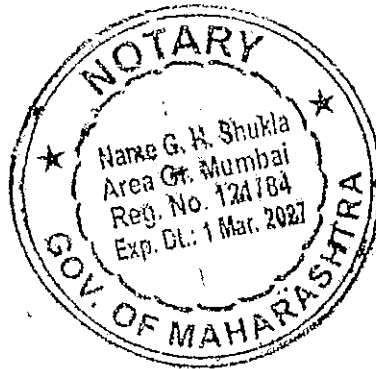




2. I say that the foregoing paragraph is true and correct.

Solemnly affirmed at Mumbai on this 22<sup>nd</sup> day of January, 2025.

Before me:-



DEPONENT

**BEFORE ME**

G. H. SHUKLA  
NOTARY GREATER MUMBAI  
Jagdamba Bhavan, Ground Floor,  
Ganpatrao Kadam Marg, Lower P  
MUMBAI - 400 013

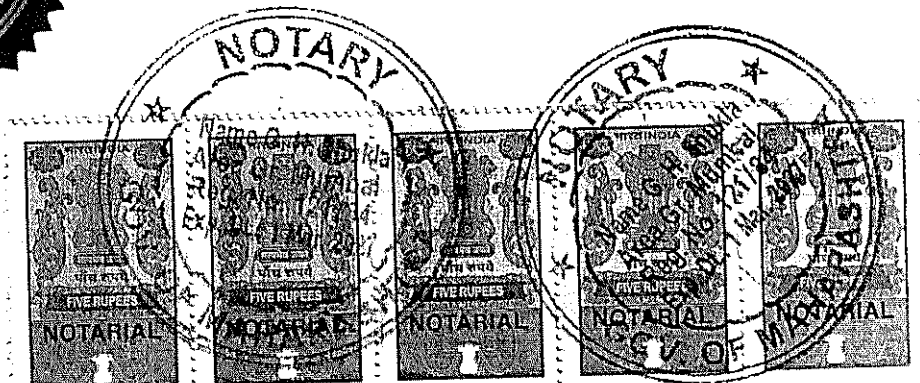
22 JAN 2025



**NOTED & REGISTERED**

Sr. No. 74633 Page No. 19

Book No. 30 Date 22 JAN



भारतीय नगर न्यायिक

पचास  
रुपये

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Rs. 50

INDIA NON JUDICIAL

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332919



ARTICLES OF ASSOCIATION

THESE ARTICLES OF ASSOCIATION made this 1st day of April in  
the year Two Thousand Thirteen



MR. VIKRAM SHAH, son of Chinubhai Shah aged about 53 years, Indian Inhabitant residing at 28, Capri, Manav-Mandir Road, Walkeshwar, Mumbai, 400066 hereinafter referred to as the Party of the SECOND PART (which expression shall unless repugnant to the context or meaning thereof, mean and include his legal heirs, executors and administrators);

MR. MURLIDHAR SADARANGANI, son of Shamdas Jatarani Sadarangani aged about 54 Years, Indian Inhabitant residing at S-3, Eran Hall, Dr. Konde Desant Road, Worli, Mumbai - 400018, hereinafter referred to as the Party of the THIRD PART (which expression shall unless repugnant to the context or meaning thereof, mean and include his legal heirs, executors and administrators);

WHEREAS by the Deed of Sale dated 25<sup>th</sup> April 2006 registered with the Sub- Registrar of Assurances at Ilhas, District of North Goa under serial no. 1170 dated 02.05.2006 made by and between MRS. DIONISIA DIAS E MERGULHAO alias MRS. DIONISIA DIAS therein referred to as the Vendor of the One part and MR. PASCOAL TRINDADE the Party of the First Part herein, therein referred to as the Purchaser of the Second Part, the Vendor therein conveyed and transferred unto the Purchaser therein (the party of the First part herein) all that piece and parcel of land bearing S. no. 93/1 situated at CAMBOLIM known as "BAILEM FORDIEM", "SAVELI GALT" or "GITOR" admeasuring about 26825 Sq. mtrs. within the limits of the Village Panchayat, Curca, Cambolim and Talaulim, Taluka Tiswadi, Registration sub-Districts of Ilhas, District of North Goa, more particularly described in the Schedule 1 hereunder written (for sake of brevity hereinafter referred to as "Schedule 1 Property") at or for the consideration therein paid by the Purchaser therein to the Vendor therein;

WHEREAS by the Deed of Sale dated 25<sup>th</sup> April 2006 registered with the Sub- Registrar of Assurances at Ilhas, District of North Goa under serial no. 1170 dated 2-5-2006 made by and between MRS. DIONISIA DIAS E MERGULHAO alias MRS. DIONISIA DIAS therein referred to as the Vendor of the One part and MR. PASCOAL TRINDADE the Party of the First Part herein, therein referred to as the Purchaser of the Second Part, the Vendor therein conveyed and transferred unto the Purchaser therein (the

party of the First part hereto) all that piece and parcel of land bearing S. no. 93/4 situated at BAMBOLIM known as "BAILEM FONDIEM", "SAVELI GALI" or "OHOR" admeasuring about 35075 Sq. mtrs. within the limits of the Village Panchayat Curca, Bambolim and Talaulim, Taluka Tiswadi, Registration sub-Districts of Ilhas, District of North Goa, more particularly described in the Schedule II hereunder written (for sake of brevity, hereinafter referred to as "Schedule II Property") at or for the consideration therein paid by the Purchaser therein to the Vendor therein

(For the sake of brevity, the properties described in the Schedule I and the Schedule II written hereunder are hereinafter collectively referred to as the "said Properties")

WHEREAS the Parties of the Second Part and Third Part approached the Party of the First Part with a proposal to develop the said Properties by pooling in their resources together;

WHEREAS the parties hereto felt that if their resources are pooled together, they can be put to greater common advantage and accordingly party of the Second & Third part advanced a sum of Rs.71,00,000/- and Rs.68,50,000/- respectively to the party of the First part from time to time for the purpose of obtaining various clearances / sanctions / NOCs / license and payment towards legal and professional charges.

WHEREAS the parties hereto, after mutual discussions have agreed to associate together to form an Association of persons with a view to earn income from development and or sale of the Schedule - I and II properties and that they shall not form a partnership; and

WHEREAS the parties hereto deem it expedient to reduce the terms governing their association into writing;

AND WHEREAS it is agreed that the terms and conditions unless otherwise changed by execution of a fresh deed of articles of association or execution of addendum to this deed of Articles of Association in writing and duly signed by all the members shall be as follows:

NOW THIS INDENTURE WITNESSETH AND THE PARTIES HEREBY  
MUTUALLY AGREE AS FOLLOWS:

1. The Parties hereto hereinafter are individually referred to as Member and collectively as the 'Members'. The Members have formed this Association with the common purpose of jointly developing and/or otherwise selling the said Properties more particularly described in the Schedule I and Schedule II written hereunder.
2. This Agreement shall come into force with effect from 1<sup>st</sup> April 2013.
3. The activities of the Association shall be carried on under the name and style of M/s PVM Associates (hereinafter referred as Association).
4. The books of account of the Association shall be closed on 31<sup>st</sup> March 2014 for the first time and thereafter the books of accounts shall be closed on 31<sup>st</sup> March of every year.
5. The Office of the Association shall be situated at the office of the party of the first Part situated at Ocean Park Residency, Opp. N.I.O Colony, Dona Paula - Goa 403004 Dona Paula, Panaji - Goa, and branch offices at such other place/s as may be mutually agreed upon by the parties hereto.
6. The executant signatories of this Deed shall be the first members of this Association, M/s. PVM Associates. These first members may, by their unanimous decision in writing and by execution of a fresh deed or articles of execution or execution of an addendum to the Articles of Association, admit any other new members. Any individual including minor, HUF, firm, body or association of persons whether incorporated or not, trust, company, corporation, co-operative society, body corporate will be eligible to be a member of this Association. There shall be no restriction on the number of new members that may be admitted.

7. The capital of the Association shall be Rs. 3,25,00,000/- which shall be contributed by all the three members of the Association in accordance with their respective profit sharing ratio specified in clause 14(a) of this Deed. As such the capital to be contributed by each of the three parties will be as under :-

|    |                           |               |        |
|----|---------------------------|---------------|--------|
| 1) | Mr. Pascoal Trindade      | 1,23,01,250/- | 37.85% |
| 2) | Mr. Vikram Shah           | 1,23,01,250/- | 37.85% |
| 3) | Mr. Murlidhar Sadarangani | 78,97,500/-   | 24.30% |

The capital can be contributed either by cash or by way of any asset.

8. The Party of the First Part, by way of his share of contribution to the capital of the Association hereby brings and introduces into the Association the said Properties i.e. the properties more particularly described in the Schedule I and Schedule II written hereunder. The said Properties will be valued at Rs. 3,09,50,000/- and accordingly recorded in the books of account of the Association. The capital account of the party of the first part shall be credited by an amount of Rs. 1,23,01,250/-. The balance amount of Rs. 1,86,48,750/- will be credited to the current account of the party of the First Part. The said Properties having been introduced in the Association have ceased to be the personal properties of the Party of the First Part and have become the properties of the Association. The Party of the First Part now holds the said Properties for and on behalf of the Association.

9. The Party of the Second Part and the Party of the Third Part have financed for acquisition / development of Schedule I and II properties over the years to party of First Part and their contribution is as under:

|                           |                 |
|---------------------------|-----------------|
| Mr. Vikram Shah           | Rs. 71,00,000/- |
| Mr. Murlidhar Sadarangani | Rs. 68,50,000/- |

The Party of the First Part shall refund these amounts to the Party of the Second Part and the Party of the Third Part and the Party of the Second Part and the Party of the Third Part shall thereupon bring in these amounts as their contribution to the capital of the Association.

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It is expressly agreed that balance of capital contribution of the parties of the Second and Third Part (i.e. Rs.53,01,250/- and Rs.10,17,500/-) shall be made by them within 18 months of the execution of this Article of Association.

10. It is hereby agreed that further funds required to incur expenses for the development, execution of a project or sale of the said Properties shall be contributed by all the Parties hereto in the proportion of their respective share in profit/loss specified in the clause 14(a) or 14(b) or 14(c) or 14(d) hereinbelow, as the case may be, save and except if any funds are required to meet any expenditure / cost or to make payment for removing encumbrance, claim, demand on the said Properties by the Communiade of Bambolim then in such event all funds required for the same shall be brought in by the Parties of the First Part and Second Part equally and the Party of the Third part shall not be required to bring in any funds for the same.

11. The Members of the Association shall be entitled to the following rights:

- i. Share in income, right to receive and to withdraw the said income;
- ii. Share in the surplus or accretion or appreciation or depletion or diminution in the value of the assets or share the assets at the time of the distribution of assets in specie on the dissolution which shall be in accordance with the provisions of this Agreement;
- iii. The Members may from time to time by unanimous decision in writing agree to increase or reduce or repay the capital. Further any such act referred to in clause (i) and (ii) above shall be in the form of a resolution in writing duly signed by all the members of this Association.

12. Unless the Members unanimously agree otherwise, all withdrawals by the Members shall be in proportion of their respective share in profit/loss specified in clause 15 hereinbelow.

13. Liability of Members: Subject to the provisions of the deed of this Agreement, each Member shall be jointly and severally liable for all the liabilities of the Association.

14. It is hereby agreed that the Schedule II property be notionally be divided into three parts as under:

- (a) Land admeasuring approximately 14,500 Sq. meters and forming a part of the Schedule II Property delineated on the plan of the Schedule II Property annexed hereto and surrounded by green colour boundary line herein referred to as the Schedule IIA Property;
- (b) Land admeasuring approximately 13,500 Sq. meters and forming a part of the Schedule II Property delineated on the plan of the Schedule II Property annexed hereto and surrounded by red colour boundary line herein referred to as the Schedule IIB Property;
- (c) Land admeasuring approximately 4,900 Sq. meters and forming a part of the Schedule II Property delineated on the plan of the Schedule II Property annexed hereto and surrounded by blue colour boundary line herein referred to as the Schedule IIC Property;

15. The profit/loss of the year shall be determined as per the prevailing accounting standards principles after meeting all the expenses, outgoings, depreciation, taxes etc. Separate accounts will be maintained in respect of development and sale of each of Schedule I, IIA, IIB & IIC Properties and profit arising therefrom shall be determined each year and separate Profit and Loss and Balance Sheet shall be drawn. Such profit arrived at in respect of each of Schedule I, IIA, IIB & IIC Properties shall be shared in the following ratio by the members of the Association.

(A) Profit/Loss arising from the development and sale of Schedule I property shall be shared by the members of the Association in the following ratio -

|      |                           | Schedule I |
|------|---------------------------|------------|
| I.   | Mr. Pascoal Trindade      | 37.85 %    |
| II.  | Mr. Vikram Shah           | 37.85 %    |
| III. | Mr. Murlidhar Sadarangani | 24.30 %    |

- (b) Profit/Loss arising from the development and sale of Schedule IIA Property shall be shared by the members of the Association in the following ratio :-

|                                | Schedule IIA |
|--------------------------------|--------------|
| i. Mr. Pascoal Trindade        | 37.85 %      |
| ii. Mr. Vikram Shah            | 37.85 %      |
| iii. Mr. Murlidhar Sadarangani | 24.30 %      |

- (c) Profit/Loss arising from the development and sale of Schedule IIB Property shall be shared by the members of the Association in the following ratio :-

|                                | Schedule IIB |
|--------------------------------|--------------|
| i. Mr. Pascoal Trindade        | 49.5 %       |
| ii. Mr. Vikram Shah            | 49.5 %       |
| iii. Mr. Murlidhar Sadarangani | 1.0 %        |

- (d) Profit/Loss arising from the development and sale of Schedule IIC Property shall be shared by the members of the Association in the following ratio :-

|                                | Schedule IIC |
|--------------------------------|--------------|
| i. Mr. Pascoal Trindade        | 5 %          |
| ii. Mr. Vikram Shah            | 5 %          |
| iii. Mr. Murlidhar Sadarangani | 90 %         |

Subsequent to such allotment and sharing of the profits/losses in respect of the profits of each of the schedule properties mentioned above, the Profit & Loss Accounts and Balance Sheets shall be consolidated to form a consolidated Profit & Loss Account and Balance Sheet of the Association.

16. It is hereby agreed and accepted by the Members that it shall be the equal responsibility of the Parties of the First Part and Second Part to ensure that the said Properties are free from encumbrance, claim of, demand of or from Communiade the Bambolim and if the Association is required to incur any expenditure/cost or make payment for removing any such encumbrance, claim, demand of the said Communiade the Bambolim, though forms an expenditure of

the Association deductible from the profit of the Association, it shall be borne only by the Parties of the First Part and Second Part equally. Further it is agreed that if the Association is required to part with any land it shall be out of Schedule II B Property only and not out any other of part of the said Properties. Such amounts or cost of the land to the Association shall be debited to the capital account of the Parties of the First and Second Parts equally and the profit of the Association for the purposes of distribution of profit amongst Members shall be determined without deducting such amount or cost of such land to the Association.

17. The individual shares of the respective Members in the assets of the Association shall always be as per the profit sharing ratio specified in clause 15 (a), (b), (c) and (d) above in respect of schedule I, IIA, IIB & IIC properties respectively.
18. On dissolution of the Association or for the purpose of dissolution, the assets as existing on the date of dissolution may be distributed in specie amongst the Members as on such date of dissolution. On dissolution, all liabilities shall be discharged or if the Members deem it necessary, they may mutually adjust and settle their rights on money value basis. The Members shall respectively be entitled to receive and be paid the capital contributed by them and the amount standing to the current account of the Members shall be returned to the respective Members of the Association and the residue and/or surplus assets shall be distributed amongst the Members in accordance with clause 17 above.
19. The assets of the Association may be distributed either wholly or partially at any time prior to the dissolution of the Association by a unanimous decision as writing in the form of a resolution duly signed by all the members of the Association at a duly convened meeting thereof and such distribution may be partial as to assets and also partial as to the Members or Member of the Association. It is agreed that the distribution provided hereby could be undertaken from time to time (and also in favour of any one or more number of Members).

20. All decisions in regard to the affairs of the Association including entering into partnership, making of investments, withdrawing of investments, starting any new business shall be taken by the unanimous decision of the Members in writing and in the form of a resolution duly signed by all the members.
21. The resolution of the Members may be passed at a meeting of the Members duly called or by a circular resolution. No resolution shall be valid unless it is approved and passed by all the Members Unanimously. Any resolution duly signed by all the Members shall be valid as if it was passed in a meeting of the Members. A Register of Resolution shall be kept by the Association and all such resolutions shall be incorporated chronologically in such Register.
22. Bank Account or Bank Accounts of the Association may be opened at any time after formation of the association invariably in the name of the association i.e. M/s. PVM Associates. The operation of the bank account / accounts shall be jointly by all the three parties to this Article of Association. An authorization to this effect shall be furnished to the bank / banks upon opening the bank account / accounts. Any modification of this clause can be made by an unanimous resolution in writing by all the members of this Association.
23. Any sale deed to be executed on behalf of the Association in favour of prospective purchaser of plots / apartments / villas or any other property owned by the association shall be invariably signed and executed by all the Parties to this Agreement. Any modification in this clause can be made by an unanimous resolution in writing by all the members of the Association.
24. Proper books of accounts shall be kept as per the accounting principles wherein shall be entered all particulars of money, goods, effects, belonging to or owing to or by the Association or paid, received, sold or purchased in the course of the activity of the Association, and of all such other transactions, matters and things relating to the activities of the Association. The said books of account together with all letters, papers or writings concerning or belonging to the Association, except such are required to be kept at the bankers shall be kept at the office of the Association, and shall

Member shall at all times have free access to and right to inspect and make copy of the same.

- 
25. No Member acting alone, without specific authorisation of all the members in writing to act on behalf of the Association shall, at any time by his act or omission, ever be considered to be doing acts on behalf of any other Member or Members, so as to bring into existence, by implication or otherwise, the contract of agency between the Members, or incur any liability to the Association.
26. This Agreement is not intended and does not bring into existence the relationship of the partnership between the Members and is purely an Association i.e. voluntarily coming together of the Members for the purpose of earning income. No Member by this Agreement is or shall become the agent of the Association or of the other Member or Members unless all the members are acting together.
27. Notwithstanding anything else contained in this Agreement, so long as there are at least two Members of the Association, death, retirement, insolvency liquidation, winding up, dissolution or ceasing to be a member for any reason whatsoever of a Member shall not dissolve or discontinue the Association but the surviving or continuing Members shall be entitled to continue to carry on the activities by admitting new members or member or otherwise.
28. In the event of the death of a member, his legal heirs will have the choice to become members of this Association and their becoming members shall be automatic unless the legal heirs specifically in writing intimate the Association of their decision not to become members within a period of 2 months of the demise of the member. The legal heirs becoming members of the Association will inherit all the rights and liabilities of the deceased member and also the balance standing at the capital and current accounts of the deceased member and also the share of profit or losses either to shared by the deceased member.

29. Death, retirement, removal, insolvency, liquidation, winding up, dissolution or ceasing to be a member for any reason (otherwise than by reason of dissolution of this Association) the Member ceasing to be a member or in case of death of the Member his legal heirs shall be entitled to the balance standing at the capital and current account as on such date.

Such amount due shall be paid without interest to the legal heirs of the deceased Member or to the Member, as the case may be, within expiration of the period of 6 months from the date of death, retirement, removal, insolvency, liquidation, winding up, dissolution or member ceasing to be a Member for any reason (otherwise than by reason of dissolution of this Association).

However if the Association is not able to pay the balance standing at the credit on capital and current account of such members within 6 months, the member or legal heirs of the deceased member as the case may be shall be entitled to simple interest on such balance at 12% per annum till the date of payment.

This clause shall however not apply in case the legal heirs of the deceased member who choose to become members of the association join the association as members.

The remaining members may, however by their unanimous decision in writing by way of resolution, decide to pay any amount over and above the balance outstanding at the capital and current accounts of such member or legal heirs in respect of the good will of the association or the appreciation in the value of the land and assets owned by the Association. Such member or legal heirs shall however not have any right to make such claim.

30. No Member shall, without the unanimous consent of all other Members in writing in the form of a resolution be entitled to sell, alienate, transfer, assign, gift, mortgage or charge his right, title, interest or any part thereof in the Association as Member.

31. Any Member committing breach of any of the stipulations provided in this Agreement, shall indemnify the other Members for all losses.

- 
32. Any Member or Members specifically authorised in this behalf by all the members of the association shall have all powers to file and defend suits, appeals, applications etc. to declare, sign and verify all complaints, written statements, memos of appeals, cross objections, applications, affidavits etc. and to accept writ of summons, notices etc. and to appear at any place in the Union of India before any Court, Tribunal, Tax Authority, Customs Authority, Port Authority, Government Authority, Municipal or other Local Authority or any other Authority, Officer or Officers and before all Authorities, Officers and Tribunals, Commissions and before any Registrar, Joint Registrar or sub-Registrar of Assurances at any place or places in the Union of India and to present and lodge any documents or document for registration and to admit execution thereof and to compound all suits and other proceedings and to submit all difference, disputes and/or demand to arbitration and to execute all release and discharges and to do all other things relating to the matter and funds of the Association.
33. All the Members may, by unanimous decision in writing, formulate a scheme or schemes for the management of the business and the property of the Association and may frame rules and regulations and from time to time to achieve the aims and objects of the Association hereby created. All the members may appoint and authorize in writing one or more out of them or any other person or persons as manager or managers to look after, and manage the affairs, activities, funds, properties of the Association in accordance with the directions given or to be given by the Members from time to time.
34. All the matters which are not stipulated otherwise in this Agreement shall be decided jointly by the all Members of the Association by a resolution in writing duly signed by all the members.
35. In the event of any dispute between the members of this association or between the members and the legal heirs of the association or between the legal heirs themselves the matter shall be referred to arbitration according to Indian Arbitration Act then in force.

#### 4.5 SCHEDULE - 1

(The SCHEDULE I PROPERTY hereinabove referred to)

All that property bearing Survey No. 93/3 situated at Village Bambolim known as "BAILEM FONDTEM", "SAVELI GALI" OR "OHOR" admeasuring 26,025 sq. mtrs. approximately within the limits of the Village Panchayat Curca, Bambolim and Talaulim, Taluka of Tiswadi, Registration Sub-District of Ilhas, District of North Goa and bounded as follows:

On the North: By Plot surveyed under No. 103.

On the South: By Plot surveyed under No. 94.

On the East: By Plot surveyed under 93/1.

On the West: By the Plot of G. M. C. surveyed under Nos. 102/3 & 104.

#### SCHEDULE-2

(The SCHEDULE II PROPERTY hereinabove referred to)

All that property bearing Survey No. 93/4 situated at Bambolim known as "BAILEM FONDTEM", "SAVELI GALI" or "OHOR", zoned as orchard, admeasuring 35,600 m<sup>2</sup> approximately, within the limits of Village Panchayat Curca, Bambolim & Talaulim, Taluka of Tiswadi, Registration Sub-District of Ilhas, District of North Goa and neither described in land registration office nor enrolled under matriz and bounded as follows:

North: By Bambolim Village road and plot surveyed under no. 107/7-11

South: By plot surveyed under No. 103

East: By plot surveyed under No. 93/1

West: By plot surveyed under Nos. 93, 106, 107/1, 2, 3, 5 and 6 Schedule 2A, 2B and 2C to be incorporated

IN WITNESS WHEREOF THE PARTIES HERETO HAVE SET THEIR  
RESPECTIVE HANDS THE DAY AND THE YEAR FIRST  
HEREINABOVE MENTIONED:

SIGNED AND SEALED AND  
DELIVERED BY THE  
WITHIN NAMED MR. PASCOAL  
TRINDADE AND PARTY OF THE  
FIRST PART IN THE  
PRESENCE OF

1. Manuel C. Dias

*Manuel*

2.

*[Signature]*

JULIE FERNANDES

SIGNED AND SEALED AND  
DELIVERED BY THE  
WITHIN NAMED MR. VIKRAM  
SHAH AND PARTY OF THE  
SECOND PART IN THE  
PRESENCE OF

1. Joyce Pereira

*[Signature]*

2. Brenda Po

*[Signature]*

SIGNED AND SEALED AND  
DELIVERED BY THE  
WITHIN NAMED MR.  
MURLIDHAR SADARANGANI  
AND PARTY OF THE THIRD  
PART IN THE  
PRESENCE OF

1. Mangala Kumar

*Mangala*

2. Subochana Satarpekar

*Identified as production of FBI  
AD HPS 88-914 Chief Commission  
Dunham L.L.*



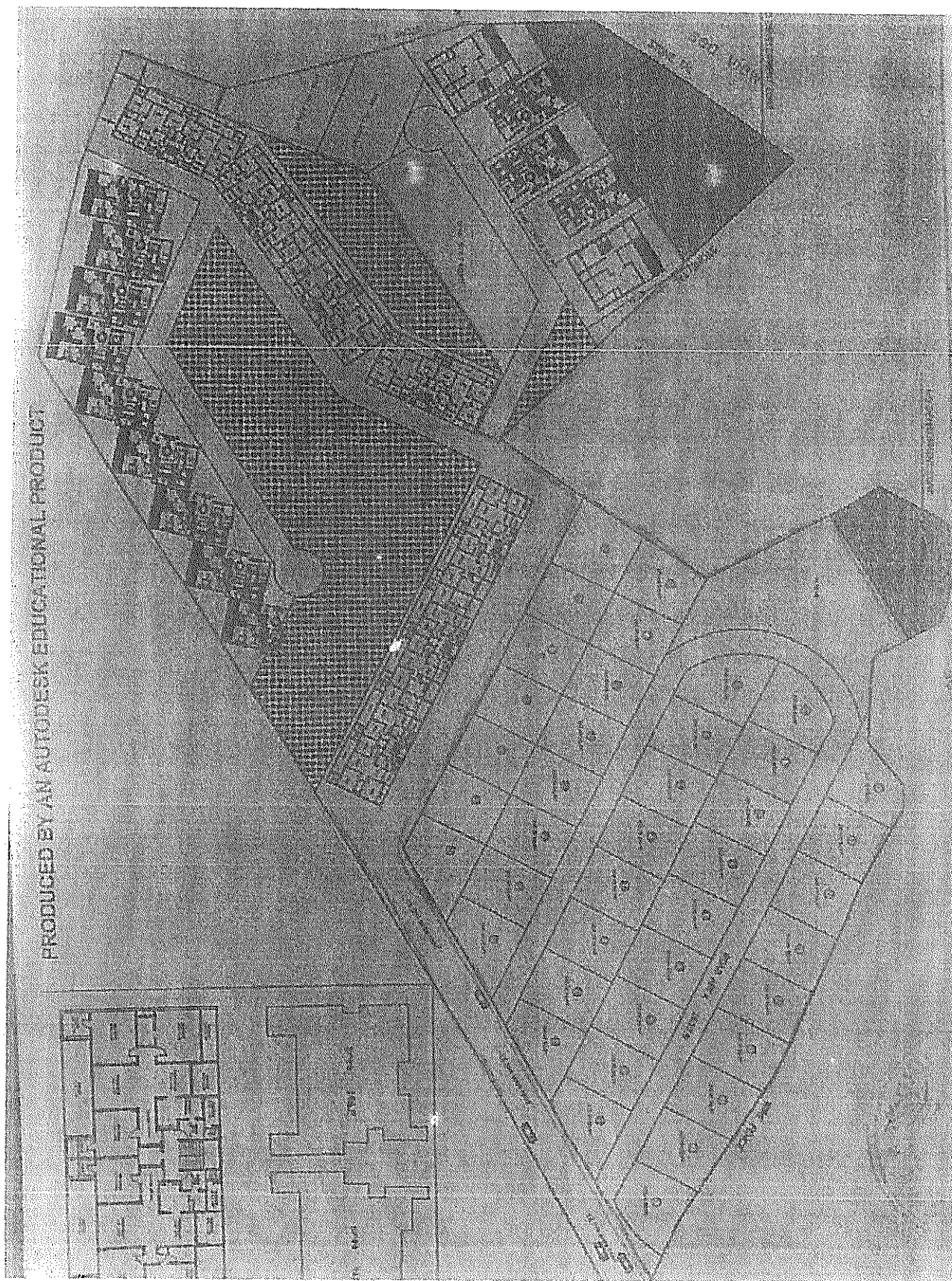
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AD HPS 88-914 Gov 72 ADH*

*Identified as production of FBI  
AD HPS 88-914 Gov 72 ADH*



EXECUTED BEFORE ME  
WITNESSES

PRODUCED BY AN AUTODESK EDUCATIONAL PRODUCT





THIS MEMORANDUM OF UNDERSTANDING made at Mumbai

This 6<sup>th</sup> day of June, 2006

Between

M/s. PRAVAR TRADE INVEST PVT. LTD., A Private Limited Company registered under the Indian Companies Act, 1955 having registered office at 148, Atlanta, Nariman Point, Mumbai 400 021 hereinafter referred to as "the Party of First Part" (which expression shall unless repugnant to the subject, context or meaning thereof be deemed to mean and include its Directors and their respective successors and assigns) of the One Part

to  
AND

M/S. SUMER BUILDERS PVT.LTD. a Private Limited Company registered under the Indian Companies Act, 1956 having its registered office at 201, Commerce House, 140 Naginaas Master Road, Fort. Mumbai 400 023 hereinafter referred to as "the Party of the Second Part" (which expression shall unless repugnant to the subject, context or meaning thereof be deemed to mean and include its Directors and their respective successors and assigns) of the Other Part:-

WHEREAS the Party of the First Part have negotiated with various land owners for the purchase of various plots of land situated at Bambolim, Taluka Tiswadi, Panaji, Goa adm. 140000 sq.mtrs. or thereabouts and details of which including the status of zoning is annexed hereto as ANNEXURE-I.

AND WHEREAS the parties hereto have agreed to join together for development of properties at Goa in the name and style of "M/s. LOONKAR DEVELOPERS PVT.LTD." a company registered under the Indian Companies Act, 1956, having authorized capital of Rs. 100,000/- and fully paid-up capital of Rs. 1,00,000/- hereinafter referred to as the "Joint Venture Company".

AND WHEREAS the parties shall have equal shareholding, i.e. 50/50 in the said "M/s. LOONKAR DEVELOPERS PVT.LTD." and shall contribute the funds and carry out the activities jointly as envisaged hereunder.

AND WHEREAS the Party of the First Part through its directors Mr. Pascoal Trindade have executed with the owners the sale deed in respect of various plots of land bearing S.No. 93/2, 93/3 and 93/4 within the limits of Village Panchayat Curca, Bambolim and Talavim, Taluka Tiswadi, registration sub-districts of Ilhas, District of North Goa, totally adm. 97500 sq mtrs. or thereabout.

*[Handwritten signatures and initials]*

AND WHEREAS the Party of the First Part have finalized the purchase of land bearing S.No.105/1 and 105/2 within the limits of Village Panchayat Curca, Bambolim and Talavlim, Taluka Tiswadi, registration sub-districts of Ilhas, District of North Goa, totally adm. 7750 sq.mtrs. or thereabout and have published the public notice in the local newspapers calling for objection, if any and upon being satisfied with the title shall execute and caused to be executed the sale deed to and in favour of the said joint venture company.

AND WHEREAS the Party of the First Part have agreed to complete the transaction in respect of purchase of various plots of adm. 140000 sq.mtrs. from various owners by executing respective Agreements and Sale Deed and registering the same and also to acquire the title in respect of the plots of land and to take vacant possession of the same. In case there are any tenants and/or occupants in the said plots of land, to get the same vacated and make available vacant plots and make the Title clear and marketable and free from all encumbrances.

AND WHEREAS it is agreed between the parties hereto that the said plots of land shall be transferred in the name of "M/s LOONKAR DEVELOPERS PVT.LTD." by executing sale deed in favour of "M/s LOONKAR DEVELOPERS PVT.LTD." and by registering the same for the purpose of development of various plots of land by constructing building(s) for residential and commercial purposes and shall sell the sub-divided plots and/or residential and commercial premises as may be mutually decided by the parties hereto from time to time.

AND WHEREAS it is specifically agreed that the finance required for purchase of plots of land will be contributed by the Party of the Second Part to the extent of 65% subject to clear, marketable title and free from encumbrances of properties and balance of 35% shall be contributed by the Party of the First Part. It will be the obligation on the part of the Party of the First Part to get the property vacant, clear and free from all encumbrances.

(Signature) (Signature) (Signature)

AND WHEREAS more than 50% of the plots of land envisaged to be purchased are under settlement zone and the Party of the First Part shall get the balance area converted into settlement zone, however, the cost for the same shall be born by the said joint venture company.

AND WHEREAS the parties hereto have negotiated and have arrived at mutually agreeable terms to share the profits accruing from the sale of the various plots of land from the project being developed by the parties hereto jointly on various plots of land agreed to be purchased.

AND WHEREAS the parties hereto after negotiation have now arrived at the terms and conditions as more particularly appearing hereinafter.

NOW THIS M.O.U. WITNESSETH AND IT IS AGREED BY AND BETWEEN THE PARTIES HERETO AS FOLLOWS:-

1. Recital as above shall be the integral part of this M.O.U.
2. Parties hereto shall transact the business of joint development in the name of the said joint venture company and be the equal share holders of the newly constituted company in the name of "M/s. LOONKAR DEVELOPERS PVT. LTD." having their registered office at 201, Commerce House, 140 Nagindas Master Road, Fort Mumbai 400 023.
3. The Party of the First Part shall transfer and/or caused to be transfer the property purchased by Mr. Pascoal Trindade, one of the Director of the Party of the First Part being S.No. 93/2, 93/3 and 93/4 totally adm. 97500 sq.mtrs. to and in favour of the said "M/s. LOONKAR DEVELOPERS PVT. LTD."
4. The parties hereto have agreed that base price of Rs. 120/- per sq.mtrs. shall be considered for the joint development envisaged by and between the parties by the said "M/s. LOONKAR DEVELOPERS PVT. LTD."

*[Handwritten signatures and initials]*

5. The funding required by the said joint venture company i.e. "M/s. LOONKAR DEVELOPERS PVT. LTD." for the purchase of the various plots of land and the cost of conversion as detailed out in ANNEXURE-I annexed hereto and same shall be contributed by the Party of the First and Second Part hereto in the ratio of 35:65 respectively.
6. The funding required by the said joint venture company i.e. "M/s. LOONKAR DEVELOPERS PVT. LTD." for the purpose of the commercial exploitation of the said plots i.e. construction and development shall be contributed by the Party of the Second Part exclusively. However, the said joint venture company shall bear and pay the interest for such investment of the party of the second part at rate of 15% p.a.
7. The Party of the First Part confirm the receipt of Rs. 2,50,00,000/- in the account of Mr. Pasocal Trinidad from the Party of the Second Part for and towards the consideration payable to the owners and also confirm and acknowledge the receipt of Rs. 3,00,00,000/- vide cheque No. 490569 dated 06/06/2006 in name of the Party of the First Part and confirm the total Rs. 5,50,00,000/-.
8. The profit availed from the joint venture development shall be shared in the following manner:
  - a. The Party of the First Part and/or their nominee/s. 50%
  - b. The Party of the Second Part and/or their nominee/s. 50%
9. It is specifically agreed by and between the parties hereto that the excess fund contributed by the Party of the Second part in the joint venture shall be reimbursed by the joint venture company prior to the withdrawal by the parties hereto out of the sales proceeds.
10. The parties hereto shall pay their statutory liabilities individually as may be required from time to time and shall indemnify each other in respect thereof and the liabilities arising from the business of the joint venture shall be bear and paid by the joint venture company.




11. The parties and the constituents thereto shall run and operate the joint venture for the mutual benefit faithfully and shall not change the share holding pattern of their respective companies without prior consent and knowledge of the other party.

12. It is specifically agreed by and between the parties hereto that the following activities shall be conducted by the Party of the Second Part from their office

- a. Appointment of Architects, Consultants etc.
- b. Sales, Advertisement, Marketing etc.
- c. Providing funding for the development
- d. Day to day management for the above activities

13. It is specifically agreed by and between the parties hereto that the base rate of 1200/- per sq.mtrs. shall be considered for the purchase of plots of land and the same shall include

- a. the consideration payable to the land owner, confirming parties etc.
- b. any other cost which may be payable to settle the tenants, claimants if any
- c. legal cost, fees and charges, incidental to the above
- d. stamp duty and registration charges

It is specifically understood by and between the parties that the above charges and expenses for change of zone shall be born by the said joint venture company. However, the conversion of only approx. 67000 sq.mtrs. is pending and balance land is already converted.

14. It shall be the exclusive responsibility and/or liability of the Party of the First Part

- a. to investigate the title of each of the properties purchased and to clear all encumbrances if any and settle claims if any and obtain vacant possession.

(120)  

d. to indemnify the Party of the Second Part from any claim in respect thereof.

- to satisfy the title of the property

15. The parties hereto shall sign and execute from time to time, such instruments, documents and writings as may be necessary or expedient in pursuance hereof.

16. Each party shall bear the fees of the legal and other professional appointed by them respectively.

17. All disputes or differences whatsoever which shall at any time hereafter (whether during the continuance of this MOU or upon or after its discharge or determination) arise between the parties hereto or their respective successors-in-title and assigns (as the case may be), touching or concerning this MOU or its construction or effect, or as to the rights, duties, obligations, responsibilities or liabilities of the parties hereto or any of them, under or by virtue of this Agreement or otherwise, or as to any other matter in any way connected with or arising out of or in relation to the subject matter of this MOU, shall be referred to arbitration in accordance with and subject to the provisions of the Arbitration and Conciliation Act, 1996, or any statutory modification or re-enactment thereof for the time being in force. Each party shall be entitled to appoint / nominate one Arbitrator and the two Arbitrators so appointed / nominated shall appoint the third presiding Arbitrator. The award of the Arbitrators shall be final and binding on the parties to the reference. The arbitration proceedings shall be held in Mumbai only.

   
VS

IN WITNESS WHEREOF the parties hereto have hereunto  
set and subscribed their respective hands the day and year first  
hereinabove written.

SIGNED, CONFIRMED AND DELIVERED for )  
and on behalf of the withinnamed )  
the Party of the First Part, )

M/s. PRAVAR TRADE INVEST PVT. LTD.)

by its Director/Authorised signatory )

1) Mr. Vikram C. Shah )

2) Mr. Arvindersingh Sethi )

In the presence of )

1) )

M. R. Dhanyani

PRAVAR TRADE INVEST  
PVT. LTD.

DIRECTOR

PRAVAR TRADE INVEST  
PVT. LTD.

DIRECTOR

SIGNED, CONFIRMED AND DELIVERED for )

and on behalf of the withinnamed )

the Party of the Second Part, )

M/S. SUMER BUILDERS PVT. LTD.)

by its Director/Authorised signatory )

1) Mr. Ramesh Shah )

2) Mr. Manekchand Loonkar )

In the presence of )

1) )

M. R. Dhanyani  
Advocate

For Sumer Builders Pvt. Ltd. Limited

Manekchand Loonkar  
Director

For Sumer Builders Pvt. Ltd. Limited

Manekchand Loonkar  
Director

## ANNEXURE - I

|        | Area<br>Sq.Mtrs | Settle.Zone<br>Sq.Mtrs |
|--------|-----------------|------------------------|
| 2075   | 2875            | 0                      |
| 4875   | 4875            | 0                      |
| 34775  | 34775           | 8000                   |
| 35600  | 35600           | 30000                  |
| 25925  | 25925           | 15000                  |
| 35075  | 35075           | 20000                  |
| 140025 | 140025          | 73000                  |

## ANNEXURE - II

|        | Area<br>Sq.Mtrs | Sett.Zone<br>Sq.Mtrs | Rate<br>I | Total     | Rate<br>II | Total    |
|--------|-----------------|----------------------|-----------|-----------|------------|----------|
| 2075   | 2075            | 0                    | 850       | 2443750   | 350        | 1006250  |
| 4875   | 4875            | 0                    | 850       | 4143750   | 350        | 1706250  |
| 34775  | 34775           | 8000                 | 900       | 31297500  | 300        | 10432500 |
| 35600  | 35600           | 30000                | 700       | 24920000  | 500        | 17800000 |
| 25925  | 25925           | 15000                | 700       | 18177500  | 500        | 13412500 |
| 35075  | 35075           | 20000                | 700       | 24552500  | 500        | 17537500 |
| 140025 | 140025          | 73000                |           | 106135000 |            | 61895000 |

## USING STRUCTURE

|                             | Total Payable | April 06 | May 06 | June 06 | July 06 | August 06 | September 06 | October 06 | November 06 | December 06 | TOTAL |
|-----------------------------|---------------|----------|--------|---------|---------|-----------|--------------|------------|-------------|-------------|-------|
| Contribution by First Part  | 1.23          | 0.63     | 0      | 0.75    | 0.5     | 0.75      | 0.89         | 0          | 0           | 1.25        | 4.63  |
| Contribution by Second Part | 9.36          | 1.56     | 2.5    | 0.50    | 1.00    | 0.88      | 2.00         | 0.88       | 0.88        | 0.00        | 9.36  |
| TOTAL FUNDING               | 10.61         | 2.19     | 2.5    | 1.25    | 1.5     | 0.88      | 2.73         | 1.04       | 0.88        | 0           | 10.61 |

## Statement of Expenditure till 31/03/2013- Survey No.93/2, 93/3 &amp; 93/4

| Survey Nos.                     | Payment to owner | Sanad     | Infrastructure Tax | Construction License Fee | Total    |
|---------------------------------|------------------|-----------|--------------------|--------------------------|----------|
| 93/2                            | 5055200          | 815000.00 | 2091749.00         | 854079.00                | 8816028  |
| 93/3                            | 3809150          | 250000.00 | 908100.00          | 259200.00                | 5226450  |
| 93/4                            | 4980650          | 823000.00 | 2962745.00         | 1149921.00               | 9916316  |
| Payment to confirming party     |                  |           |                    |                          | 9500000  |
| Sadekar environment engineering |                  |           |                    |                          | 400000   |
| Rajesh Raikar                   |                  |           |                    |                          | 100000   |
| Compensation to tenants         |                  |           |                    |                          | 13850000 |
| legal & prof charges            |                  |           |                    |                          | 900000   |
| Bank Charges                    |                  | 4721.00   |                    |                          | 4721     |

Total 48713515

| Statement of funds received by Late Mr. Pascoal |                                         |                          |          |          |
|-------------------------------------------------|-----------------------------------------|--------------------------|----------|----------|
| 1                                               | Loonkar developers & others             |                          | 38810000 |          |
| 2                                               | Murli sadarangani                       |                          | 10650000 |          |
| 3                                               | Pravr trade invest pvt. Ltd             |                          | 7050000  | 56510000 |
| less                                            | refunded to Loonkar developers & others |                          |          | 2050000  |
|                                                 |                                         | Balance with Mr. Pascoal |          | 5746485  |

Statement of expenses by PVM Associates &amp; others - will send you by tommorrow

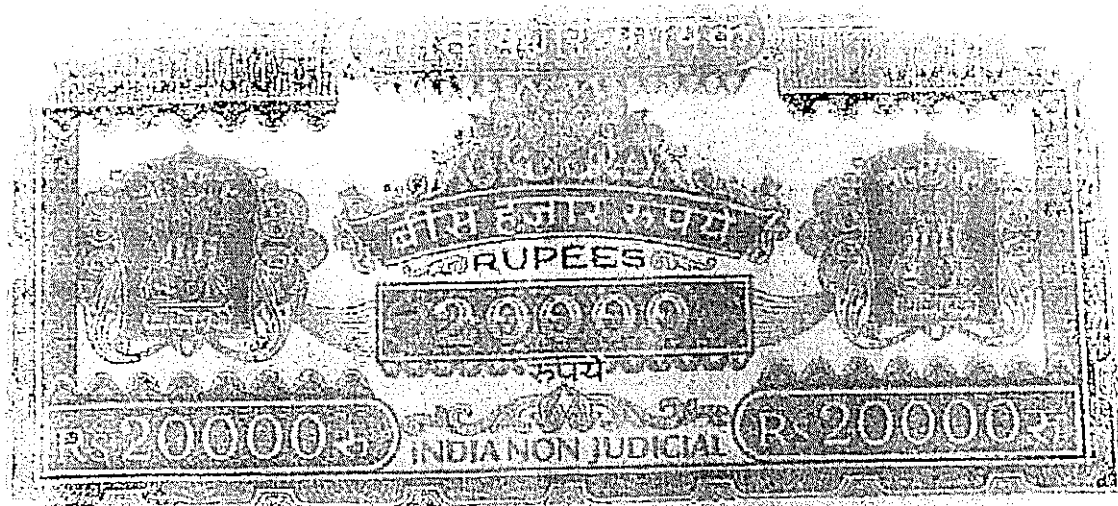
## Expenses

PVM Associstes  
others

618982

806697

1425679



NORTH GOA

000742

504

Panaji  
Rupees twenty thousand only  
Dona Paula

One Lac

Twenty  
five thousand  
only

Serial No. 117  
Presented at the Office of the  
Sub-Registrar, Panaji  
on 20/4/06

Received fees for Rs. 24600/-  
Registration  
Copying (Fees) 70  
Copying Endorsements 10  
Postage

Total Rs.

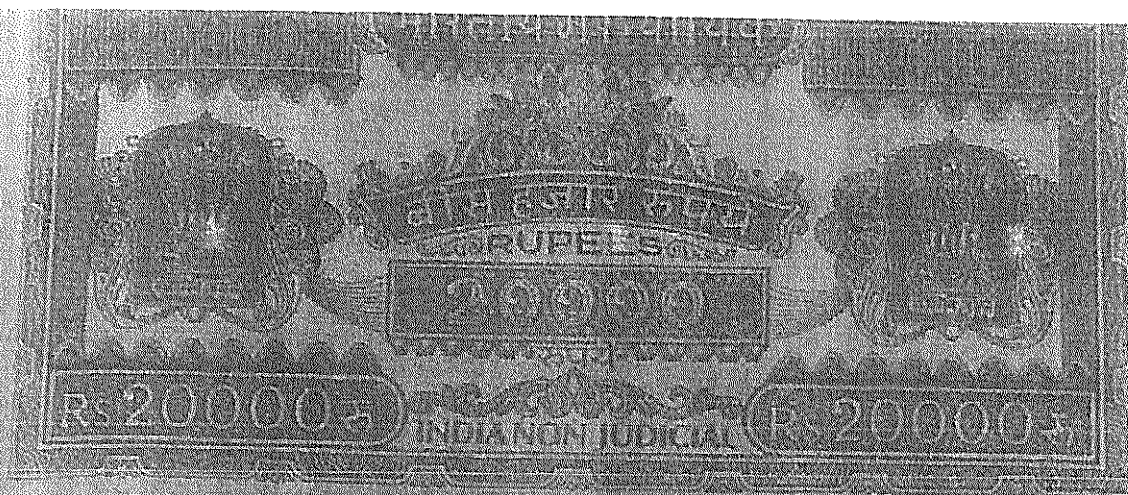
24680/-

DEED OF SALE

SUB-REGISTRAR

11/11/06

SUB-REGISTRAR  
THIS DEED OF SALE is executed on this 25<sup>th</sup> day of April of the year  
Two Thousand and Six ( 25/04/2006 ) at Panaji, Taluka of Thivadi,  
Registration Sub-District of Ilhas, District of North Goa, in the State of  
Goa.



GOA

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Paraji

20/4/66

Dona Paula

Paraji

Paraji

125000

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BETWEEN

MRS. DIONISIA DIAS E MENCULBAG alias MRS. DIONISIA DIAS, daughter of late Mr. Salvador Dias, aged about 70 years, housewife, Indian National and residing at First Floor, Model Residency, St. Inez, Paraji, Goa, hereinafter called as "THE VENBOR" (which expression



GOA

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24/1/66  
Rs. 20000/-  
Paisa 0000

Donor's name

1,25,000/-

shall unless repugnant to the context or meaning thereof shall deem to mean and include her heirs, legal representatives, successors, executors, administrators, nominees and assigns) OF THE FIRST PART



GOA

000739

1504  
10/10/03  
10/20/00  
Pascoal  
Trindade  
10/20/00  
10/20/00

AND

MIL PASCOAL TRINDADE, son of late Agostinho Trindade, aged about 62 years, married, businessman, Indian national and having his office near N.I.O. Dona Paula, Goa hereinafter called as "THE PURCHASER"



GOA

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Kavay

20/4/06

R. S. S. S. S.

R. S. S. S. S.

Dona fada

R. S. S. S. S.

R. S. S. S. S.

(which expression shall unless repugnant to the context or meaning thereof shall deem to mean and include his heirs, legal representatives, successors, executors, administrators, nominees and assigns) OF THE SECOND PART)





504  
 Name of stamp holder: Jayashree  
 Name of the person: Jayashree  
 Residing at: Dahanu, India  
 Date: 20/4/06  
 Place: Dahanu, India  
 Signature: [Signature]

aged about 72 years, Civil Contractor, Indian National and residing at  
 'Patimal', Altinho, Panaji, Goa, and hereinafter called as "THE  
 CONFIRMING PARTY" (which expression shall unless repugnant to the  
 context or meaning thereof be deemed to mean and include all the partners  
 constituting the firm) OF THE THIRD PART

72

WHEREAS there exist Property "BAILEM FONDIEM", "SAVELI GALT" or "OHOR", zoned as orchard, bearing Survey No. 92/2 of Village Pandolin, measuring 33,600 sq. ft., which Property is hereinafter for the sake of brevity referred to as the "SAID PROPERTY" and more particularly described in SCHEDULE - I herewith appearing and delineated in red colour boundary in the plan annexed hereto and marked as ANNEXURE "A"

AND WHEREAS Agreement of Sale Dt. 24/04/2006 is entered into between THE VENDOR, THE PURCHASER and THE CONFIRMING PARTY for sale of the SAID PROPERTY on AS IS WHERE IS BASIS superseding all the previous Agreements in respect of the SAID PROPERTY entered between THE VENDOR and THE CONFIRMING PARTY.

AND WHEREAS all the representations, covenants, warranties, terms and conditions contained in the said Agreement Dt. 24/04/2006 shall be deemed to be reproduced and incorporated in this Deed of Sale.

AND WHEREAS THE CONFIRMING PARTY / THE PURCHASER got the title of the SAID PROPERTY investigated to trace the same as follows:

(i) That Alexandre Rodrigues had title to the following properties mentioned below as per records of the Commune of Pandolin vide Certificate issued by Clerk Marcos Vicent D'Arango

1. 1/4<sup>th</sup> part of Verica of Bailem Fondiem.
2. Another 1/4<sup>th</sup> part of the said Verica.
3. Another Verica of cashew plantation and Ohor.
4. One Xir of the property known as Boudem.
5. One piece of coconut garden 'Cornacho' and two remnant pieces.
6. And further in another title, 5 pieces of coconut garden called 'Gulbeon Batta'.

4. And that in and to each of the plots owned jointly with his son Martinho Rodrigues and house - half and half.
7. One piece of coconut garden 'Cunham Baita'.
10. And two Verices of Cashew Plantation known as "Baillem Fendlem" and that the following properties are found entered in the name of his daughter Maria Conceicao Rodrigues:

- (a) One Verice of cashew plantation.
- (b) One piece of coconut garden called "Cunham Baita".
- (c) One fourth part of the Verice Baillem Fendlem.
- (d) Another one fourth of Verice.
- (e) Five pieces of coconut grove called Cunham Baita.
- (f) One half of the first Verice called Baillem Fendlem and Caim.
- (g) 3 pieces jointly held with her cousin Martinho Rodrigues.
- (h) House shared half and half.
- (i) 2 Verices of cashew plantation called Baillem Fendlem with exception of the plot one Xir of the property known as "Baillem" and one piece of coconut garden "Cunham" as it is sold to Sebastiao Figueiredo.

(ii) That late Alexandre Rodrigues left behind on his death his sole and universal heir Maria Conceicao Rodrigues.

(iii) That Gregorio Germano Mergulhao married to Maria Conceicao Rodrigues and as such inherited the estate of late Alexandre Rodrigues.

(iv) That Gregorio Germano Mergulhao had two sons - Emmanuel Joveniano Paixao Mergulhao and Francisco Aleixo Dorea Mergulhao.

(v) That Francisco Aleixo Dorea Mergulhao died a bachelor.

(vi) That after the demise of Emmanuel Joveniano Paixao Mergulhao married to Maria Gertrudes de Paizolina Viegas, Mr. Maximo Mergulhao and his wife Mrs. Dionisia Dias e Mergulhao became the sole heirs to

7

inherit the estate left behind by their grandmother Maria Conceição Rodrigues married to Gregorio Clemente Morgulhao.

(vii) That subsequent to the death of Mr. Maximo Morgulhao on 26/03/1991 and in view of the Deed of Relinquishment Dt. 13/05/1998 executed by the heirs relinquishing their rights in respect of the properties of Mr. Maximo Morgulhao THIS VENDOR became the sole owner of the SAID PROPERTY.

AND WHEREAS THE CONFIRMING PARTY / THE PURCHASER verified the area of the SAID PROPERTY at 35,600m<sup>2</sup>.

AND WHEREAS in the Agreement Dt. 24/04/2006 it provided that THE VENDOR shall transfer and/or convey the SAID PROPERTY at the request of THE CONFIRMING PARTY to THE PURCHASER without any further responsibility on THE VENDOR whatsoever.

AND WHEREAS THE PURCHASER has today paid THE VENDOR the balance consideration of Rs. 50,00,000.00 (Rupees Fifty Lakhs Only) of the total agreed consideration for sale of the SAID PROPERTY of Rs. 50,55,200.00 (Rupees Fifty Lakh Fifty Five Thousand Two Hundred Only) the receipt of which THE VENDOR do hereby admit and acknowledge which is it's adopted market value @ Rs. 142.00 per Sq. meter considering the fact that THE PURCHASER through THE CONFIRMING PARTY purchased the SAID PROPERTY on AS IS WHERE IS BASIS and that THE CONFIRMING PARTY/THE PURCHASER shall settle all the issues concerning the SAID PROPERTY be it in relation to the settlement with the Communiade of Bambolim, the other right holder or whomsoever without any reference/liability to THE VENDOR although the market value considered for the purpose of stamp duty and registration is Rs. 62,30,000.00 @ Rs. 175.00 per Sq. meter as per Official Gazette, Government of Goa, Series I No. 12, Dt. 19/06/2003, considering the area of the SAID PROPERTY at 35,600 m<sup>2</sup>.

DEED OF SALE  
ENDORSE

In pursuance of the said Agreement DL 24/Q4/2006, the representations, covenants, warranties, terms and conditions which shall be deemed to be reproduced and incorporated in this Deed of Sale and in consideration of the said sum of Rs. 50,51,200.00 (Rupees Fifty Lakhs Fifty Five Thousand Two Hundred Only) paid by THE PURCHASER to THE VENDOR (the receipt whereof THE VENDOR do hereby admit and acknowledge and give full discharge to THE PURCHASER) THE VENDOR do hereby convey and transfer UNTO THE PURCHASER at the request of THE CONFIRMING PARTY the SAID PROPERTY known as "BAILEM BORDIEM", "SAVELL GALI" or "OHOR" measuring 35,600 m<sup>2</sup> approximately, within the limits of Village Panchayat Cuzen, Bambolim & Taleaulim and more particularly described in Schedule - I hereinafter appearing and for better clearness delineated in red colour boundary in the Plan annexed hereto as Annexure "A" on AS IS WHERE IS BASIS TOGETHER WITH all trees, fences, ways, waters, lights, water-courses, liberties, privileges, easements and appurtenances whatsoever to the SAID PROPERTY belonging and in any way appertaining to or usually held or occupied therewith or reputed to belong or be appurtenant thereto AND ALL the estate, right, interest, property, claim or demand whatsoever of THE VENDOR into or upon the SAID PROPERTY hereby conveyed to THE PURCHASER and every part thereof, TO HAVE AND TO HOLD the same unto and to the use of THE PURCHASER absolutely and forever together with title deeds, writings, muniments, and other evidences of title as ordinary pass on such sale AND it is agreed by and between the parties that with the execution of this Deed of Sale all the transaction between THE VENDOR, THE PURCHASER and THE CONFIRMING PARTY in respect of the sale of the SAID PROPERTY has finally come to an end.

2. THE CONFIRMING PARTY/THE PURCHASER shall be solely responsible to comply with all the undertakings/commitments given to the Communitade of Bambolim, the other right holders or whomever without any reference or liability to THE VENDOR be it in the matter of compliance, payment of compensation to them or otherwise.
3. THE CONFIRMING PARTY in acknowledgement of all the above hereby confirm to this Deed of sale between THE VENDOR and THE PURCHASER.

### SCHEDULE-1

(The SAID PROPERTY hereinabove referred to)  
All that property bearing Survey No. 93/2 situated at Bambolim known as "BALEM FORDIEM", "SAVELI GALL" or "OHOR", zoned as orchard, measuring 35,000 m<sup>2</sup> approximately, within the limits of Village Panchayat Canea, Bambolim & Talaulim, Taluka of Tiswadi, Registration Sub-District of Ilhas, District of North Goa and neither described in land registration office nor enrolled under matrix and bounded as follows:

|              |                                                            |
|--------------|------------------------------------------------------------|
| On the North | By Bambolim Village road & Plot surveyed under No. 107/7-1 |
| On the South | By Plot surveyed under No. 103                             |
| On the East  | By Plot surveyed under No. 93/1                            |
| On the West  | By Plots surveyed under Nos. 93, 106, 107/1, 1, 3, 5 & 6.  |

IN WITNESS WHEREOF the parties hereunder have signed this Deed on the day, month and year first hereinabove mentioned in the presence of witnesses.

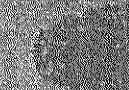
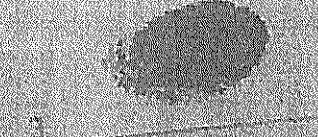
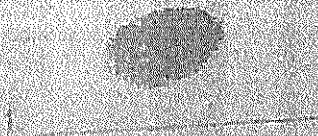
RECEIVED AND DELIVERED BY THE  
WILLIAM D. "THE VENTURE"  
OF THE FIRST PART.

~~Dionisia Dias Mergulhao~~  
MRS. DIONISIA DIAS E MERGULHAO  
alias MRS. DIONISIA DIAS



L.H.F.F.

R.H.F.F.



SIGNED AND DELIVERED BY THE  
WITHIN NAMED "THE PURCHASER"  
OF THE SECOND PART

  
MR. PASCOAL THIMIDADE



1.1.1.1.

1. \_\_\_\_\_

2. \_\_\_\_\_

3. \_\_\_\_\_

4. \_\_\_\_\_

5. \_\_\_\_\_

SIGNED AND DELIVERED BY THE  
 WITHIN NAMED THE CONFIRMING  
 PARTY OF THE THIRD PARTY.

FOR M/S. RAGHURAJ TAMBHA

PARTNER

M/S RAGHURAJ TAMBHA.

The Partnership firm represented  
 by its Senior Partner  
 Mr. Raghuraj Tambha.



L.H.F.

R.H.F.

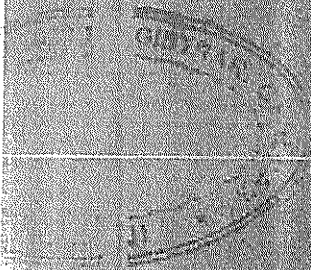
in the presence of

*[Signature]*

*[Signature]*

*[Signature]*

*[Signature]*



Don e Margulhaes  
 Mrs Dionisia dea daughter  
 of late Mr Salvador Dias 70, house  
 18 flr, small building St Luiz  
 13) Passal Trindade  
 So late Agostinho Trindade  
 62 Maria Businessman  
 Mr Jose Paul  
 a partner of Mrs Raghunath Tamba  
 by its senior partner Mr Raghunath  
 Tamba, So late Ramia  
 Rosa Tamba, aged 72  
 civil contractor, So Ramal  
 Alberto Tamba



NOTICE  
 Intimation of the 30 added  
 Antonio Dias Margulhaes

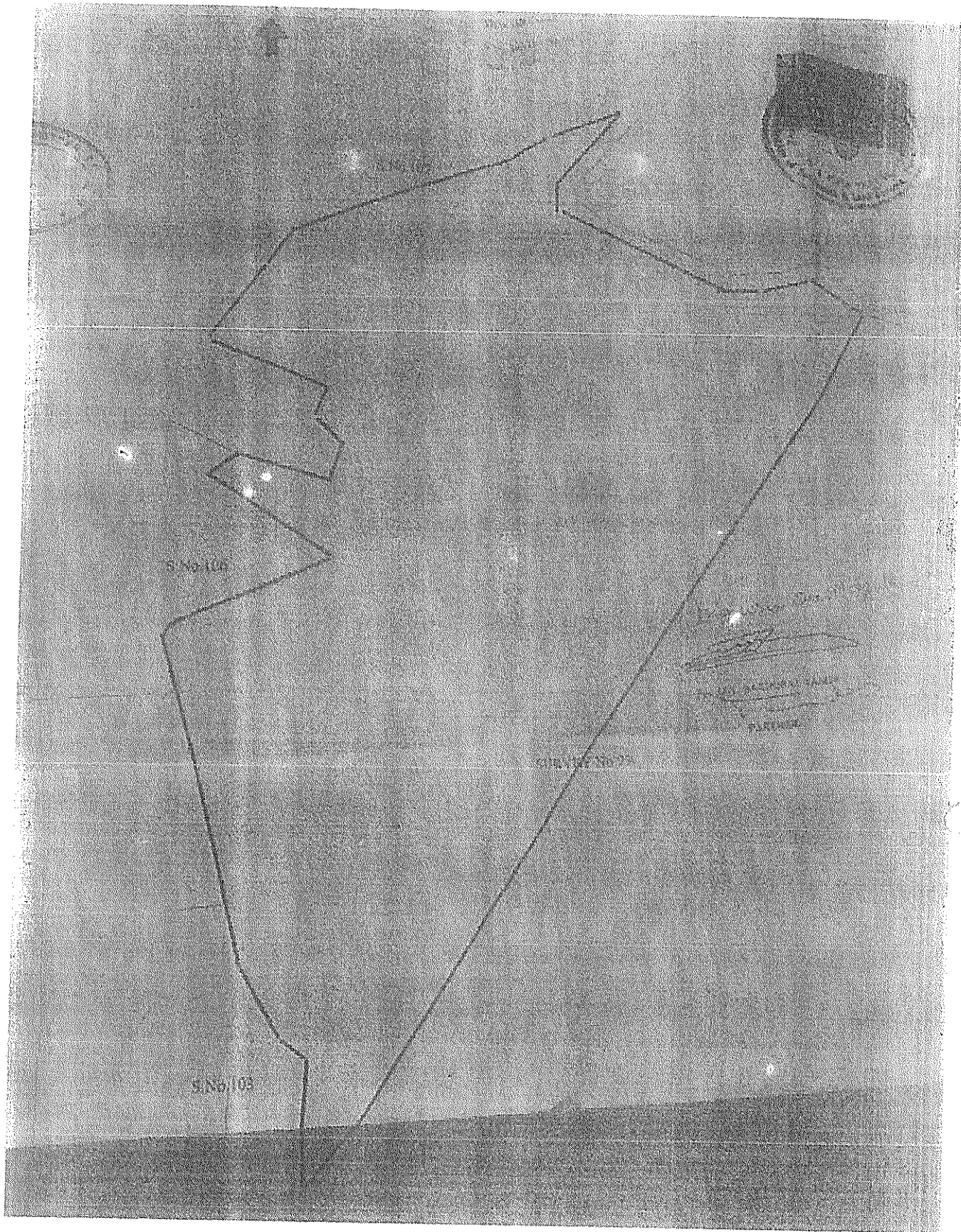
APPROVED  
 John

SUB-REGISTRAR  
 THAS



1238  
 229  
 Volume No. 1834  
 3-2-1906

Return: The document



No RB/CNV/TIS/133/2008  
 Government of Goa,  
 Office of the Collector,  
 North Goa District,  
 Panaji - Goa.

Dated - 16/12/2011

Read: Application dated Nil, from Mr. Pascoal Trindade, r/o. Bambolim, Tiswadi-Goa.

**SANAD  
 SCHEDULE-II**

(See Rule 7 of the Goa, Daman and Diu Land Revenue (Conversion of use of land and non-agricultural Assessment) Rules, 1969).

Whereas an application has been made to the Collector of North Goa (Hereinafter referred to as "the Collector" which expression shall include any officer whom the Collector shall appoint to exercise and perform his powers and duties under this grant) under section 32 of the Goa, Daman and Diu Land Revenue Code, 1968 (hereinafter referred to as "the said code" which expression shall, where the context so admits include the rules and orders thereunder) Mr. Pascoal Trindade, being the occupants of the plot registered under Survey No. 93/2 known as - Situated at village Bambolim, Tiswadi Taluka registered under Survey No. 93/2 (hereinafter referred to as "the applicants, which expression shall, where the context so admits include his/her heirs, executors, administrators and assigns) for the permission to use the plots of land (hereinafter referred to as the "said plot" described in the Appendix I hereto, forming a part Survey No. 93/2 measuring 32600 Square Metres be the same a little more or less for the purpose of Residential Use.

Now, this is to certify that the permission to use for the said plots is hereby granted, subject, to the provisions of the said code, and rules thereunder, and on the following conditions, namely:-

1. Levelling and clearing of the land - The applicants shall be bound to level and clear the land sufficiently to render suitable for the particular non-agricultural purpose for which the permission is granted to prevent insanitary conditions.

2. Assessment - The Applicants shall pay the non-agricultural assessment when fixed by the Collector under the said Code and rules thereunder with effect from the date of this sanad.

3. Use - The applicants shall not use the said land and building erected or to be erected thereon for any purpose other than Residential use, without the previous sanction of the Collector.

4. Liability for rates - The applicants shall pay all taxes, rates and cesses leviable on the said land.

5. Penalty clause - (a) if the applicants contravenes any of the foregoing conditions the Collector may, without prejudice to any other penalty to which the applicants may be liable under the provisions of the said Code continue the said plot in the occupation of the applicant on payment of such fine and assessment as he may direct.

(b) Notwithstanding anything contained in sub-clause (a) it shall be lawful for the Collector to direct the removal or alteration of any building or structure erected or to be erected thereon in contravention of the provisions of this grant within such time as specified in that behalf by the Collector, and on such removal or alteration not being carried out and recover the cost of carrying out the same from the applicant as an arrears of land revenue.

6. a) The Information, if any, furnished by the applicant for obtaining the Sanad is found to be false at later stage, the Sanad issued shall be liable to be withdrawn without prejudice to the legal action that may be taken against the applicant.

b) If any dispute arises with respect to the ownership of the land, the Sanad granted shall stand revoked and the Construction/Development carried out shall be at the cost and risk of the applicants.

c) The necessary road widening set-back to be maintained before any development in the land.

d) Traditional access passing through the plot, if any, shall be maintained.

e) No trees shall be cut except with prior permission of the competent authority.

Contd...

7. Code provisions applicable—Save as herein provided the grant shall be subject to the provisions of said Code and rules thereunder.

## APPENDIX-I

| Length and Breadth |               | Total Superficial Area | Forming (part of Survey No. or Illusa No. | BOUNDARIES                  |             |                   |                                  | Remarks |
|--------------------|---------------|------------------------|-------------------------------------------|-----------------------------|-------------|-------------------|----------------------------------|---------|
| North to South     | East to West  |                        |                                           | North                       | South       | East              | West                             |         |
| 1                  | 2             | 3                      | 4                                         | 5                           |             |                   |                                  | 6       |
| 346.0 Sq.mts       | 170.50 Sq.mts | 32600 Sq.mts           | Survey No. 93/2(Part)                     | S. No. 107/7, 107/11 & ROAD | S. No. 93/1 | S.No. 93/1 & ROAD | S. No. 93/2(Part), 106/1 & 103/1 | NIL     |
| Village: Bambolim  |               |                        |                                           |                             |             |                   |                                  |         |
| Taluka: Tiswadi    |               |                        |                                           |                             |             |                   |                                  |         |

## Remarks:-

1. The applicant has paid conversion fees of Rs. 8,15,000/- (Rupees Eight Lakh Fifteen Thousand Only) vide receipt No.11416 dated 09-12-2011.
2. The Conversion has been approved by the Town Planner, Town and Country Planning Department, Mapusa vide his report No. TIS/624/TCP/09/TCP/232 dated 04/03/09.
3. The development/construction in the plot shall be governed as per rules in force.
4. The Dy. Conservator of Forest has given No objection for grant of Conversion vide report No.5/CNV/TIS/DCFN/TECH/2809-10/102 DATED 07/05/2009
5. ~~The Dy. Collector, S.O. 1899 vide date 07/05/2009~~ 19/03/2011 3723 11/11/2011  
~~in witness whereof the Collector of North Goa district, has hereunto set his hand and the seal~~  
In witness whereof the COLLECTOR of North Goa district, has hereunto set his hand and the seal
- of his Office on behalf of the Administrator of Goa, Daman and Diu and Mr. Pascoal Triunidade, here also hereunto set his hands this 14<sup>th</sup> day of December, 2011.

(Pascont Trinidad)  
Applicant

Applicant: \_\_\_\_\_

(R. MUNIR VARDHAN)  
COLLECTOR OF NORTH GOA

Signature and Designature of Witnesses

- Signature and Designation of Witnesses
1. Pandurang - R. Pirashan. *gsh*
2. Benavento R. Fernandez *Ben*

Complete address of Witness

Complete address of Witness  
1.4 N. 557/2 Toluégou. T.S. Cont. N. 557/2

2. HW# 125/A/13 Baurline

We declare that Mr. Pascoal Trindade, who have signed this Sanad is, to our personal knowledge, the person he/she represents himself to be, and that he/she has affixed his/her signature hereto in our presence.

16.

1. The Town Planner, Town and Country Planning Department Tiswadi
2. The Mambudat of Tiswadi Taluka.
3. The Inspector of Survey and Land Records, Pannaji
4. The Sarpanch, Village Panchayat, Baimbale, Tiswadi Taluka

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... ..

Office of the Town Planner  
Town and Country Planning Department  
Tiswadi Taluka Office,  
Panaji, Goa

03/04/2012  
OFFICE OF THE TOWN PLANNER  
TOWN & COUNTRY PLANNING DEPT  
Y-21, 5th FLOOR, JAIRAM COMPLEX  
TISWADI TALUKA OFFICE  
MALA- PANAJI-GOA.

TECHNICAL CLEARANCE ORDER

Technical Clearance is hereby granted for carrying out the work of proposed construction of Residential Complex & Compound Wall as per the enclosed approved plans in the property zoned as Settlement (VP-1) in Regional Plan for Goa 2021 and situated at Bambolim village bearing Sy. No. 93/2(P) of Tiswadi Taluka with the following conditions:-

- 1) Construction shall be strictly as per approved plans. No change shall be effected in the approved plans/ approved built spaces without the prior permission of this authority.
- 2) The permission granted shall be revoked, if any information, plans, calculations, documents and any other accompaniments of the application are found incorrect or wrong at any stage after the grant of the permission and the applicant will not be entitled for any compensation.
- 3) The permission shall be revoked if found expedient to such an action under the provision of section 50 of the Goa Town & Country Planning Act 1974.
- 4) The development permission will not entitle the applicant for making/laying any claim on water and any other connection from the government of Goa.
- 5) The Developer/applicant should display a sign board of minimum size 1.00 mts x 0.50 mts with writing in black colour on a white background at the site, as required under the Regulations.
- 6) The applicant shall obtain conversion sanad under the Goa Land Revenue Code 1968, before the commencement of any development/construction as per the permission granted by this order.
- 7) The soak pit should not be located within a distance of 15.00 meters from any other existing well in the plot area/plan.
- 8) The commencement and the completion of the work shall be notified to this office in writing in appropriate forms.
- 9) Completion certificate has to be obtained from this office before applying for occupancy certificate from the licensing authority.
- 10) Storm water drain should be constructed along the boundary of the effected plot abutting to the road.
- 11) In case of compound walls, the gates shall be open inwards only and traditional access, if any passing through the property shall not be blocked.
- 12) Adequate utility space for the dustbin, transformer etc, should be reserved within the plot area. In case of any cutting of sloppy land or filling of low lying land, beyond permissible limits prior permission of the Chief Town Planner shall be obtained before the commencement of the works as per the provisions of section 17(A) of the Goa Town & Country Planning Act 1974.
- 13) The Ownership of the property shall be verified by the licensing body before issuing of the licence.

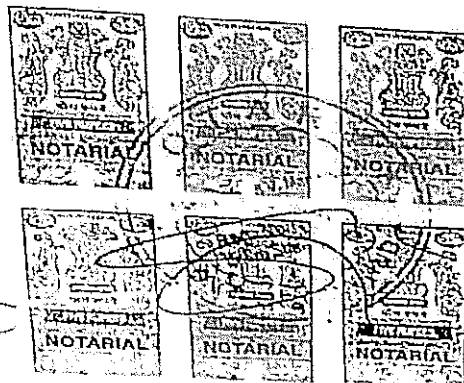
- 4) All the set back as shown on the site plan shall be strictly maintained.
  - 5) The balconies proposed should not be covered in any fashion, which may lead to access FAR.
  - 16) Along the intersection of the streets, no compound wall shall be raised to a height of more than 0.90 mts from the crown of the road for length of 0.9 mts from the intersection of the street. This distance being measured from the corner point of the plot.
  - 17) Maximum height of the compound wall along the boundary other than that abutting on a street may be permitted upto a height of 1.80 mts and along the boundary abutting on a street upto a 1.50 mts only and may be closed type upto a height of 90 cm only and of open type above that height.
  - 18) The still parking shown for building A & B should be strictly use for parking purpose only and it should not be close at any time.
  - 19) Appropriate system for collection of disposal of solid and liquid waste shall be provided.
  - 20) Solar water heating/Solar energy capturing system should be provided as per regulation.
  - 21) Fire Dept. clearance should be obtained if required.
  - 22) As the total built up area is more than 20,000 m<sup>2</sup> hence MOEF approval has to be obtained before obtaining the construction licence.
  - 23) All Permissions granted during the period of facilitation process of RPG - 21 shall be subject to review/revocation if found inconsistent with the criteria.
- This approval is accorded after Chief Town Planner's concurrence.
- THIS ORDER IS ISSUED WITH REFERENCE TO THE APPLICATION  
DATED 30/01/2012 FROM Shri. Pascoal Trindade.

Vertika Dagur  
Town Planner

NOTE: Pursuant to this office assessment order No. TIS/6124/BAM/TCP/12/308 dt. 26/03/2012, the applicant vide challan No. 399 dt. 26/3/12 has paid the Infrastructure tax of Rs. 20,91,749/- (Rupees twenty lakhs ninety one thousand seven hundred forty nine only).

To,  
Mr. Pascoal Trindade,  
Next to Post Office,  
Dona Paula, Tiswadi-Goa

Copy to:  
The Secretary,  
Office of the village Panchayat,  
Curca, Bambolim & Talaulim,  
Tiswadi Goa.



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## APPENDIX-C4

Village Panchayat Building LicenceVillage Panchayat Curca Bambolim & Talaulim, Tiswadi-Goa.CONSTRUCTION LICENCE

No VP/CRT/2013-14/Const/186

Date 02/05/2013

licence is hereby granted for carrying out the Construction of Residential Complex and compound wall as per enclosed plan and conditions therein should be strictly complied.

- a) As per the enclosed approval plan/plans in the property zoned as (VP-I) in the ODP and situated at Bambolim village/Town bearing Survey No. 93/2(P).
  - b) No Objection Certificate issued by Director of Health Service, Panaji-Goa, vide Ref.No. UHCP/DHS/NOC/12-13/326 dt. 27/04/2012 from conditions 1 to 12.
  - c) The Town Planner, Town & Country Planning Department, Tiswadi, Panaji Goa vide No. Tis/6124/BAM/TCP/12/384 dated 03/04/2012 from conditions 1 to 23.
1. The applicant shall notify the Panchayat for giving the alignment of the building.
  2. The construction should maintain the minimum prescribed horizontal and vertical clearance from any overhead electrical line passing adjacent to the construction.
  3. All RCC/Structural works shall be designed and supervised by the Engineer who has signed the Structural Liability Certificate submitted to the Panchayat.
  4. No material for construction or earth from excavation or any other construction material shall be stacked on the Public roads.
  5. The Building should not be occupied unless the Occupancy certificate is obtained from the Panchayat.
  6. The Construction licence shall be revoked if the construction work is not executed as per the approved plans and the statement therein and whenever there is any false statement or misrepresentation of any material; passed, approved or shown in the application on which the permit was based.
  7. The applicant should construct a separate soak pit in order to derivate in the sullage water.
  8. Any soak pit should be constructed at a minimum distance of 15 meters away from any well.
  9. The ventilation pipe of the septic tank should be provided with a mosquito net.
  10. The Applicant should connect the pipeline from their latrines/WC's to the sewerage line at their own cost, when the sewerage line is commissioned.
  11. The Applicant should fix a board at a prominent place whenever the construction is started, including the number, the date and the authority for which the licence for development work has been granted.
  12. All the building material and other rubbish should be cleared from the construction site before applying for the Occupancy certificate.
  13. Water storage tanks shall be provided with mosquito proof lids and over flow pipes. The tanks should be provided with access ladders wherever necessary.
  14. The drains surrounding the plot if any should be constructed with PCC and should be covered with removable RCC slabs of sufficient thickness.
  15. The applicant should gift the road widening area to the Village Panchayat before applying for the Occupancy certificate, if the applicant has utilized the extra FAR in lieu of the road widening affecting the plot.
  16. The applicant should plaster and paint the building internally as well as externally before applying for Occupancy certificate. Exposed brick/laterite/concrete/stone/ashlars masonry finish to building will also be permitted.



Cont....2...

...2...

17. The applicant should provide a dustbin at a convenient place accessible for the Municipal vehicle for collection of garbage.
18. Road widening area shall be asphalted to the existing road level before applying for occupancy certificate.
19. Garbage and Parking area shown in the approved plan shall be strictly used for parking purpose only and should be easily accessible to vehicles. No commercial activities shall be allowed in these areas.
20. Access up to the entrance of the building is to be paved and is provided with drainage facilities.
21. Space for parking of vehicles is clearly demarcated on the ground.
22. No Restaurants/Bars will be permitted in the shops unless a separate soak pit is provided besides confirming to the rules in force.
23. No commercial activities will be permitted in the shops unless a separate permission is obtained from this Panchayat.
24. All Temporary sheds/Existing buildings shown to be demolished in the plan are demolished before applying for Occupancy certificate.
25. Fire Escape staircase, if applicable shall be constructed as indicated in the approved plans.
26. All internal courtyards should be provided with drainage outlet.
27. The applicant should maintain all existing natural drains in the plot and should not block them at any stage.
28. No soak pit or other structure should come in the road widening area.
29. The plot boundary should be cordoned off by continuous sheet fencing either of wood or metal during the construction period.
30. The construction of compound wall should not obstruct any pathway or any public access. The applicant shall make necessary arrangement for smooth flow of rain water by keeping adequate opening in the compound wall for all purpose.
31. No gates shall open outwards on to the road.
32. The construction of the compound wall should be as per the approved plan. The applicant shall inform this Panchayat after the completion of the compound wall.
33. Drinking water well should be 15 meters away from any soak pit.

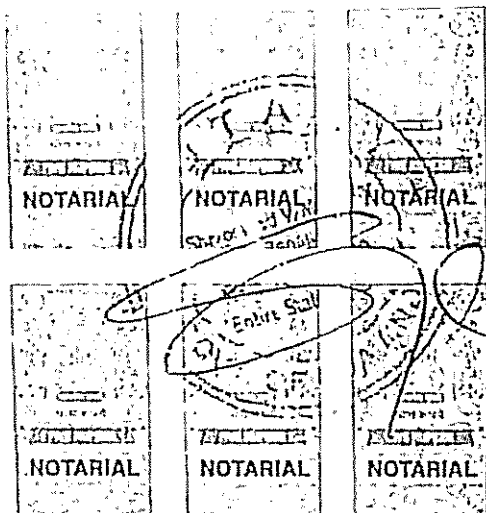
This Construction licence is issued as per the Resolution No.5-1(a) held on 30/04/2013 in Panchayat meeting and Construction licence fees to the tune of Rs. 8,54,079/- is collected vide Receipt No. 106/61 dt. 02/05/2013.

THIS LICENCE IS VALID FOR A PERIOD OF THREE YEARS FROM THE DATE OF ISSUE OF THIS LICENCE. RENEWAL IF REQUIRED SHALL BE APPLIED WITHIN THE PERIOD OF THE VALIDITY OF THE LICENCE.



To,  
Mr. Pascoal Trindade,  
Palbrika Mansion,  
Near White house,  
Dona Paula, Tiswadi-Goa.

(Jenu P. Nair)  
SECRETARY  
V. P. CURCA BAMBOLIM & TALUK



CERTIFIED TRUE COPY

REG. No. 7712 DATED 12/12

NOTARY PUBLIC  
STATE OF TEXAS

GOA STATE ENVIRONMENT IMPACT ASSESSMENT AUTHORITY

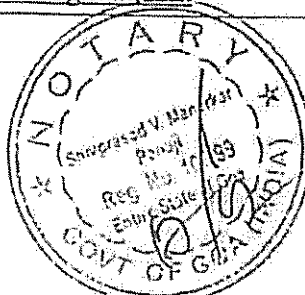
EIA-Goa State Secretariat,  
O/o Goa State Pollution Control Board (GSPCB),  
1<sup>st</sup> Floor, Dempo Towers, Patto, Panaji, Goa - 403 001  
Phone nos.: 2438528 Fax. no.: 2438567

e-mail: goaseac@gmail.com

No: 3 - 181 - 2010/STE-DIR/105

Date: 22 March 2013

To,  
Mr. Pascoal Trindade,  
Palbrica Mansion,  
Near White House,  
Donapaula, Goa.



Sub.: Proposed residential project in Survey no. 93/2 of Bambolim village in Tiswadi taluka of North Goa district. - reg.,

Sir,

I am directed to refer to your application dated 7<sup>th</sup> November 2012 seeking prior Environmental Clearance (EC) for the above project under the EIA Notification, 2006. Accordingly, the above proposed has been screened and appraised under Category 8 (a) on the basis of the documents enclosed with application viz. Form 1 and Form 1A (conceptual plan) as well as in response to the project-specific observations (*i.e. project presentation followed by site-inspection*) considered by the Goa State Expert Appraisal Committee (Goa-SEAC) in its Tenth meeting held on 11<sup>th</sup> December 2012 and Goa State Environment Impact Assessment Authority (Goa-SEIAA) in its Sixth and Seventh meeting held on 7<sup>th</sup> February 2013 and 15<sup>th</sup> March 2013 respectively.

2. It is noted that the proposal is for grant of prior Environmental Clearance (EC) for the construction a new residential project (*i.e. 111 units with G+4 structure including 72 flats and 39 villas*) in Survey no. 93/2 of Bambolim village in Tiswadi taluka of North Goa district. Project details and salient features of the proposed developmental activity is as under -

- a. Total plot area - 35,600 sq. mt.
- b. Area under No Development Zone - 600 sq.mts.
- c. Area under road widening - 120 sq.mts.
- d. Effective plot area - 34,880 sq. mts.
- e. Proposed built-up area - 26,313.69 sq.mts.
- f. Open space proposed - 5,245 sq. mts.
- g. Proposed covered area - 9,219.32 sq.mts.
- h. Proposed area for green-belt - 10,000 sq.mts.

- i. Expected total occupancy - 850 persons
- j. Parking proposed - 217 ECS
- k. Geo-technical soil investigation has been proposed.
- l. Water requirement -

*During Construction phase - 55m<sup>3</sup>/day to be sourced from private tankers.*

*During operational phase - 125m<sup>3</sup>/d (i.e. 75 m<sup>3</sup>/d sourced from PWD and 50 m<sup>3</sup>/d sourced from recycled water from STP)*

- m. One time water demand for fire-fighting - 200 m<sup>3</sup>.
- n. PP has proposed to construct underground water storage tanks (50 m<sup>3</sup> capacity for every building.
- o. Wastewater generated - 100 m<sup>3</sup>/d to be treated in 120 CMD Sewage Treatment Plant (STP) with Moving Bed Bio-Reactor (MBBR) technology. 80 kgs./month of sludge generated is to be used as manure. It is proposed that recycled water will be used for flushing, car washing / gardening.

- p. Solid waste generated -

*During construction phase - 50 kgs./day of domestic waste to be disposed-off through local authorities and 200 kgs./day of debris generated to be used for land-filling within the plot.*

*Hazardous waste generated (i.e. used oil from D.G. sets (20 kgs./m during construction and 10 kgs./m during operation) will be suitably disposed-off.*

*During operational phase - 425 kgs./day - biodegradable waste (255 kgs./d) to be treated through in-house mechanical composting. While, non-biodegradable waste (170 kgs./d) to be disposed through authorized recycler.*

- q. Power requirement :

*Construction phase - 100 KVA to be sourced from GSEB / Diesel generator.*

*Operation phase - 800 KVA, to be sourced from Goa State Electricity Board.*

*Back-up power through 01 DG sets of 65 KVA capacity.*

- r. EMP has been prepared.

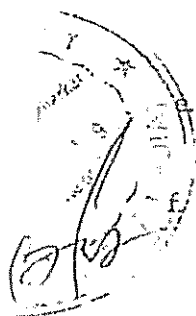
3. In view of the above and based on the recommendations of the Goa-SEAC; Goa-SEIAA, subsequent to compliances sought to project-specific observations / site-specific clarifications, has decided to accord prior Environmental Clearance (EC) to the said project under the provision of the Environment Impact Assessment (EIA) Notification, 2006; subject to compliance to the following "General Conditions":-

- a. Nutrient-rich top soil excavated during the construction phase be separately dumped/stored within the project area and be utilized during landscape development instead of using the same as filling material/reclamation.

Accordingly, Project Proponent (PP) should estimate approximate tonnage / volume of top soil required to be excavated along with the plan indicating the location where such topsoil is proposed to be stockpiled as well as indicate/furnish proposed plan for its utilization towards landscaping.

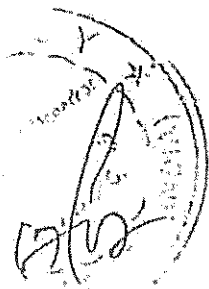
- b. The PP should use Ready-Mixed Concrete (RMC) to minimize air / water / land pollution and water usage during the construction phase.
- c. The Project Proponent (PP) should necessarily explore the possibility of energy conservation by tapping solar-based or hybrid energy sources towards power requirements.
- d. PP should adopt roof-top rainwater harvesting / conservation measures in the form of storing the harvested water so as to optimally utilize the water availability by constructing sumps for collection of rainwater or by collecting water in large polythene tanks thereby saving on utilization of tap water. Accordingly, PP should furnish approximate quantity of the water proposed to be stored / conserved which should be proportionate with the available rainfall within the developmental area. This should be in addition to structures, proposed if any, namely recharge-pits, which would recharge the groundwater aquifers. Thus, PP should submit a plan demarcating the areas for water storage / bore well location & groundwater recharge structures / STP installation, etc.
- e. As a Corporate Social Responsibility (CSR), the PP should establish / assist in establishing a non-project based infrastructure facility for nearby society / community / local authority and set-up a precedent for other competitors so as to achieve bottom-top approach.
- f. PP should prioritize the issues related to health and hygiene in complying with the matters related to waste disposal & treatment / air & water pollution / waste-water management.
- g. PP should not disturb the natural drainage and as far as possible maintain the original topography while designing for landscape development by planting local site-specific plant species and which are not alien to the local environment. No any varieties of *acacia* be used either as avenue plantations or as live-fencing.
- h. PP should clarify any issue related to public objections, if any, and should not conceal the scientific facts in light of the proposed developmental activity vis-à-vis its landuse categorization/zoning.
- i. PP should also submit half-yearly compliance report(s) in hard as well as soft copy format to the O/o the Goa-SBAC and Goa-SEIAA for the period upto project completion so as to enable project monitoring during the construction phase.

- j. Considering the existing land use / land cover of the plot area, the PP should necessarily adapt roof-top rainwater harvesting system for optimum utilization of water resources, especially for landscape development and its maintenance.
4. Further, the project proponent has been advised as regard to the following:
  - a. 'Consent to Establish' shall be obtained from the Goa State Pollution Control Board (GSPCB) under Air Act and Water Act, as applicable and a copy shall be submitted to the O/o the Goa-SEAC and Goa-SEIAA.
  - b. Permission to draw groundwater, if any, shall be obtained from the Groundwater Cell of the Water Resources Department (WRD) prior to construction/ operation of the project.
  - c. Project proponent shall not make any change in the Layout Plan / Master Plan submitted to the Authority without its prior permission. In case of any change(s) in the scope of the project and/or otherwise, the project would require a fresh appraisal by the competent authority, as applicable.
  - d. Traffic congestion near the entry and exit points from the roads adjoining the proposed project site must be avoided. Parking should be fully internalized and no public space should be utilized for the same.
  - e. Project proponent shall make suitable provisions for waste water treatment and storm water disposal independently.
  - f. The diesel generator sets to be used during construction / after commissioning should be low sulphur diesel type and should conform to Environment (Protection) Rules prescribed for air and noise emission standards.
  - g. The installation of the Sewage Treatment Plant (STP) should be certified by the Goa State Pollution Control Board (GSPCB) and a report in this regard should be submitted to the Authority before the project is commissioned for operation.
  - h. Project proponent shall advertise at least in two local newspapers widely circulated in the region around the project, one of which shall be in the Konkani and Marathi language within seven days of the receipt of this letter, informing that the project has been accorded prior Environmental Clearance (EC) and the copies of the clearance letter are available on the DST&E website.
  - i. The Environmental Clearance is being issued without prejudice to the court case pending in the Court of law and it does not mean that project proponent has not violated any environmental laws in the past and whatever decision of the Hon'ble Court will be binding on the project



proponent. Hence, this EC does not give immunity to the proponent in the case filed against it.

- j. The Authority reserves the right to add any stringent conditions or to revoke the EC, if conditions stipulated are not implemented / complied with to the satisfaction of the Authority or for that matter, for any other administrative reasons.
- k. Validity of the Environmental Clearance (EC) accorded shall be for a period of 05 (five) years from the date of its issue.
- l. Any appeal against this prior environmental clearance shall lie with the National Green Tribunal (NGT), if preferred, within 30 days as prescribed under Section 16 of the National Green Tribunal Act, 2010 (Central Act 19 of 2010).



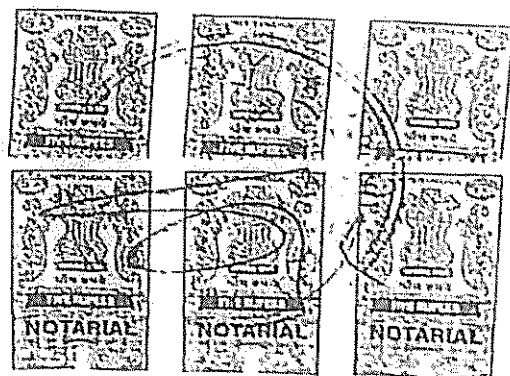
Yours faithfully,

(Levinson J. Martins)  
Director/ex-officio Jt. Secy. (STE) &  
Member Secretary, Goa-SEIAA

Copy for favour of information to:

1. Mr. Jose Manuel Noronha, Chairman, Goa-SEIAA, House No. 946/K, Bagbhat, Raia, Salcete, Goa- 403 720.
2. Dr. S. P. Fondekar, Chairman, Goa-SEAC, 150/ A, 1<sup>st</sup> Floor, Near Arora Gas Service, Malbhat, Margao, Goa - 403 601.
3. O. S. D. to Minister for Environment, Secretariat, Porvorim, Goa.
4. P. A. to Principal Secretary (Environment), Secretariat, Porvorim, Goa.
5. P. S. to Additional Secretary, Ministry of Environment & Forests (MoEF), Paryavaran Bhavan, C.G.O. Complex, Lodhi Road, New Delhi - 110 510.
6. Member Secretary, Goa State Pollution Control Board (GSPCB), 1<sup>st</sup> Floor, Dempo Towers, Pato, Panaji, Goa - 403 001

7715 12/12



No. RD/CNVTS/135/2008  
Government of Goa.  
Office of the Collector,  
North Goa District,  
Pannaji - Goa.

Dated :- 16/12/2011

Re: Application dated Nil, from Mr. Pascoal Trindade, r/o. Bambolim, Tiswadi-Goa.

**SANAD  
SCHEDULE-II**

( See Rule 7 of the Goa, Daman and Diu Land Revenue (Conversion of use of land and non-agricultural Assessment ) Rules, 1969).

Whereas an application has been made to the Collector of North Goa (Hereinafter referred to as "the Collector" which expression shall include any officer whom the Collector shall appoint to exercise and perform his powers and duties under this grant) under section 32 of the Goa, Daman and Diu Land Revenue Code, 1968 (hereinafter referred to as "the said code which expression shall, where the context so admits include the rules and orders thereunder) Mr. Pascoal Trindade, being the occupants of the plot registered under Survey No. 93/3(Part) known as - Situated at village Bambolim, Tiswadi Taluka registered under Survey No. 93/3(Part) (hereinafter referred to as "the applicants, which expression shall, where the context so admits include his/her heirs, executors, administrators and assigns) for the permission to use the plots of land (hereinafter referred to as the "said plot" described in the Appendix I hereto, forming a part Survey No. 93/3(Part) admeasuring 10000 Square Metres be the same a little more or less for the purpose of Residential Use.

Now, this is to certify that the permission to use for the said plots is hereby granted, subject, to the provisions of the said code, and rules thereunder, and on the following conditions, namely:-

**1. Levelling and clearing of the land** - The applicants shall be bound to level and clear the land sufficiently to render suitable for the particular non-agricultural purpose for which the permission is granted to prevent insanitary conditions.

**2. Assessment** - The Applicants shall pay the non-agricultural assessment when fixed by the Collector under the said Code and rules thereunder with effect from the date of this sanad.

**3. Use** - The applicants shall not use the said land and building erected or to be erected thereon for any purpose other than Residential use, without the previous sanction of the Collector.

**4. Liability for rates** - The applicants shall pay all taxes, rates and cesses leviable on the said land.

**5. Penalty clause** - (a) if the applicants contravenes any of the foregoing conditions the Collector may, without prejudice to any other penalty to which the applicants may be liable under the provisions of the said Code continue the said plot in the occupation of the applicant ~~the applicant~~ of such fine and assessment as he may direct.

(b) Notwithstanding anything contained in sub-clause (a) ~~it shall be lawful for the Collector to direct~~ the removal or alteration of any building or structure erected or use ~~thereon~~ within such time as specified in that behalf by the Collector, and on such removal or alteration not being carried out and recover the cost of carrying out the same from the applicant as an arrears of land revenue.

6.a) The information, if any, furnished by the applicant for obtaining the Sanad is found to be false at later stage, the Sanad issued shall be liable to be withdrawn without prejudice to the legal action that may be taken against the applicant.

b) If any dispute arises with respect to the ownership of the land, the Sanad granted shall stand revoked and the Construction/Development carried out shall be at the cost and risk of the applicants.

c) The necessary road widening set-back to be maintained before any development in the land.

d) Traditional access passing through the plot, if any, shall be maintained.

e) No trees shall be cut except with prior permission of the competent authority.

Contd...

7. Code provisions applicable - Save as herein provided the grant shall be subject to the provisions of the said Code and rules thereunder.

# APPENDIX - I

| Length and Breadth                   |               | Total Superficial Area | Forming (part of Survey No. or Hissa No. | BOUNDARIES   |                   |            |                   | Remarks |
|--------------------------------------|---------------|------------------------|------------------------------------------|--------------|-------------------|------------|-------------------|---------|
| North to South                       | East to West  |                        |                                          |              |                   |            |                   |         |
| 1                                    | 2             | 3                      | 4                                        | 5            |                   |            |                   | 6       |
|                                      |               |                        |                                          | North        | South             | East       | West              |         |
| 110.00 Sq.mts                        | 128.90 Sq.mts | 10000 Sq.mts           | Survey No. 93/3(Part)                    | S. No. 103/1 | S. No. 93/3(Part) | S.No. 93/1 | S. No. 93/3(Part) | NIL     |
| Village: Bambolim<br>Taluka: Tiswadi |               |                        |                                          |              |                   |            |                   |         |

## Remarks:-

1. The applicant has paid conversion fees of Rs. 2,50,000/- (Rupees Two Lakh Fifty Thousand Only) vide receipt No.11414 dated 09-12-2011.
  2. The Conversion has been approved by the Town Planner, Town and Country Planning Department Mapusa vide his report No. TIS/6/25/TCP/09/TCP/233 dated 04/03/09.
  3. The development/construction in the plot shall be governed as per rules in force.
  4. The Dy. Conservator of Forest has given No objection for grant of Conversion vide report No.5/CNV/TIS/DCFN/TECH/2009-10/107 DATED 07/05/2009
- In witness whereof the COLLECTOR of North Goa district, has hereunto set his hand and the seal of his Office on behalf of the Administrator of Goa, Daman and Diu and Mr. Pascoal Trindade, here also hereunto set his hands this 16<sup>th</sup> day of December, 2011.

(Pascoal Trindade)  
Applicant

(R. MIHIR VARDHAN)  
COLLECTOR OF NORTH GOA



## Signature and Designation of Witnesses

1. Pandurang R. Purnan Son.

2. Pascoal B. Faleiro

## Complete address of Witness

1. 1404-5537/E Talasna. Tiswadi. Goa

2. Hvt 128/A/B Bambolim

We declare that Mr. Pascoal Trindade, who have signed this Sanad is, to our personal knowledge, the person he/She represents himself to be, and that he/She has affixed his/her signature hereto in our presence.

1. Sm.

2. Sm.

To,

1. The Town Planner, Town and Country Planning Department Tiswadi.
2. The Mamlatdar of Tiswadi Taluka.
3. The Inspector of Survey and Land Records, Panaji
4. The Sarpanch, Village Panchayat, Bambolim, Tiswadi Goa

Ref. No. TIS/7554/BAM/CEP/13/372  
 Office of the Town Planner,  
 Town and Country Planning Department  
 Tiswadi Taluka Office,  
 Panaji, Goa.

Dated: 27-2-2013

OFFICE OF THE TOWN PLANNER  
 TOWN & COUNTRY PLANNING DEPT  
 Y-21, 5th FLOOR, JAIRAM COMPLEX  
 TISWADI TALUKA OFFICE  
 MALA- PANAJI-GOA.

#### TECHNICAL CLEARANCE ORDER

Technical Clearance is hereby granted for carrying out the work of proposed construction of Residential Complex and Compound wall as per the enclosed approved plans in the property zoned as (VP-1) in Outline Development Plan of Panaji (old ODP) situated at Bambolim village of Tiswadi Taluka bearing Sy.No.93/3(P) with the following conditions:-

- 1) Construction shall be strictly as per approved plans. No change shall be effected in the approved plans/approved built spaces without the prior permission of this authority.
- 2) The permission granted shall be revoked, if any information, plans, calculations, documents and any other accompaniments of the application are found incorrect or wrong at any stage after the grant of the permission and the applicant will not be entitled for any compensation.
- 3) The permission shall be revoked if found expedient to such an action under the provision of section 50 of the Goa Town & Country Planning Act 1974.
- 4) The development permission will not entitle the applicant for making/laying any claim on water and any other connection from the government of Goa.
- 5) The Developer/applicant should display a sign board of minimum size 1.00 mts x 0.50 mts with writing in black colour on a white background at the site, as required under the Regulations.
- 6) The applicant shall obtain conversion sanad under the Goa Land Revenue Code 1968, before the commencement of any development/construction as per the permission granted by this order.
- 7) The soak pit should not be located within a distance of 15.00 meters from any other existing well in the plot area/plan.
- 8) The commencement and the completion of the work shall be notified to this office in writing in appropriate forms.
- 9) Completion certificate has to be obtained from this office before applying for occupancy certificate from the licensing authority.
- 10) Storm water drain should be constructed along the boundary of the effected plot abutting to the road.
- 11) Adequate utility space for the dustbin, transformer etc, should be reserved within the plot area.
- 12) In case of any cutting of sloppy land or filling of low lying land, beyond permissible limits prior permission of the Chief Town Planner shall be obtained before the commencement of the works as per the provisions of section 17(A) of the Goa Town & Country Planning Act 1974.
- 13) In case of compound walls, the gates shall be open inwards only and traditional access, if any passing through the property shall not be blocked.

- 14) The Ownership of the property shall be verified by the licensing body before issuing of the licence.
- 15) All the set back as shown on the site plan shall be strictly maintained.
- 16) The balconies proposed should not be covered in any fashion, which may lead to access FAR.
- 17) Along the intersection of the streets, no compound wall shall be raised to a height of more than 0.90 mts from the crown of the road for length of 0.9mts from the intersection of the street. This distance being measured from the corner point of the plot.
- 18) Maximum height of the compound wall along the boundary other than that abutting on a street may be permitted upto a height of 1.80 mts and along the boundary abutting on a street upto a 1.50 mts only and may be closed type upto a height of 90 cm only and of open type above that height.
- 19) Proposed stilt for parking shall be strictly used for parking of vehicles only and shall not be closed at any point of time.
- 20) Collection and disposal of solid and liquid waste shall be implemented as per the project report submitted.
- 21) Solar water heating/solar energy capturing system shall be implemented as per the project report submitted.
- 22) Fire department clearance shall be obtained if required.
- 23) This NOC is issued with Government approval.
- 24) The applicant should complete the approach road as per the PWD specification before obtaining occupancy certificate.

THIS ORDER IS ISSUED WITH REFERENCE TO THE APPLICATION UNDER INWARD NO.6234 DATED 10/9/12 FROM Mr. Pascoal Trindade.

(THIS ORDER IS VALID FOR THREE YEARS FROM THE DATE OF ISSUE OF CONSTRUCTION LICENCE, PROVIDED THE CONSTRUCTION LICENCE IS ISSUED WITHIN THE PERIOD OF THREE YEARS).

  
(Vertika Dagur)  
Town Planner

NOTE: Pursuant to this office assessment order No. TIS/7544/BAM/TCP/13/372 dt. 27/2/13 the applicant vide challan No. 625 dt. 27/2/13 has paid the Infrastructure tax of Rs. 9,08,100/- (Rupees Nine lakh Eight thousand One hundred only).

To,  
✓ Mr. Pascoal Trindade,  
Dona Paula,  
Panaji-Goa.  
Copy to:

The Secretary,  
Office of the village Panchayat,  
Curca, Bambolim & Talaulim,  
Tiswadi Goa.

## APPENDIX-C4

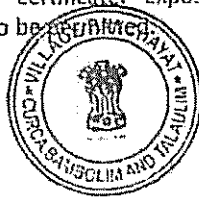
Village Panchayat Building LicenceVillage Panchayat Curca Bambolim & Talaulim, Tiswadi-Goa.CONSTRUCTION LICENCE

No. VP/CBT/2013-14/Const/88

Date: 16/04/2012

Licence is hereby granted for carrying out the Construction of Residential Complex and compound wall as per enclosed plan and conditions therein should be strictly complied.

- a) As per the enclosed approval plan/plans in the property zoned as (VP-I) in the ODP and situated at Bambolim village/Town bearing Survey No. 93/3(P).
- b) No Objection Certificate issued by Director of Health Service, Panaji-Goa, vide Ref.No. UHCP/DHS/NOC/12-13/3557 dt. 13/03/2013 from conditions 1 to 10.
- c) The Town Planner, Town & Country Planning Department, Tiswadi, Panaji Goa vide No. Tis/7554/BAM/TCP/13/377 dated 27/02/2013 from conditions 1 to 24.
1. The applicant shall notify the Panchayat for giving the alignment of the building.
2. The construction should maintain the minimum prescribed horizontal and vertical clearance from any overhead electrical line passing adjacent to the construction.
3. All RCC/Structural works shall be designed and supervised by the Engineer who has signed the Structural Liability Certificate submitted to the Panchayat.
4. No material for construction or earth from excavation or any other construction material shall be stacked on the Public roads.
5. The Building should not be occupied unless the Occupancy certificate is obtained from the Panchayat.
6. The Construction licence shall be revoked if the construction work is not executed as per the approved plans and the statement therein and whenever there is any false statement or misrepresentation of any material; passed, approved or shown in the application on which the permit was based.
7. The applicant should construct a separate soak pit in order to derivate in the sullage water.
8. Any soak pit should be constructed at a minimum distance of 15 meters away from any well.
9. The ventilation pipe of the septic tank should be provided with a mosquito net.
10. The Applicant should connect the pipeline from their latrines/WC's to the sewerage line at their own cost, when the sewerage line is commissioned.
11. The Applicant should fix a board at a prominent place whenever the construction is started, including the number, the date and the authority for which the licence for development work has been granted.
12. All the building material and other rubbish should be cleared from the construction site before applying for the Occupancy certificate.
13. Water storage tanks shall be provided with mosquito proof lids and over flow pipes. The tanks should be provided with access ladders wherever necessary.
14. The drains surrounding the plot if any should be constructed with PCC and should be covered with removable RCC slabs of sufficient thickness.
15. The applicant should gift the road widening area to the Village Panchayat before applying for the Occupancy certificate, if the applicant has utilized the extra FAR in lieu of the road widening affecting the plot.
16. The applicant should plaster and paint the building internally as well as externally before applying for Occupancy certificate. Exposed brick/laterite/concrete/stone/ashlars masonry finish to building will also be required.



*Handwritten signature/initials over a large 'X' mark.*

Cont....2...

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17. The applicant should provide a dustbin at a convenient place accessible for the Municipal vehicle for collection of garbage.
18. Road widening area shall be asphalted to the existing road level before applying for occupancy certificate.
19. Garbage and Parking area shown in the approved plan shall be strictly used for parking purpose only and should be easily accessible to vehicles. No commercial activities shall be allowed in these areas.
20. Access up to the entrance of the building is to be paved and is provided with drainage facilities.
21. Space for parking of vehicles is clearly demarcated on the ground.
22. No Restaurants/Bars will be permitted in the shops unless a separate soak pit is provided besides confirming to the rules in force.
23. No commercial activities will be permitted in the shops unless a separate permission is obtained from this Panchayat.
24. All Temporary sheds/Existing buildings shown to be demolished in the plan are demolished before applying for Occupancy certificate.
25. Fire Escape staircase, if applicable shall be constructed as indicated in the approved plans.
26. All internal courtyards should be provided with drainage outlet.
27. The applicant should maintain all existing natural drains in the plot and should not block them at any stage.
28. No soak pit or other structure should come in the road widening area.
29. The plot boundary should be cordoned off by continuous sheet fencing either of wood or metal during the construction period.
30. The construction of compound wall should not obstruct any pathway or any public access. The applicant shall make necessary arrangement for smooth flow of rain water by keeping adequate opening in the compound wall for all purpose.
31. No gates shall open outwards on to the road.
32. The construction of the compound wall should be as per the approved plan. The applicant shall inform this Panchayat after the completion of the compound wall.
33. Drinking water well should be 15 meters away from any soak pit.

This Construction licence is issued as per the Resolution No. 5(1) held on 12/04/2013 in Panchayat meeting and Construction licence fees to the tune of Rs. 2,59,200/- is collected vide Receipt No. 105/76 dt. 16/04/2013.

THIS LICENCE IS VALID FOR A PERIOD OF THREE YEARS FROM THE DATE OF ISSUE OF THIS LICENCE. RENEWAL IF REQUIRED SHALL BE APPLIED WITHIN THE PERIOD OF THE VALIDITY OF THE LICENCE.

To,  
Mr. Pascoal Trindade,  
Palbrika Mansion,  
Near White house,  
Dona Paula, Tiswadi-Goa.



(Jenu P. Naik)  
SECRETARY  
V. P. CURCA SANVORDOLIM & TALAULIM

No.RB/CNV/TIS/03/2009  
Government of Goa,  
Office of the Collector,  
North Goa District,  
Panaji-Goa.

Dated :-16/12/2011

Read: Application dated Nil, from Mr. Pascoal Trindade, r/o. Bambolim, Tiswadi-Goa.

**SANAD  
SCHEDULE-II**

( See Rule 7 of the Goa, Daman and Diu Land Revenue (Conversion of use of land and non-agricultural Assessment) Rules, 1969).

Whereas an application has been made to the Collector of North Goa (Hereinafter referred to as 'the Collector' which expression shall include any officer whom the Collector shall appoint to exercise and perform his powers and duties under this grant) under section 32 of the Goa, Daman and Diu Land Revenue Code, 1968 (hereinafter referred to as 'the said code which expression shall, where the context so admits include the rules and orders thereunder) Mr. Pascoal Trindade, being the occupants of the plot registered under Survey No. 93/4(Part) known as - Situated at village Bambolim, Tiswadi Taluka registered under Survey No. 93/4(Part) (hereinafter referred to as 'the applicants, which expression shall, where the context so admits include his/her heirs, executors, administrators and assigns) for the permission to use the plots of land (hereinafter referred to as the 'said plot' described in the Appendix I hereto, forming a part Survey No. 93/4(Part) admeasuring 32920 Square Metres be the same a little more or less for the purpose of Residential Use.

Now, this is to certify that the permission to use for the said plots is hereby granted, subject, to the provisions of the said code, and rules thereunder, and on the following conditions, namely:-

1. Levelling and clearing of the land-The applicants shall be bound to level and clear the land sufficiently to render suitable for the particular non-agricultural purpose for which the permission is granted to prevent insanitary conditions.

2. Assessment - The Applicants shall pay the non-agricultural assessment when fixed by the Collector under the said Code and rules thereunder with effect from the date of this sanad.

3. Use-The applicants shall not use the said land and building erected or to be erected thereon for any purpose other than Residential use, without the previous sanction of the Collector.

4. Liability for rates-The applicants shall pay all taxes, rates and cesses leviable on the said land.

5. Penalty clause-(a) if the applicants contravenes any of the foregoing conditions the Collector may, without prejudice to any other penalty to which the applicants may be liable under the provisions of the said Code continue the said plot in the occupation of the applicants for such fine and assessment as he may direct.

(b) Notwithstanding anything contained in sub-clause (a) it shall be lawful for the Collector to direct the removal or alteration of any building or structure erected or use contrary to the provisions of this grant within such time as specified in that behalf by the Collector, and on such removal or alteration not being carried out and recover the cost of carrying out the same from the applicant as an arrears of land revenue.

6.a) The Information, if any, furnished by the applicant for obtaining the Sanad is found to be false at later stage, the Sanad issued shall be liable to be withdrawn without prejudice to the legal action that may be taken against the applicant.

b) If any dispute arises with respect to the ownership of the land, the Sanad granted shall stand revoked and the Construction/Development carried out shall be at the cost and risk of the applicants.

c) The necessary road widening set-back to be maintained before any development in the land.

d) Traditional access passing through the plot, if any, shall be maintained.

e) No trees shall be cut except with prior permission of the competent authority.

Contd...

- 2 -

7. Code provisions applicable-Save as herein provided the grant shall be subject to the provisions of said Code and rules thereunder.

## APPENDIX - I

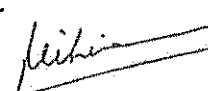
| Length and Breadth |               | Total Superficial Area | Farming (part of Survey No. or Hissa No. | BOUNDARIES  |                               |            |                              | Remarks |
|--------------------|---------------|------------------------|------------------------------------------|-------------|-------------------------------|------------|------------------------------|---------|
| North to South     | East to West  |                        |                                          | North       | South                         | East       | West                         |         |
| 1                  | 2             | 3                      | 4                                        | 5           |                               |            |                              | 6       |
| 173.75 Sq.mts      | 177.75 Sq.mts | 32920 Sq.mts           | Survey No. 93/4(Part)                    | S. No. 94/0 | S. No. 97/0 & VILLAGE SIRIDAO | S.No. 93/1 | S. No. 93/4(P) & S. No. 96/0 | NIL     |
| Village: Bambolim  |               |                        |                                          |             |                               |            |                              |         |
| Taluka: Tiswadi    |               |                        |                                          |             |                               |            |                              |         |

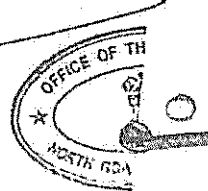
Remarks:-

1. The applicant has paid conversion fees of Rs. 8,23,000/- (Rupees Eight Lakh Twrnty Three Thousand Only) vide receipt No.11484 dated 13-12-2011.
2. The Conversion has been approved by the Town Planner, Town and Country Planning Department, Mapusa vide his report No. TIS/6087/TCP/11/TCP/1755 dated 28/11/2011
3. The development/construction in the plot shall be governed as per rules in force.
4. Traditional access, passing through the plot, if any, shall be maintained.
5. The Dy. Conservator of Forest has given No objection for grant of Conversion vide report No.5/CNV/TIS/DCFN/TECH/2009-10/108 DATED 07/05/2009
6. The Dy. Collector & S.D.O Panaji vide letter No. ILL/CNV/TIS/19/2009-3723 dated 31/10/2011 reported that Sy. No.93/4(P) is not a tenanted land.

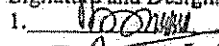
In witness whereof the COLLECTOR of North Goa district, has hereunto set his hand and the seal of his Office on behalf of the Administrator of Goa, Daman and Diu and Mr. Pascoal Trindade, here also hereunto set his hands this 16<sup>th</sup> day of December, 2011.

  
(Pascoal Trindade)  
Applicant

  
(R. MIHIR VARDHAN)  
COLLECTOR OF NORTH GOA



Signature and Designation of Witnesses

1.  (M.V. Bardeni)
2.  (P.R. Puroshan)

Complete address of Witness

1. H.No. 179/23, Alto Bella Vista, Loupda
2. H.No. 557/E Taligao, Tiswadi

We declare that Mr. Pascoal Trindade, who have signed this Sanad is, to our personal knowledge, the person he/She represents himself to be, and that he/She has affixed his/her signature hereto in our presence.

1. 
2. 

To,

1. The Town Planner, Town and Country Planning Department Tiswadi
2. The Mamlatdar of Tiswadi Taluka.
3. The Inspector of Survey and Land Records, Panaji
4. The Sarpanch, Village Panchayat, Bambolim, Tiswadi Goa

TIS/6087/BAM/TCP/12/1045  
 Office of the Town Planner  
 Town and Country Planning  
 Tiswadi Taluka Office,  
 Panaji, Goa.  
 Dated: 27-8-2012

OFFICE OF THE TOWN PLANNER  
TOWN & COUNTRY PLANNING DEPT  
Y-21, 5th FLOOR, JAIRAM COMPLEX  
TISWADI TALUKA OFFICE  
MALA- PANAJI-GOA.

TECHNICAL CLEARANCE ORDER

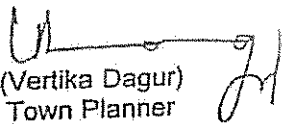
Technical Clearance is hereby granted for carrying out the work of proposed construction of Residential Complex & compound wall as per the enclosed approved plans in the property zoned as S3(VP-I) in ODP and situated at Bambolim village bearing Sy.No.93/4(P) with the following conditions:-

- 1) Construction shall be strictly as per approved plans. No change shall be effected in the approved plans/ approved built spaces without the prior permission of this authority.
- 2) The permission granted shall be revoked, if any information, plans, calculations, documents and any other accompaniments of the application are found incorrect or wrong at any stage after the grant of the permission and the applicant will not be entitled for any compensation.
- 3) The permission shall be revoked if found expedient to such an action under the provision of section 50 of the Goa Town & Country Planning Act 1974.
- 4) The development permission will not entitle the applicant for making/laying any claim on water and any other connection from the government of Goa.
- 5) The Developer/applicant should display a sign board of minimum size 1.00 mts x 0.50 mts with writing in black colour on a white background at the site, as required under the Regulations.
- 6) The applicant shall obtain conversion sanad under the Goa Land Revenue Code 1968, before the commencement of any development/construction as per the permission granted by this order.
- 7) The soak pit should not be located within a distance of 15.00 meters from any other existing well in the plot area/plan.
- 8) The commencement and the completion of the work shall be notified to this office in writing in appropriate forms.
- 9) Completion certificate has to be obtained from this office before applying for occupancy certificate from the licensing authority.
- 10) Storm water drain should be constructed along the boundary of the effected plot abutting to the road.
- 11) Adequate utility space for the dustbin, transformer etc, should be reserved within the plot area. In case of any cutting of sloppy land or filling of low lying land, beyond permissible limit, prior permission of the Chief Town Planner shall be obtained before the commencement of the work as per the provision of Section 17-A of Goa Town & Country planning Act, 1974.
- 12) In case of compound walls, the gates shall be open inwards only and traditional access, if any passing through the property shall not be blocked.
- 13) The Ownership of the property shall be verified by the licensing body before issuing of the licence.

- 14) All the set back as shown on the site plan shall be strictly maintained.
- 15) The balconies proposed should not be covered in any fashion, which may lead to exceed FAR.
- 16) Along the intersection of the streets, no compound wall shall be raised to a height of more than 0.90 mts from the crown of the road for length of 0.9mts from the intersection of the street. This distance being measured from the corner point of the plot.
- 17) As the total built up area is more than 20,000m<sup>2</sup>, hence MOEF approval has to be obtained before obtaining construction licence.
- 18) Collection & disposal of solid and liquid waste shall be implemented as per the project report submitted.
- 19) Solar water heating /Solar energy capturing system shall be implemented as per the project report submitted.
- 20) Fire Department clearance should be obtained if required.
- 21) 12 mts road serving to the plot should not be blocked or closed at any time and access should not be denied to the adjacent land locked property.

This approval is issued with concurrence of the Chief Town Planner.

THIS ORDER IS ISSUED WITH REFERENCE TO THE APPLICATION  
DATED 13/3/2012 FROM Shri Pascoal Trindade,

  
(Vertika Dagur)  
Town Planner

NOTE: The applicant had paid has paid the Infrastructure tax amounting  
Rs. 29,62,745/- (Rupees Twenty Nine lakh Sixty Two thousand Seven hundred &  
Forty five only ). vide challan No. 475 dt. 21/8/12.

To,

✓ Shri Pascoal Trindade,  
Palbrica Mension,  
Next to Post Office,  
Dona Paula, Panaji-Goa.

Copy to:  
The Secretary,  
Office of the village Panchayat,  
Bambolim,  
Tiswadi Goa.

APPENDIX-C4Village Panchayat Building LicenceVillage Panchayat Curca Bambolim & Talaulim, Tiswadi-Goa.CONSTRUCTION LICENCE

No. VP/CBT/2012-13/Const/2041

Date. 30/03/2013

Licence is hereby granted for carrying out the Construction of Residential Complex and compound wall as per enclosed plan and conditions therein should be strictly complied.

- a) As per the enclosed approval plan/plans in the property zoned as S3(VP-I) in the ODP and situated at Bambolim village/Town bearing Survey No. 93/4(P).
  - b) No Objection Certificate issued by Director of Health Service, Panaji-Goa, vide Ref.No. UHCP/DHS/NOC/12-13/1995 dt. 21/09/2012.
1. The applicant shall notify the Panchayat for giving the alignment of the building.
  2. The construction should maintain the minimum prescribed horizontal and vertical clearance from any overhead electrical line passing adjacent to the construction.
  3. All RCC/Structural works shall be designed and supervised by the Engineer who has signed the Structural Liability Certificate submitted to the Panchayat.
  4. No material for construction or earth from excavation or any other construction material shall be stacked on the Public roads.
  5. The Building should not be occupied unless the Occupancy certificate is obtained from the Panchayat.
  6. The Construction licence shall be revoked if the construction work is not executed as per the approved plans and the statement therein and whenever there is any false statement or misrepresentation of any material; passed, approved or shown in the application on which the permit was based.
  7. The applicant should construct a separate soak pit in order to derivate in the sullage water.
  8. Any soak pit should be constructed at a minimum distance of 15 meters away from any well.
  9. The ventilation pipe of the septic tank should be provided with a mosquito net.
  10. The Applicant should connect the pipeline from their latrines/WC's to the sewerage line at their own cost, when the sewerage line is commissioned.
  11. The Applicant should fix a board at a prominent place whenever the construction is started, including the number, the date and the authority for which the licence for development work has been granted.
  12. All the building material and other rubbish should be cleared from the construction site before applying for the Occupancy certificate.
  13. Water storage tanks shall be provided with mosquito proof lids and over flow pipes. The tanks should be provided with access ladders wherever necessary.
  14. The drains surrounding the plot if any should be constructed with PCC and should be covered with removable RCC slabs of sufficient thickness.
  15. The applicant should gift the road widening area to the Village Panchayat before applying for the Occupancy certificate, if the applicant has utilized the extra FAR in lieu of the road widening affecting the plot.
  16. The applicant should plaster and paint the building internally as well as externally before applying for Occupancy certificate. Exposed brick/laterite/concrete/stone/ashlars masonry finish to building will also be permitted.



SECRETARY  
V. P. CURCA BAMBOLIM & TALAUJIM

Cont....2...

17. The applicant should provide a dustbin at a convenient place accessible for collection of garbage.
18. Road widening area shall be asphalted to the existing road level before applying for occupancy certificate.
19. Garbage and Parking area shown in the approved plan shall be strictly used for parking purpose only and should be easily accessible to vehicles. No commercial activities shall be allowed in these areas.
20. Access up to the entrance of the building is to be paved and is provided with drainage facilities.
21. Space for parking of vehicles is clearly demarcated on the ground.
22. No Restaurants/Bars will be permitted in the shops unless a separate soak pit is provided besides confirming to the rules in force.
23. No commercial activities will be permitted in the shops unless a separate permission is obtained from this Panchayat.
24. All Temporary sheds/Existing buildings shown to be demolished in the plan are demolished before applying for Occupancy certificate.
25. Fire Escape staircase, if applicable shall be constructed as indicated in the approved plans.
26. All internal courtyards should be provided with drainage outlet.
27. The applicant should maintain all existing natural drains in the plot and should not block them at any stage.
28. No soak pit or other structure should come in the road widening area.
29. The plot boundary should be cordoned off by continuous sheet fencing either of wood or metal during the construction period.
30. The construction of compound wall should not obstruct any pathway or any public access. The applicant shall make necessary arrangement for smooth flow of rain water by keeping adequate opening in the compound wall for all purpose.
31. No gates shall open outwards on to the road.
32. The construction of the compound wall should be as per the approved plan. The applicant shall inform this Panchayat after the completion of the compound wall.
33. Drinking water well should be 15 meters away from any soak pit.
34. Applicant shall strictly comply the condition stated in Goa State Environment Impact Assessment Authority, ELA-Goa State Secretariat, Office of Goa State Pollution Control Board (GSPCB), Panaji-Goa, vide Ref. No. 3-181-2010/STE-DIR/105 dt. 22/03/2013. As per the point No. 3 Sub points (a to j) and point No. 4 sub points (a to i) and compliances shall be submitted to this office for information.

Construction licence fees to the tune of Rs. 11,49,921/- is collected vide Receipt No. 105/22 dt. 30/03/2013.

THIS LICENCE IS VALID FOR A PERIOD OF THREE YEARS FROM THE DATE OF ISSUE OF THIS LICENCE. RENEWAL IF REQUIRED SHALL BE APPLIED WITHIN THE PERIOD OF THE VALIDITY OF THE LICENCE.

THIS LICENCE IS ISSUED AS PER THE HON'BLE ORDER OF PANCHAYAT APPEAL NO. 99/2012 BEFORE THE HON'BLE ADDITIONAL DIRECTOR OF PANCHAYAT-II, PANAJI-GOIA.

To,  
Mr. Pascoal Trindade,  
Palbrika Mansion,  
Opp. Our Lady of Rosary High School,  
Dona Paula, Tiswadi-Goa.



(Jenu P. Nair)  
SECRETARY  
P. CURCA BAMBOLIM & TALAULIM

## GOA STATE ENVIRONMENT IMPACT ASSESSMENT AUTHORITY

EIA-Goa State Secretariat,  
O/o Goa State Pollution Control Board (GSPCB),  
1<sup>st</sup> Floor, Dempo Towers, Patto, Panaji, Goa - 403 001  
Phone nos.: 2438528 Fax. no.: 2438567

e-mail: goaseac@gmail.com

No: 3 - 181 - 2010/STE-DIR/104

Date: ~~22~~<sup>nd</sup> March 2013

To,  
Mr. Pascoal Trindade,  
Palbrica Mansion,  
Near White House,  
Donapaula, Goa.

Sub.: Proposed residential project in Survey no. 93/4 of Bambolim village (Curca village panchayat) in Tiswadi taluka of North Goa district. - reg.,

Sir,

I am directed to refer to your application dated 7<sup>th</sup> November 2012 seeking prior Environmental Clearance (EC) for the above project under the EIA Notification, 2006. Accordingly, the above proposed has been screened and appraised under Category S (a) on the basis of the documents enclosed with application viz. Form 1 and Form 1A (conceptual plan) as well as in response to the project-specific observations (i.e. *project presentation followed by site-inspection*) considered by the Goa State Expert Appraisal Committee (Goa-SEAC) in its Tenth meeting held on 11<sup>th</sup> December 2012 and Goa State Environment Impact Assessment Authority (Goa-SEIAA) in its Sixth and Seventh meeting held on 7<sup>th</sup> February 2013 and 15<sup>th</sup> March 2013 respectively.

2. It is noted that the proposal is for grant of prior Environmental Clearance (EC) for the construction a new residential project (i.e. *Stilt + 4 floors building comprising of 103 flats - 3BHK-31 and 2BHK-72*) in Survey no. 93/4 of Bambolim village in Tiswadi taluka of North Goa district. Project details and salient features of the proposed developmental activity is as under -

- a. Total plot area - 35,075 sq. mt.
- b. Open space (including garden / playground) proposed - 26,961.46 sq. mts.
- c. Total proposed built-up area - 25,918.85 sq.mts.
- d. Proposed area for green-belt - 9,000 sq.mts.
- e. Expected total occupancy - 783 persons
- f. Parking proposed - 217 ECS.
- g. Geo-technical soil investigation has been proposed.

h. Water requirement -

*During Construction phase* - 50m<sup>3</sup>/day to be sourced from private tankers.

*During operational phase* - 120 m<sup>3</sup>/d (i.e. 75 m<sup>3</sup>/d sourced from PWD and 45m<sup>3</sup>/d sourced from recycled water from STP).

One time water demand for firefighting - 100m<sup>3</sup>.

One time water demand for swimming pool - 100m<sup>3</sup>.

i. PP has proposed to construct underground water storage tanks of 50 m<sup>3</sup> capacity.

j. Wastewater generated - 95m<sup>3</sup>/d to be treated in 100CMD Sewage Treatment Plant (STP) with Moving Bed Bio-Reactor (MBBR) technology. 80 kgs./month of sludge generated is to be used as manure. It is proposed that recycled water (about 85 CMD) will be used for toilet flushing (45 CMD) through dual plumbing system and irrigation in garden-40 CMD (i.e. green-area maintenance)

k. Solid waste generated -

*During construction phase* - 50 kgs./day of domestic waste to be disposed-off through local authorities and kgs./day of debris generated to be used for land-filling within the plot.

Hazardous waste generated (i.e. used oil from D.G. sets (20 kgs./m during construction and 10 kgs./m during operation) will be suitably disposed-off.

*During operational phase* - 400 kgs./day : biodegradable waste (240 kgs./d) to be treated through in-house mechanical composting. While, non-biodegradable waste (160 kgs./d) to be disposed through authorized recycler.

l. Power requirement. -

*Construction phase* - 100 KVA to be sourced from GSEB / Diesel generator.

*Operation phase* - 800 KVA, to be sourced from Goa State Electricity Board.  
Back-up power through 01 DG set of 65 KVA capacity.

m. EMP has been prepared.

3. In view of the above and based on the recommendations of the Goa-SEAC; Goa-SEIAA, subsequent to compliances sought to project-specific observations / site-specific clarifications, has decided to accord prior Environmental Clearance (EC) to the said project under the provision of the Environment Impact Assessment (EIA) Notification, 2006; subject to compliance to the following "General Conditions":-

- a. Nutrient-rich top soil excavated during the construction phase be separately dumped/stored within the project area and be utilized during landscape

development instead of using the same as filling material/reclamation. Accordingly, Project Proponent (PP) should estimate approximate tonnage / volume of top soil required to be excavated along with the plan indicating the location where such topsoil is proposed to be stockpiled as well as indicate/furnish proposed plan for its utilization towards landscaping.

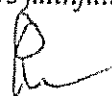
- b. The PP should use Ready-Mixed Concrete (RMC) to minimize air / water / land pollution and water usage during the construction phase.
- c. The Project Proponent (PP) should necessarily explore the possibility of energy conservation by tapping solar-based or hybrid energy sources towards power requirements.
- d. PP should adopt roof-top rainwater harvesting / conservation measures in the form of storing the harvested water so as to optimally utilize the water availability by constructing sumps for collection of rainwater or by collecting water in large polythene tanks thereby saving on utilization of tap water. Accordingly, PP should furnish approximate quantity of the water proposed to be stored / conserved which should be proportionate with the available rainfall within the developmental area. This should be in addition to structures, proposed if any, namely recharge-pits, which would recharge the groundwater aquifers. Thus, PP should submit a plan demarcating the areas for water storage / bore well location & groundwater recharge structures / STP installation, etc.
- e. As a Corporate Social Responsibility (CSR), the PP should establish / assist in establishing a non-project based infrastructure facility for nearby society / community / local authority and set-up a precedent for other competitors so as to achieve bottom-top approach.
- f. PP should prioritize the issues related to health and hygiene in complying with the matters related to waste disposal & treatment / air & water pollution / waste-water management.
- g. PP should not disturb the natural drainage and as far as possible maintain the original topography while designing for landscape development by planting local site-specific plant species and which are not alien to the local environment. No any varieties of *acacia* be used either as avenue plantations or as live-fencing.
- h. PP should clarify any issue related to public objections, if any, and should not conceal the scientific facts in light of the proposed developmental activity vis-à-vis its landuse categorization/zoning.
- i. PP should also submit half-yearly compliance report(s) in hard as well as soft copy format to the O/o the Goa-SEAC and Goa-SEIAA for the period upto project completion so as to enable project monitoring during the construction phase.

- j. Considering the existing land use / land cover of the plot area, the PP should necessarily adapt roof-top rainwater harvesting system for optimum utilization of water resources, especially for landscape development and its maintenance.
4. Further, the project proponent has been advised as regard to the following:
- a. 'Consent to Establish' shall be obtained from the Goa State Pollution Control Board (GSPCB) under Air Act and Water Act, as applicable and a copy shall be submitted to the O/o the Goa-SEAC and Goa-SEIAA.
  - b. Permission to draw groundwater, if any, shall be obtained from the Groundwater Cell of the Water Resources Department (WRD) prior to construction/ operation of the project.
  - c. Project proponent shall not make any change in the Layout Plan / Master Plan submitted to the Authority without its prior permission. In case of any change(s) in the scope of the project and/or otherwise, the project would require a fresh appraisal by the competent authority, as applicable.
  - d. Traffic congestion near the entry and exit points from the roads adjoining the proposed project site must be avoided. Parking should be fully internalized and no public space should be utilized for the same.
  - e. Project proponent shall make suitable provisions for waste water treatment and storm water disposal independently.
  - f. The diesel generator sets to be used during construction / after commissioning should be low sulphur diesel type and should conform to Environment (Protection) Rules prescribed for air and noise emission standards.
  - g. The installation of the Sewage Treatment Plant (STP) should be certified by the Goa State Pollution Control Board (GSPCB) and a report in this regard should be submitted to the Authority before the project is commissioned for operation.
  - h. Project proponent shall advertise at least in two local newspapers widely circulated in the region around the project, one of which shall be in the Konkani and Marathi language within seven days of the receipt of this letter, informing that the project has been accorded prior Environmental Clearance (EC) and the copies of the clearance letter are available on the DST&E website.
  - i. The Environmental Clearance is being issued without prejudice to the court case pending in the Court of law and it does not mean that project proponent has not violated any environmental laws in the past and whatever decision of the Hon'ble Court will be binding on the project

proponent. Hence, this EC does not give immunity to the project proponent in the case filed against it.

- j. The Authority reserves the right to add any stringent conditions or to revoke the EC, if conditions stipulated are not implemented / complied with to the satisfaction of the Authority or for that matter, for any other administrative reasons.
- k. Validity of the Environmental Clearance (EC) accorded shall be for a period of 05 (five) years from the date of its issue.
- l. Any appeal against this prior environmental clearance shall lie with the National Green Tribunal (NGT), if preferred, within 30 days as prescribed under Section 16 of the National Green Tribunal Act, 2010 (Central Act 19 of 2010).

Yours faithfully,



(Levinson J. Martins)  
Director/ex-officio Jt. Secy. (STE) &  
Member Secretary, Goa-SEIAA

Copy for favour of information to:

1. Mr. Jose Manuel Noronha, Chairman, Goa-SEIAA, House No. 946/K, Bagbhat, Rai, Salcete, Goa-403 720.
2. Dr. S. P. Fondekar, Chairman, Goa-SEAC, 150/A, 1<sup>st</sup> Floor, Near Arora Gas Service, Malbhat, Margao, Goa - 403 601.
3. P. A. to Principal Secretary (Environment), Secretariat, Porvorim, Goa.
4. P. S. to Additional Secretary, Ministry of Environment & Forests (MoEF), Paryavaran Bhavan, C.G.O. Complex, Lodhi Road, New Delhi - 110 510.
5. Member Secretary, Goa State Pollution Control Board (GSPCB) to the Dempo Towers, Patto, Panaji.



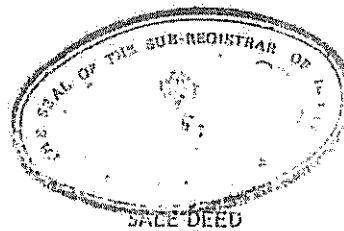
गोवा GOA

Date: 14/7/2014 No. 344926  
 Name of the ...  
 Registered ...  
 Place of ...  
 License No. ...

344926

Sign of Vendor

Sign of Purchaser

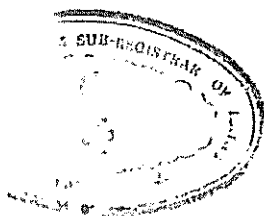


THIS DEED OF SALE is executed on this 14<sup>th</sup> day of the month of July,  
 of the year 2014 at Panaji, and Registration Sub-District of Taluka  
 Tiswadi, in the State of Goa.

For Loshkar Developers Pvt. Ltd.  
 Director

BETWEEN

(1) MR. PASCOAL TRINDADE, son of late Agostinho Trindade, aged 71 years, holder of PAN Card No. ADNPP5891L, and his wife (2) MRS. ALBERTINA TRINDADE alias ALBERTINE TRINDADE, daughter of late Francisco Rodrigues aged 73 years, holder of PAN Card No. ABCPT5348K, both of whom are Indian nationals, both residing at Palbrika Mansion, Opp. Our Lady of Rosary High School, Dona Paula, Taluka Tiswadi, Goa and both of whom are hereinafter jointly referred to as "The Vendors" and Vendor No. 2 is herein represented by her constituted Power of Attorney, MR. PASCOAL TRINDADE, the Vendor No. 1 herein, duly constituted as such vide Power of Attorney dated 29.01.2014 executed before Notary Public Adv. Wilfred Boadita under Reg. No. 1341/2014 on 29.01.2014 (which expression shall unless repugnant to the context or meaning thereof be deemed to mean and include within its meaning, their heirs, successors, legal representatives, administrators and assigns) OF THE FIRST PART.



AND

M/S. LOONKAR DEVELOPERS PRIVATE LIMITED, a company duly incorporated under the Companies Act, 1956 having its registered office at 219, Commerce House, 140, Nagindas Master Road, Fort, Mumbai, holder of PAN Card No. AABCL0661L, and duly represented herein by its Authorised Signatory, MR. RAMESH SHAH, son of Sumernai Shah, aged 54 years, having his place of business at 219, Commerce House, 140, Nagindas Master Road, Fort, Mumbai, duly authorised as such vide Resolution of Board of Directors dated 07.07.2014 and hereinafter referred to as "The Purchaser" (which expression shall unless repugnant to the context or meaning thereof be deemed to include its executors, administrators and permitted assigns) OF THE SECOND PART.

WHEREAS there exists a property known as "Itaion Fardion", "Savati Gali" or "Olor" admeasuring an extent of 35,600 sq. mts. of area,

*[Signature]*

For Loonkar Developers Pvt. Ltd.  
*[Signature]*  
Director

surveyed under Survey No. 93 Sub-Division No. 2, Village Bambolim and located within the limits of the Village Panchayat of Curca, Bambolim & Talaulim, Taluka Tiswadi, North Goa, which property is hereinafter referred to as "the said property", and is better described in terms of the Schedule hereunder written.

AND WHEREAS Alexandre Rodrigues had title to the following properties mentioned below as per the records of the Comunidade of Bambolim vide Certificate issued by the Clerk Marcos Vincent D'Araujo:-

1. 1/4<sup>th</sup> part of Verica of Bailem Fondiem.
2. Another 1/4<sup>th</sup> part of the said Verica.
3. Another Verica of cashew plantation and Ohor.
4. One Xir of the property known as Bucolem.
5. One piece of coconut garden 'Cornacho' and two remnant pieces.
6. And further in another title: 5 pieces of coconut garden called 'Cunbem Batta'.
7. And yet in another title one half of the first Verica called Bailem Fondiem.
8. And thus in another title: 8 pieces owned jointly with his cousin Martinho Rodrigues and house - half and half.
9. One piece of coconut garden 'Cunbem Batta'.
10. And two Vericas of Cashew Plantation known as 'Bailem Fondiem' and that the following properties are found entered in the name of his daughter Maria Conceicao Rodrigues:

- a. One Verica of Cashew Plantation.
- b. One piece of coconut garden called 'Cunbem Batta'.
- c. One fourth part of the Verica 'Bailem Fondiem'.
- d. Another one fourth of Verica.
- e. Five pieces of coconut grove called 'Cunbem Batta'.
- f. One half of the first Verica called 'Bailem Fondiem' and 'Ohor'.



*[Handwritten signature]*

For Local Developers not 117  
1974 12 1  
Director

- 4 -

- g. Eight pieces jointly held with her cousin Martinho Rodrigues.
  - h. House shared half and half.
  - i. Two Vericas of Cashew Plantation called 'Bailem Fondiem' with exception of the plot One Xir of the property known as 'Bucolem' and One piece of coconut garden 'Conracho' as it is sold to Sebastiao Figufredo.
11. That late Alexandre Rodrigues left behind on his death his sole and universal heir Maria Conceicao Rodrigues.
12. That Gregorio Germano Mergulhao married to Maria Conceicao Rodrigues and as such inherited the estate of late Alexandre Rodrigues.
13. That Gregorio Germano Mergulhao had two sons Emmanuel Joveniano Paxiao Mergulhao and Francisco Aleixo Doras Mergulhao.
14. That Francisco Aleixo Doras Mergulhao died a bachelor.
15. That after the demise of Emmanuel Joveniano Paxiao Mergulhao married to Maria Gertrudes de Peragrina Viegas, Maximo Mergulhao and his wife Dionisia Dias e Mergulhao became the sole heirs to inherit the estate left behind by their grand-mother Maria Conceicao Rodrigues married to Gregorio Germano Mergulhao.
16. That subsequent to the death of Maximo Mergulhao on 26.03.1998 and in view of the Deed of Relinquishment dated 13.05.1998 executed by the heirs relinquishing their rights in respect of the properties of Maximo Mergulhao the said Dionisio Dias E Mergulhao became the sole owner of the said property.



For Lankat Developers Pvt. Ltd.  
  
Director

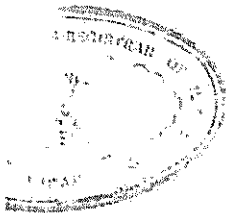
AND WHEREAS vide Deed of Sale dated 25<sup>th</sup> April 2006 registered in the office of the Sub-Registrar of Ilhas Goa under No.1238 at pages 369 to 387, Book I, Volume 1634 dated 03.05.2006 the said property was purchased by the Vendors herein from the said Dionisio Dias E Mergulhao.

AND WHEREAS the Vendors herein vide Agreement dated 12.11.2012 executed before the Notary Public, Adv. D. S. Petkar, under Registration No. 30695/2012 on 26.12.2012, agreed to sell the said property unto the Purchaser, whereunder, the Purchaser was handed over the possession of the said property in consideration of payment of the entire sale consideration of Rs. 2,10,00,000/- (Rupees Two Crore Ten Lakhs) which has already been paid to the Vendors by the Purchaser at the time of execution of the said Agreement.

AND WHEREAS the Vendors are now desirous of executing this Deed of Sale in favour of the Purchaser conveying unto the Purchaser the said property as described in terms of Schedule hereunder written.

NOW THEREFORE THIS INDENTURE WITNESSETH AS UNDER:-

1. That in pursuance of the Agreement dated 12.11.2012 whereunder the amount of Rs. 2,10,00,000/- (Rupees Two Crores Ten Lakhs) which being the total sale consideration, has already been paid to the Vendors by the Purchaser, towards the purchase of the said property surveyed under Survey No. 93 Sub-Division No. 2, of Village Bambolim, Taluka Tiswadi, Goa, better described in terms of Schedule hereunder, which being the fair market value of the said property, paid by the Purchaser to the Vendors the receipt of which the Vendors does hereby admit and acknowledge towards the sale consideration, the Vendors doth hereby grant, transfer, convey and assure unto the Purchasers by way of sale all that property surveyed under surveyed under Survey No. 93 Sub-Division No. 2, of Village Bambolim, Taluka Tiswadi, Goa, better described in terms of



*[Signature]*  
 Per **Lawyer Development Pvt. Ltd.**  
*[Signature]*  
 Director

- 6 -

Schedule hereunder written, and shown on the plan hereto annexed and delineated in red colour on the plan annexed hereto, together with all that yards, compound, gullies, sewers, water courses, lights, liberties, rights, to the said land, hereditament and premises or any part thereof belonging or in any way appertaining or usually held or occupied therewith or reputed to belong or be appurtenant thereto AND ALL the estate, right, title, interest, property, claim and demand whatsoever at law or in equity of the Vendors, of in and to the said land or ground TO HAVE AND TO HOLD all and singular the said land or ground and all other premises hereby granted and assured or expressed so to be with their appurtenances all which are hereinafter referred to for brevity's sake as "The said Property" UNTO AND TO THE USE of the Purchaser absolutely and forever subject to the payment of all rents, taxes, assessments, dues and duties hereafter to become payable to the Government of Goa, or the Village Panchayat of Curca, Bambolim & Talaulim or any other Government, Semi-Government or Public Body or Authority in respect thereof after the signing of these presents and the Vendors doth hereby covenant with the Purchaser that notwithstanding any act, deed, matter or thing whatsoever by the Vendors or by any person or persons lawfully or equitably claiming by, from under or in trust for them, made, done, omitted, executed or knowingly or willingly suffered to the contrary THEY the Vendors have unto themselves clear, legal, marketable and good right and title and have absolute and subsisting power and authority to grant, convey, assure and confirm the said Property UNTO AND TO THE USE of the Purchaser in the manner aforesaid AND THAT it shall be lawful for the Purchaser from and quietly to hold, possess and enjoy the said Property hereby granted, conveyed, transferred, assured and confirmed with their appurtenances and to receive the rents and profits thereof for their own use and benefit without any lawful eviction, interruption, claim or demand whatsoever from or by the Vendors or from or by any other person or persons lawfully or equitably claiming by, from, under or in trust for them or any of



Per Lankar Developers Pvt. Ltd.

Director

them AND THAT free and clear and freely and clearly and absolutely acquitted, exonerated, released and forever discharged or otherwise by the Vendors well and sufficiently saved, defended, kept harmless and indemnified of, from and against all estate, charges and encumbrances whatsoever either already or to be hereafter had, made, executed, occasioned and suffered by the Vendors or by any estate, right, title or interest at law or in equity in the said Property hereby granted or any part thereof by, from, under or in trust for them and FURTHER THAT THEY the Vendors shall and will from time to time and at all times hereafter at the request of the Purchaser do and execute or cause to be done and executed all such further and other lawful and reasonable acts, deeds, things, matters and assurances in law wheresoever for further and more perfectly and absolutely granting and assuring the said property hereto granted UNTO AND TO THE USE of the Purchasers in the manner aforesaid as shall or may be reasonably required by the Purchasers, their successors or assigns or their part thereof hereby conveyed, transferred and assured unto and to the use of the Purchaser in the manner aforesaid.



2. That from today the Vendors cease to have any right, title or interest in the said Property and the Purchaser shall enjoy it as absolute owner thereof without any interference from Vendors or any one claiming through them.
3. The Vendors hereby covenant that the said Property hereby sold is free from any hypothecation, encumbrance, attachment, mortgage, charge or lien from whomsoever and of whatsoever nature.
4. The Purchaser has accepted the Vendors' representation and found that the title of the Vendors is valid and marketable.
5. The Vendors covenant that they have not sold or entered into any agreement with any third party agreeing to sell the said Property.

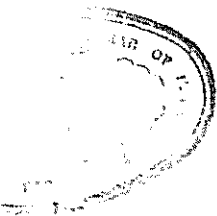
*[Signature]* For Lessee  
*[Signature]* Director

- 8 -

6. The Vendors say that they have upon execution of the Agreement dated 12.11.2012 and upon receipt of the sale consideration have already delivered lawful and peaceful possession of the said Property to the Purchaser and the Purchaser has since been put in lawful and physical possession thereof.

7. The Vendors hereby covenant with the Purchasers as follows:-

- a. That the said Property described in Schedule hereunder written are not affected by any notification or notice under the Goa Land Use Act or notice of acquisition or requisition or reservation from the Government, Village Panchayat or any other public body or authorities in respect of the said property or any part thereof under any provision of law.
- b. That the Vendors prior to execution hereof have not received any notice from any Authority under the Income Tax Act or Wealth Tax Act,
- c. That there are no impediments or difficulties legal or otherwise to the sale of the said Property or part thereof under this Deed.
- d. The Vendors do hereby tender their no-objection to the Purchaser for the purpose of undertaking mutation to add the Purchasers name in Form - I & XIV of Record of Rights.
- e. That the Vendors hereby declare that the property/property/villa does not belong to any person/ s belonging to Schedule Caste/ Schedule Tribe in terms of Notification No. RD/Land/LRC/318/77 dated 21.08.1978.



*[Signature]*  
 Per Losakar Developers Pvt Ltd.  
 Director

- 9 -

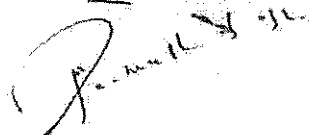
f. That the fair market value of the Property better described in terms of Schedule is Rs. 2,10,00,000/-. That as the possession of the said property was handed over in terms of the Agreement dated 12.11.2012, as such the entire stamp duty of Rs. 8,60,000/- was paid vide Agreement dated 12.11.2012 and the Registration Charges are now being paid on the present Sale Deed.

**SCHEDULE**  
**(THE SAID PROPERTY)**

All that property known as "Bailem Fondiem", "Saveli Gali" or "Ohor" admeasuring an extent of 35,600 sq. mts. of area, surveyed under Survey No. 93 Sub-Division No. 2, Village Bambolim and located within the limits of the Village Panchayat of Curca, Bambolim & Talaulim, Taluka Tiswadi, North Goa and bounded as under:-

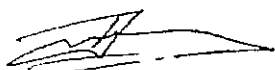
|              |                                                              |
|--------------|--------------------------------------------------------------|
| On the East  | : By plot surveyed under No.93/1                             |
| On the West  | : By plots surveyed under Nos.93, 106, 107/1, 2, 3, 5 & 6.   |
| On the North | : By Bambolim village road & plot surveyed under No.107/7-11 |
| On the South | : By plot surveyed under No.103                              |

IN WITNESS WHEREOF the parties hereto have set and subscribed their respective hands and seals the day and year first hereinabove written.

*For Local Developer*  
  
*Director*  


- 10 -

SIGNED SEALED AND DELIVERED BY THE WITHINNAMED VENDOR NO. 1,  
MR. PASCOAL TRINDADE FOR HIMSELF AND AS POWER OF ATTORNEY FOR  
VENDOR NO. 2, MRS. ALBERTINA TRINDADE alias ALBERTINE TRINDADE.



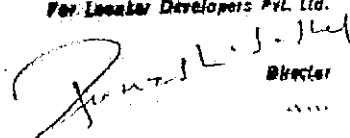
L.H.F.P.



R.H.F.P.



For Linear Developers Pvt. Ltd.

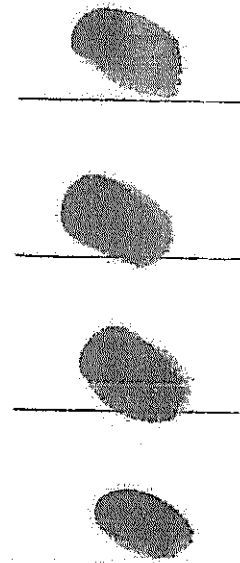
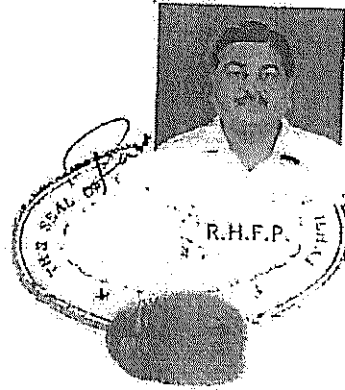
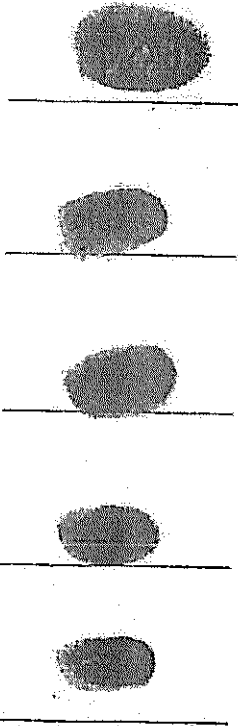
  
Director

- 11 -

SIGNED SEALED AND DELIVERED BY THE WITHINNAMED PURCHASER,  
LOONKAR DEVELOPERS PRIVATE LIMITED REPRESENTED HEREIN BY ITS  
AUTHORISED SIGNATORY MR. RAMESH SHAH.

For Loonkar Developers Pvt. Ltd.  
*Ramesh Shah*  
Director

L.H.F.P



*7*  
For Loonkar Developers Pvt. Ltd.  
*Ramesh Shah*  
Director



Office of Sub-Registrar Ilhas/Tiswadi

Government of Goa

Print Date &amp; Time : 14-07-2014 04:03:11 PM

Document Serial Number : 1641

Presented at 03:31:00 PM on 14-07-2014 in the office of the Sub-Registrar( Ilhas/Tiswadi) Along with fees paid as follows:

| Sr. No | Description      | Rs. Ps     |
|--------|------------------|------------|
| 1      | Registration Fee | 2563200.00 |
| 2      | Processing Fees  | 690.00     |
|        | Total :          | 2563890.00 |

Stamp Duty Required: .00

Stamp Duty Paid: 100.00

Ramesh Shah presenter

| Name                                                                                                                                                                                                                                                                                                                                                                                         | Photo | Thumb Impression | Signature |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------|------------------|-----------|
| Ramesh Shah, s/o Sumermal Shah ,<br>Married, Indian, age 54<br>Years, Business, r/o 219, Commerce<br>House, 140, Nagindas Master Road,<br>Fort, Mumbai. The Authorised<br>Signatory of M/S Loonkar Developers<br>Private Limited vide Resolution<br>Dated 07/07/2014, having office at<br>219, Commerce House, 140,<br>Nagindas Master Road, Fort,<br>Mumbai. Company PAN No.<br>AABCL0661L. |       |                  |           |

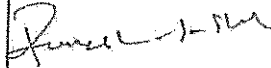
## Endorsements

Executant

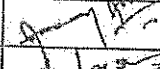
1. Pascoal Trindade, s/o Late Agostinho Trindade , Married, Indian, age 71 Years, Business, r/o Palbrika Mansion, Donapaula, Tiswadi Goa PAN No. ADNPP5891L. For self and as POA holder for the Vendor No. 2 vide POA dated 29/01/2014 executed before the Notary Adv. Wilfred Boadita under reg. No. 1341/2014.

| Photo | Thumb Impression | Signature |
|-------|------------------|-----------|
|       |                  |           |

2. Ramesh Shah, s/o Sumermal Shah, Married, Indian, age 54 Years, Business, r/o 219, Commerce House, 140, Nagindas Master Road, Fort, Mumbai. The Authorised Signatory of M/S Loonkar Developers Private Limited vide Resolution dated 07/07/2014, having office at 219, Commerce House, 140, Nagindas Master Road, Fort, Mumbai. Company PAN No. AABCL0661L.

| Photo                                                                             | Thumb Impression                                                                  | Signature                                                                          |
|-----------------------------------------------------------------------------------|-----------------------------------------------------------------------------------|------------------------------------------------------------------------------------|
|  |  |  |

#### Identification

| Sr No. | Witness Details                                                                                                                                 | Signature                                                                           |
|--------|-------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------|
| 1.     | Adv. Raunaq Rao, s/o Adv. Umesh Rao, Married, Indian, age 27 Years, advocate, r/o Kamat Complex Tonca Caranzalem, Tiswadi, Goa.                 |  |
| 2.     | Mr. Murlidhar Sadarangani, s/o Shamdas Sadarangani, Married, Indian, age 56 Years, Business, r/o S-3, Eden Hall, Dr. A B Road, Worli Mumbai 18. |  |

Sub-Registrar

SUB-REGISTRAR

#### Denotation of Stamp :

Hereby certify that on production of the original document, I have satisfied myself that the stamp duty of Rs. 555000/- has been paid thereon.

Stamp duty of Rs. 860000/- has been paid at the time of Agreement for Sale dated 12/11/2012 executed before the Notary Adv. D. S Petkar at Mapusa under Reg. No. 30695/2012 dated 26/12/2012. The Registration fees are calculated as the property is located in S3 Zone Registration fees payable are 40% less than base Value.

Scanned By:-

Signature:-

Designed and Developed by C-DAC, ACTS, Pune.

100

IN THE PRESENCE OF WITNESSES:-

1

MURKINER S. 2005-2006

2

ADV. RAJINIQ RAO

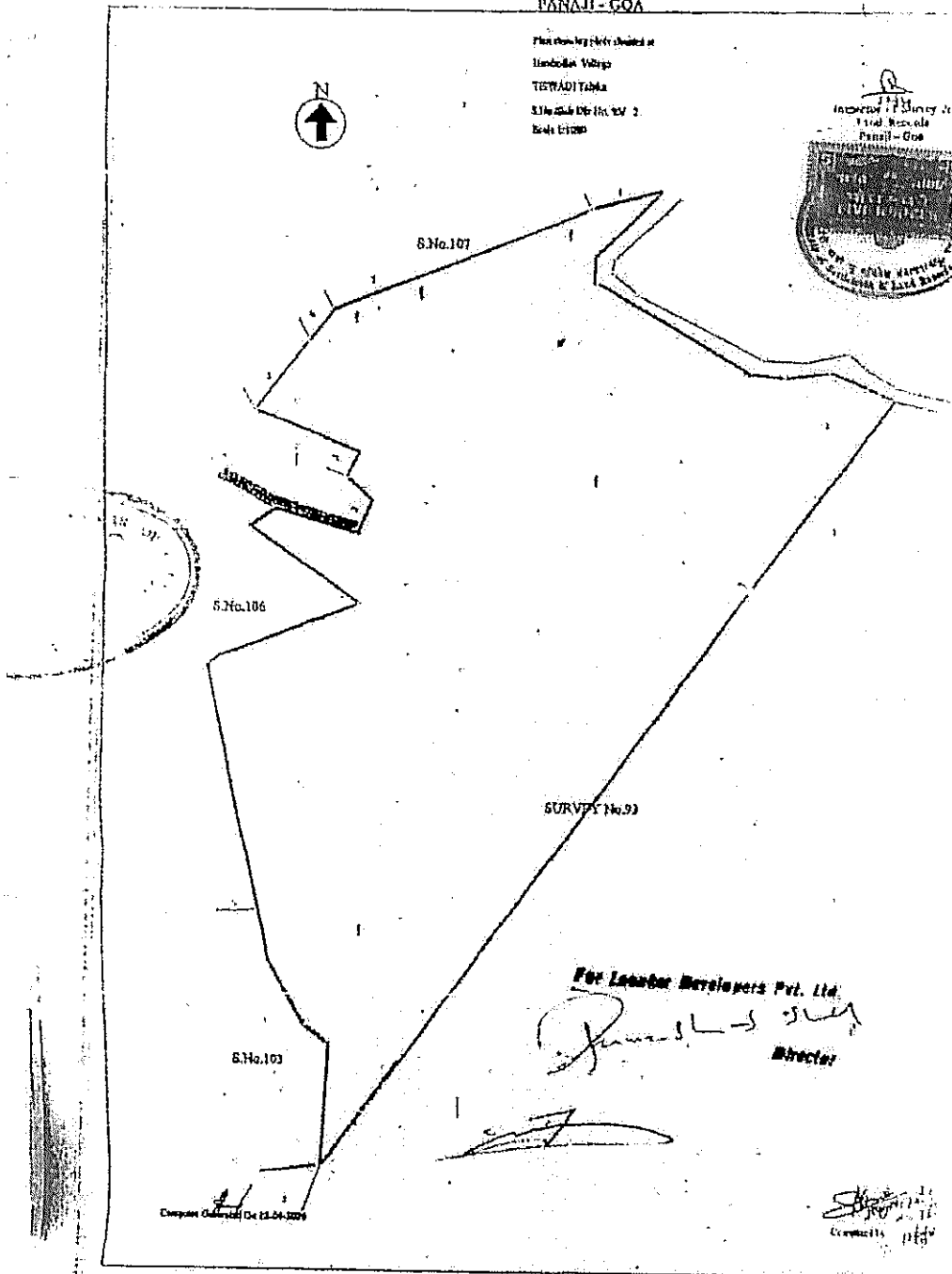
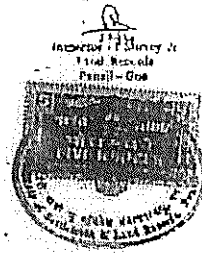
For Lease Developers Pvt. Ltd.

## Speaker

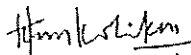


GOVERNMENT OF GOA  
Directorate of Settlement and Land Records  
PANAJI - GOA

Plan showing Survey No. 93  
Handmade Village  
TERRADITAMA  
S/N No. 106 to 107  
Scale 1:1000



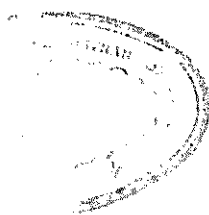
Book-1 Document  
Registration Number PNJ-BK1-00478-2015  
CO Number PNJD39 on  
Date 26-02-2015

  
Sub-Registrar (Ilhas/Tiswadi)  
**SUB-REGISTRAR**  
**ILHAS**

Scanned By:- R. Joshi

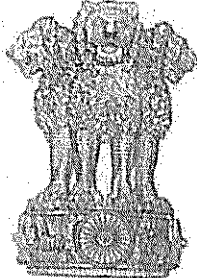
Signature:- 

Designed and Developed by C-DAC, ACTS, Pune



भारतीय गैर न्यायिक  
भारत INDIA

**₹. 500**



FIVE HUNDRED  
RUPEES

पाँच सौ रुपये

**Rs. 500**

सत्यमेव जयते

# INDIA NON JUDICIAL

गोवा, GOA

7/4/19

20

P. V. M. Proprietor,  
Bannur.

246370

# JOINT VENTURE AGREEMENT

THIS JV AGREEMENT made and entered on this 25<sup>th</sup> Day of April in the year 2014 at Panaji, Goa.



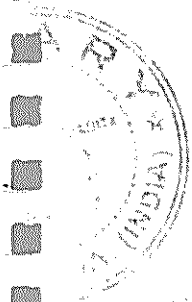
~~7-1-15~~

## BETWEEN

**Mr. PASCOAL TRINDADE**, aged 71 years, married, businessman Indian National, son of late Agostinho Trindade holder of PAN Card No. AINDPP5891L, resident of Pastina Villa, Dona Paula, Goa and **SMT. ALBERTINA TRINDADE** also known as Albertina Rodrigues, major of age married, daughter of late Francisco Rodrigues, housewife Indian National, holder of PAN Card No. ABCPT5348K, residing at Pastina Villa, Dona Paula, Goa represented herein by her lawful attorney Mr. Pascoal Trindade, aged 71 years, married, businessman, Indian National, son of late Agostinho Trindade, resident of Pastina Villa, Dona Paula, Goa, constituted as such by a Power of Attorney executed before the Notary Public of Panaji, Wilfred A.F. Boardita under registration no. 8339/96 dated 09/12/1996 jointly having 37.85% of share in Agreement of Partnership namely M/s.PVM Associates

- (2) **MR. VIKRAM SHAH**, son of Chinnbhai Shah holder of PAN Card no. AAJPS2978N aged about 63 Years, Indian Inhabitant residing at 28, Capri, Manav Mandir Road, Walkeshwar, Mumbai, 400005 having 37.85% of share in Agreement of Partnership namely M/s.PVM Associates

- (3) **MR. MURLIDHAR SADARANGANI**, son of Shamdas Jetaram Sadarangani holder of PAN Card no. AAHPS8209A aged about 54 Years, Indian Inhabitant residing at S-3, Eden Hall, Dr. Annie Besant Road, Worli, Mumbai - 400018 having



Handwritten signature and initials.

24 300. A share in Agreement of Partnership namely M/s.PVM Associates hereinafter collectively jointly referred to as the VENDORS (which expression shall, unless it be repugnant to the context or meaning thereof, mean and include their respective legal heirs, successors, executors, administrators and assigns) of the FIRST PART

AND

M/s. Kuval Projects Pvt. Ltd., having its office at Pastina Building, near NIO Police Station, Dona Paula, Goa a private company incorporated under the Indian Companies Act 1956 bearing registration No.U45201GA2009PTC006113 and hereinafter referred to as THE DEVELOPERS (which expression shall, unless repugnant to the context or meaning thereof, include its directors, executors, legal representatives administrators and official assigns) OF THE SECOND PART.

AND WHEREAS there exists a property surveyed under Survey No. 93 Sub-Division No. 3 culmeasuring 26,825square metres forming part of a larger property known as "BAILEM FONDIEM" "SAVELI GALI" or "OHOR" situated at Village Bambolim, Taluka Tiswadi, Goa, and better described in **SCHEDULE-I** hereunder written and hereinafter referred to as "the SAID PROPERTY".

AND WHEREAS the SAID PROPERTY originally belonged to one Mrs. Maria Conceicao Rodrigues, widow of late Gregorio Germano Mergulhao.

H  
A

AND WHEREAS the said Mr. Francisco Alexis Das Dotes Mergulhao alias Francisco Mergulhao and Manuel Luvionapio Pardo Mergulhao the said Mr. Francisco Alexis Das Dotes Mergulhao expired on 12.07.1996 as a bachelor. The said Mr. Manuel Luvionapio Pardo Mergulhao expired on 11.11.1999 survived by his only son namely Maximo Mergulhao.

AND WHEREAS Mr. Maximo Mergulhao alias Maximiano Mergulhao was married to Mrs. Dionisia Dias e Mergulhao alias Dionisia Dias.

AND WHEREAS Shri. Maximo Mergulhao expired on 26.03.1998 bequeathing his disposable share in all his properties by virtue of Will dated 14.05.1990 to his only son Mr. Americo Mergulhao.

AND WHEREAS the said Mrs. Dionisia Dias e Mergulhao alias Dionisia Dias, upon the demise of her late husband Maximo Mergulhao, executed the Deed of Succession dated 04.06.1998, in the capacity of an interested party, being his widow, moiety and half sharer alongwith their only son Mr. Americo Mergulhao married to Mrs. Celia Menezes being the sole and universal heirs and successors.

AND WHEREAS by virtue of the Deed of Gratuitous Relinquishment of Illiquid Rights dated 13.05.1998 the said Americo Mergulhao son of Maximo Mergulhao and his wife Celia Menezes relinquished their undefined, illiquid and undivided right, title and interest acquired by them in the estate of late father/ father-in-law, Mr. Maximo Mergulhao, thereby making their mother and mother-in-law Mrs.

Dominic Dias E Mergulhao alias Dionisio Dias E Mergulhao, the sole owner of the said Entire Property.

AND WHEREAS the SAID PROPERTY was purchased by the Mr. Pascoal Trindade for and in behalf of the VENDORS herein from the above said named Mrs. Dionisia Dias E Mergulhao alias Dionisio Dias E Mergulhao vide Deed of Sale and Conveyance dated 25.04.2006 registered in the office of the sub-Registrar of Ilhas Taluka-Goa under no. 1238 at Pages 369 to 387 Book - I Volume 1636 dated 02.03.2006.

AND WHEREAS the Conversion Sanad in respect of the SAID PROPERTY was granted vide order bearing Ref No: RB/CNV/TIS/135/2008 dated 16.12.2011 by Office of Collector North Goa, North Goa District, Panaji - Goa.

AND WHEREAS the Technical Clearance in respect of the SAID PROPERTY was granted vide order bearing Ref No: TIS/7860/BAM/TCP/13/377 dated 27.02.2013 by the Town Planner, Town & Country Planning Department, Panaji - Goa.

AND WHEREAS the No-Objection Certificate was obtained from the Health Department in terms of order bearing Ref No: UHCP/DHS/NOC/12-13/3557 dated 13.03.2013.

AND WHEREAS Mr. Pascoal Trindade has entered into and executed an Agreement of Partnership with the other VENDORS namely 1. Mr. Vikarm Shah, and 2. Mr. Murlidhar Sudarangani dated 1<sup>st</sup> April 2013 on the terms and conditions mentioned in the Said AOP Agreement under the name and style of M/s. PVM Associates.

*[Handwritten signature]*

*[Handwritten signature]*

AND WHEREAS the SAID PROPERTY was purchased by the Mr. Pascoal Trindade for and in behalf of the VENDORS heretofore from the vendor of record Mrs. Dionisio Dias F. Mergulhao alias Dionisio Dias F. Mergulhao vide Deed of Sale and conveyance dated 15.01.2006 registered in the office of the said Registrar of Illus Talyka Goa under no. 1738 of Pages 369 to 387 Book 1 Volume 1636 dated 02.05.2006.

AND WHEREAS the Conversion Sanad in respect of the SAID PROPERTY was granted vide order bearing Ref. No. RR/CNV/TIS/135/2008 dated 16.12.2011 by Office of Collector North Goa, North Goa District, Panaji - Goa.

AND WHEREAS the Technical Clearance in respect of the SAID PROPERTY was granted vide order bearing Ref. No. TIS/7554/BAM/TCP/13/377 dated 27.02.2013 by the Town Planner, Town & Country Planning Department, Panaji - Goa.

AND WHEREAS the No-Objection Certificate was obtained from the Health Department in terms of order bearing Ref. No. UHCP/DHS/NOC/12-13/3557 dated 13.03.2013.

AND WHEREAS Mr. Pascoal Trindade has entered into and executed an Agreement of Partnership with the other VENDORS namely 1. Mr. Vikram Shah, and 2. Mr. Murlidhar Sadarangani dated 1<sup>st</sup> April 2013 on the terms and conditions mentioned in the Said AOP Agreement under the name and style of M/s. **PVM Associates.**

AND WHEREAS construction license was granted to the Owners bearing Reference No. VP/CIT/2013-14/CONST/88 Dated 16.04.2013 by the Village Panchayat of Curra, Bambohm & Talaulim.

AND WHEREAS the VENDORS have verified and obtained a Title Search Report in respect of the SAID PROPERTY which is clear and marketable and the DEVELOPERS herein are fully satisfied that the title of the VENDORS is good, clear and marketable and that the VENDORS have full right and authority to enter into this Agreement and transfer and convey the SAID PROPERTY or any part thereof to any prospective purchasers.

AND WHEREAS the VENDORS have notionally sub-divided the SAID PROPERTY into three parts namely, Sector I, Sector II & Sector III.

AND WHEREAS the VENDORS have prepared the revised plan and proposes to construct 3 buildings each consisting of stilt plus four storey comprising of 8 flats in each building and eight villas of the SAID PROPERTY upon Sector I as more particularly shown in the plan annexed hereto at **ANNEXURE - 1**.

AND WHEREAS the list of the permissions/sanctions/NOC's etc obtain by the VENDORS as aforesaid is at **ANNEXURE - II** annexed hereto.

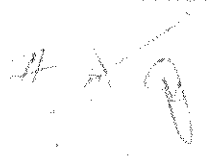
AND WHEREAS the DEVELOPERS are established and accomplished company engaged in the business for the last 30 years and have expertise and sufficient funding resources to develop the 'Project' in Sector I as envisaged herein and have expressed their intent of the same to the VENDORS

AND WHEREAS the VENDORS and the DEVELOPERS have mutually agreed that the DEVELOPERS as part of their normal business and at their own costs shall develop and construct the 'Project' upon Sector I and its infrastructure works viz. the 'Project' upon Sector I hereinafter called the "DEVELOPERS' SCOPE OF WORK" and accordingly the DEVELOPERS' SCOPE OF WORK is described hereunder written and list of the quantities and specifications to be provided for the residential buildings and the infrastructure to be developed on the NAID PROPERTY viz. the 'Project' is described in detail in **Schedule - II**.

AND WHEREAS after detailed discussion of the layout and planning of the 'Project' the VENDORS and the DEVELOPERS have mutually agreed to adopt the said revised plan for execution i.e., development and construction of the 'Project'.

AND WHEREAS according to the said revised plan the said 'Project' is comprising of 3 residential buildings consisting of stilt and 4 upper floors having 24 nos. of 3 bed rooms flats and 8 villas with required infrastructure viz. internal roads, sewage system, sub-station, street lighting, water distribution system, landscaping, etc.

AND WHEREAS the VENDORS and the DEVELOPERS hereto have mutually agreed to the terms and conditions for the DEVELOPERS executing the development and construction of the 'project' in accordance with the said "DEVELOPERS' SCOPE OF WORK" and the manner in which the gross revenues received from the sales of the units/apartments/flats in the residential buildings, villas, club membership, parking spaces and other saleable items (hereinafter



called "the saleable areas" of the "Project", shall be distributed at the point of receipt by and between them as appearing hereunder.

NOW THEREFORE THIS AGREEMENT WITNESSETH AND IT IS MUTUALLY AGREED BY AND BETWEEN THE PARTIES HERETO AS FOLLOWS:

1. The recital hereinabove forms an integral part of the agreement hereunder.
2. This Agreement relates to the rights of the respective Parties with regard to the implementation of the "Project" upon SECTOR 1 forming part of the SAID PROPERTY which area is shown by green ink comprised in the Plan annexed hereto as **Annexure-I**.
3. The Parties herein specifically confirm that this Agreement does not constitute a partnership or association and consequently no Party shall be entitled to represent the other Party. The rights and responsibilities of the Parties are and shall be as hereinafter set out and to be mutually agreed from time to time by and between them. The Parties shall perform their respective obligations hereunder as part of their respective obligation/business and not as contractors, agents or representatives of each other.
4. The VENDORS hereby covenant and declare that:
  - a. They are seized and possessed of the SAID PROPERTY and have a clear and marketable title to the SAID PROPERTY. The relevant documents relating to title have been listed in **Schedule-III** hereunder written.

*Handwritten signature/initials*

- b. That the VENDORS are fully entitled to sell the SAID PROPERTY in accordance with the respective rights and powers vested in them by law.
- c. There are no mortgage charges, other encumbrances, or encumbrances created up or in relation to the SAID PROPERTY in favour of any person or party and the title of the VENDORS to the SAID PROPERTY is marketable and free from disputes, adverse claims, attachments, injunctions, negative covenants or any other prohibitory orders.
- d. They have clear and absolute irrevocable right and authority to develop the SAID PROPERTY as also to enter into this Agreement.
- e. The SAID PROPERTY is free from encumbrances and is not subject to easements, rights, charges, lien, attachments, claims, suits and demands of any nature whatsoever and that the VENDORS or anyone on their behalf has not received any injunction or restraint order from any court, authority or tribunal in regard to the development/disposal of the SAID PROPERTY or any part thereof and the VENDORS are fully entitled to enter into this Agreement with the DEVELOPERS.
- f. That there is no interference from the neighbouring owners and/or from the villagers and in case of any interference/dispute the VENDORS undertake to resolve the same at their own cost.



*[Handwritten signature]*

g. The VENDORS shall put the DEVELOPERS in possession of the SAID PROPERTY viz. the 'Project', for the limited purpose of development on signing of this Agreement.

h. There are no drains, sewers, cables, water pipes, gas pipe, overhead wires passing through the SAID PROPERTY.

5. The DEVELOPERS hereby state and confirm that:

a. They shall appoint the Architect and other consultants as may be required for the 'Project' and their decision in all matters relating to construction and development comprised in the DEVELOPERS' SCOPE OF WORK shall be final and binding.

b. They have agreed to carry out as part of their own business activity the entire works comprised in the DEVELOPERS' SCOPE OF WORK as described in **Schedule-III** hereunder written by arranging their own finance, personnel etc. in accordance with the sanctioned plans and/or revised plan as approved by the concerned Authorities as aforesaid.

6. The 'Project' and the other works comprised in DEVELOPERS' SCOPE OF WORK shall be carried out by the DEVELOPERS in accordance with the sanctioned plans with such modifications thereto that be made by the Parties mutually and which would be subject to the approval of the concerned Authorities.

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# A 9

1. To execute and to cause to be executed

the necessary documents and to cause to be obtained the necessary power, licence and other approvals for the SAID PROPERTY.

To execute and to cause to be executed all the necessary part of the SAID PROPERTY to and in favour of the co-operative society or of any other organisation formed by the prospective buyers of the said residential flats / villas in the said Project.

ii. To initiate and file such suits, petitions, memorandum for the purpose of enforcing the rights of and upon the SAID PROPERTY in so far as it relates to the title of the VENDORS to the SAID PROPERTY or defend any suit filed against them.

iii. To pay all the rents, rates, taxes, assessments, dues, cesses and other outgoings whatsoever payable in respect of the SAID PROPERTY to all concerned government, semi-government, public bodies or local authorities which have been paid upto date by the VENDORS and the VENDORS shall duly and punctually continue to pay such rates and duties, etc upto and until the handing over the SAID PROPERTY to a co-operative society save and except all charges, pledge, penalties etc payable in respect of the development of the SAID PROPERTY viz., the 'Project' and the same shall exclusively be borne and paid by the DEVELOPERS.



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b. DEVELOPERS: are

- i. To arrange and provide the funds required for the purpose of carrying out all the works comprised in DEVELOPERS' SCOPE OF WORK as described in Schedule-III as envisaged herein.
- ii. To continue the construction and development activities at site irrespective of sales realization.
- iii. To execute the works comprised in the DEVELOPERS' SCOPE OF WORK in accordance with the sanctioned plans with the said specification and amenities.
- iv. To complete the entire works comprised in the DEVELOPERS' SCOPE OF WORK.
- v. To pay cost of all the materials required for carrying out and complete all the works comprised in the DEVELOPERS' SCOPE OF WORK.
- vi. To pay wages of labour, direct and indirect, supervisory staff, technical staff, including statutory claims of ESI, PF, claims under the Workmen Compensation Act and the like.
- vii. To pay the water and electricity charges during the construction period viz., upto handing over possession of flats and villas to the institution/body of the flat purchasers.
- viii. To pay the contractors, sub-contractors and other agencies.
- ix. To pay the hire charges for the equipments, centering materials.
- x. To pay for the administration and site office expenses.

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# X JF

to obtain the necessary permits, approvals and sanctions from all the concerned Authorities and to comply with the rules and regulations.

xv. To pay and settle any claim of any labour or other related agencies for any damage caused during the course carrying out the works comprised in the DEVELOPERS' SCOPE OF WORK.

xvi. To obtain other and further permissions / approvals / sanctions as may be required from all the concerned Authorities.

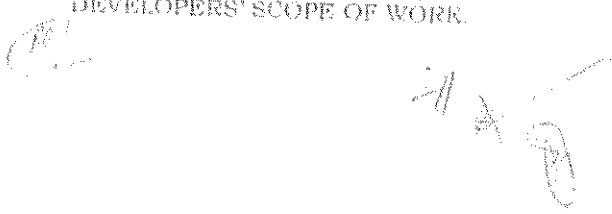
xvii. To obtain the Completion Certificate/Occupation Certificate in respect of the 'Project' on completion of the development and construction.

xviii. To keep the VENDORS fully indemnified for any deficiencies in execution/completion of the works comprised in the DEVELOPERS' SCOPE OF WORK or for any delays in execution not attributable to the VENDORS and against any claims resulting there from.

On completion of the work, whether the sale of entire saleable area is complete or not, remove at their own cost from the SAID PROPERTY viz. the 'Project' all their machineries, workmen, materials, etc.

xix. And generally doing and/or executing all such acts, deeds and things as may be necessary for the completion of this development project as envisaged therein.



8. Without in any way conflicting with and/or deviating from the provisions of clause-7 hereinafore, the specific duties, responsibilities of the respective Parties as stated herein, the Parties agree and confirm that in the interest of timely completion of the 'Project' as and when required, they would be co-operating with or helping each other to enable the affected Party to discharge their responsibilities and duties to the best of their ability. However such co-operation or help shall not discharge the affected Party from any liability towards the other Parties or other claimants under this Agreement.
9. The DEVELOPERS shall pay to the VENDORS a sum of Rs. 2.21 Crores (Rupees Two Crores Twenty One Lakhs only) as and by way of non-interest bearing refundable deposit which shall be refunded by the VENDORS to the DEVELOPERS on pro-rata basis i.e., at the rate of 15% from the revenue receipts by the VENDORS from the prospective flat/villa Purchasers.
10. The 42% of gross sale receipts received upon sale or upon execution of agreement of sale of any of the saleable areas in the 'Project' shall belong to the VENDORS as consideration for transfer of their proportionate ownership rights in the SAID PROPERTY viz. the 'Project' and 58% shall belong to the DEVELOPERS for the value of the execution of DEVELOPERS' SCOPE OF WORK.
- 

11. For the purpose of this Agreement, the Parties shall agree on the consideration mentioned in any order or any other document for sale of the saleable areas in building, terraces, garden spaces, open & still, car parking, incidental charges, advertisement, sponsorships, etc. The VENDORS and the DEVELOPERS may from time to time fix the rates at which the saleable areas in the 'Project' shall be sold. The VENDORS and/or the DEVELOPERS shall be entitled to promote the sale of the saleable areas in the 'Project' at the rates mutually agreed by the Parties from time to time.

12. It is agreed that the Parties shall establish a bank account in the name of the 'Project' in any reputed bank for the purpose of depositing the gross sales proceed received from prospective buyers of the saleable area in the 'Project' and the said bank account shall be mandated to be operated jointly by authorized representative of the VENDORS and the DEVELOPERS.

It is specifically agreed by and between the Parties that all the gross sales receipt shall be deposited in the said bank account only and distributed as per their sharing ratio.

13. The said bank in which the account of the 'project' is opened, will be irrevocably mandated that:

a. Except in the event of this Agreement being terminated as provided in clause 16 herein below, out of every rupee deposited from sale of the

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saleable areas in the 'Project', the said bank shall automatically remit 54% of such balance amount to the designated account of the VENDORS, and 58% of such balance amount to the designated account of the DEVELOPERS.

- a. The aforesaid instructions of distribution of gross receipts by the said bank shall not be altered by any Party unless express written consent of the other Party hereto.

14. The Parties hereto shall be entitled to verify and/or scrutinize the agreement for sale executed with the prospective buyers for the sale of the saleable areas in the 'Project' and the details of gross receipt collection at all times.

15. It is hereby clarified and declared that each of the Parties hereto shall be entitled to carry on their respective business/occupation apart from the said 'Project' to be developed on part of the SAID PROPERTY viz. the 'Project'. However the DEVELOPERS' shall devote the necessary time and effort in the relation to the execution of the works comprised in the DEVELOPERS' SCOPE OF WORK.

16. The arrangement contemplated herein shall be confined to the 'Project' only and the DEVELOPERS obligation to complete the infrastructure work in the SAID PROPERTY viz. the 'Project' as contemplated in the DEVELOPERS' SCOPE OF WORK and the completion and sale of the saleable areas in the 'Project'.

*[Handwritten signatures and initials are present below the text.]*

that:

- a. This Agreement is not intended to be an agreement to sell any part of the SAID PROPERTY by the VENDORS to the DEVELOPERS.
- b. This Agreement is not an agreement to share the profits and losses with reference to the tenancy of the Project so as to be regarded as a partnership between the Parties hereto.
- c. This Agreement also does not create any relationship of principal and agent or contractor between the Parties.
- d. The Parties hereto acknowledge, declare and confirm that this Agreement represents the entire Agreement between them regarding the subject matter hereof and any alterations, additions, modifications or deletions hereto shall not be valid and binding unless the same are reduced to writing and signed by or on behalf of both the Parties.
- e. This Agreement also does not create any association formed by the Parties and in fact each Party is doing its own business independent of each other and the rights and obligations of each Party is well defined, specific and mutually exclusive.
- f. The purpose of the arrangement contemplated in this Agreement is to ensure optimum realization for each Party independent from others from the respective activities it

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performance or obligations undertaken or in relation to the 'Project' developed on part of the SAID PROPERTY.

g. The Parties will receive their respective share of gross receipts under this Agreement for fulfilling their respective obligations under this Agreement. The costs and expenses incurred or to be incurred by any Party in relation to its obligations under this Agreement are their own costs and is of no consequence to the other Party except as otherwise stated expressly in this Agreement.

h. The liability to pay the income tax or any other taxes, cess, levies etc. on gross and/or net income earned or on costs incurred by each Party shall be their respective responsibility individually and any other Party shall in no way be involved or concerned about such liabilities of the other Parties. However the Parties shall ensure that they discharge all their respective obligations in respect of the matters referred in this clause so that the execution, completion and sale of the 'Project' is not affected in any manner.

i. Each of the Parties herein shall indemnify and keep indemnified, saved, defend and harmless the other Party from or against any liability arising from non-payment of any taxes, levies, cess etc. on gross and/or net income accruing from the 'Project' being implemented on the part of the SAID PROPERTY.



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the VENDORS and the PURCHASERS shall be held harmless and indemnified the other from and against any liability on account of their respective commercial dealing or income tax, sales tax and other liabilities of direct and/or indirect taxes.

18. The agreement for sale in respect of the individual flat and Villa unit to be executed **with the** purchasers shall be a Tripartite Agreement by and between the VENDORS, the DEVELOPERS and intending PURCHASERS.

19. It is specifically agreed that the absolute ownership and title of the SAID PROPERTY shall remain vested in the VENDORS till

- a. A conveyance deed is executed for transfer of the same or any part thereof
- b. Any agreement of sale is signed with the VENDORS as one of the Parties to sell any of the saleable areas in the 'Project' to any prospective buyer and full consideration for the same has been received from such buyer, in that case only that proportion which the saleable areas so sold bears to the total saleable area in the SAID PROPERTY shall be deemed to have been transferred from the VENDORS but without prejudice to the VENDORS' right to deal with the remaining area in the SAID PROPERTY devoid of any interference by the prospective buyer/s or the other Parties to this Agreement

*(Handwritten signatures and initials)*

- c. If the Floor Space Index (FSI) is increased in relation to the SAID PROPERTY or any part thereof, the entire benefit of the same shall belong to the VENDORS exclusively. However if such increase in FSI relates to area of the SAID PROPERTY comprised in the 'Project', and the development of additional FSI is carried out by the DEVELOPERS as additional scope of the DEVELOPERS' SCOPE OF WORK, the gross receipts from sale of the saleable areas representing such additional FSI shall also be shared in the same manner as contemplated in Clause 10 of this Agreement.

20. Subject to Clause 19 above, the Parties agree as under:

- a. The VENDORS undertake to divest their title and give the ultimate possession of the land comprised in the 'Project' to the buyers of the saleable areas including open space in the "Project" or to any society/association or any other entity formed for taking over the entire "Project" complex, as the case may be.
- b. Simultaneously the DEVELOPERS agree to hand over the possession of the saleable areas and common areas constructed by them as part of development of the 'Project' to the buyers of the saleable areas in the 'Project' or to any society/association or any other entity formed for



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may be required to be performed by the Parties.

4. Provided however the Parties shall not be obliged to perform their obligations under this clause and they have respectively reserved the entire area of consideration due to the respective portion of the saleable area in the 'Project'.

21. It is hereby specifically understood and agreed between the Parties hereto that the DEVELOPERS shall indemnify the VENDORS for any monetary and legal consequences arising out of any relationship contractual or otherwise entered into between the DEVELOPERS and any third party/agency and/or in respect of losses caused due to actions, claims, damages, compensation or costs, charges and compensation or costs, charges and expenses arising out of any accident or injury sustained by any workman.

22. This Agreement hereto by and between the Parties as mutually agreed by and between them shall or come to an end or shall be deemed to have been terminated upon:

- a. On completion of the works comprised in DEVELOPERS' SCOPE OF WORK as also the completion of the 'Project' in all respects.
- b. After all the saleable areas comprised in the 'Project' have been sold and/or Parties have mutually divided the balance unsold saleable areas amongst themselves as its prospective buyers.

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All the amounts receivable from the prospective buyers thereof have been received and distributed in the manner set out herein; and

d. Final accounts as envisaged hereinabove are settled between the Parties hereto.

23. The Parties hereto agree and record that they shall from time to time hold site meetings to review the progress of the work as per the mutually decided schedule and review the terms of this Agreement. It is agreed and confirmed that any change or modification shall be rendered in writing in the form of supplementary indenture hereto and not otherwise

24. The DEVELOPERS shall complete the development and construction of all works comprised in DEVELOPERS' SCOPE OF WORK within a period of 24 months and/or within extended mutual agreed period from signing of this Agreement subject to force majeure not in the reasonable control of the DEVELOPERS inter-alia including non availability of any building materials or on account of riots, strikes, civil commotion, lock-outs, earthquake, fire, accident or act of God and prohibitory order or injunction or directive of any Government Tribunal, Quasi-tribunal, local or public body or authority or competent authority or any Act, Ordinance, Statutes, Rules, Regulations, Bye-laws, Notifications by Government (State and Central) or Municipal or other Local Bodies or Competent Authorities PROVIDED THAT if any of the above contingencies shall adversely affect the 'Project', then in that case the period shall be further

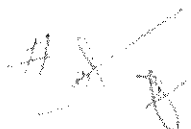
*[Handwritten signature]*

months and further extension shall be at the discretion of the Parties.

25. Any notice to be given by the Parties to the other shall be deemed to have been given by sending a registered post acknowledgement due letter addressed to the Party with copy to other Party at the address mentioned at the beginning of this Agreement for the said Parties.

26. This Agreement represents all the understandings between the Parties and unless the same is varied in writing signed by all the Parties, this Agreement shall be final and binding.

27. All disputes and differences whatsoever arising out of or touching these presents or the construction, interpretation or application thereof or anything therein contained including the performance of the respective obligations of each of the Parties hereto during the subsistence of this Agreement, or any clause, matter or thing herein contained or the rights and liabilities of the Parties herein or any claims made against each other, shall be referred to arbitration. The VENDORS shall appoint one arbitrator and the DEVELOPERS shall appoint one arbitrator and the said two appointed arbitrators shall appoint an umpire or third arbitrator in accordance with the Arbitration and Conciliation Act, 1996 or any statutory modification or re-enactment in force for the time being. Such arbitration shall be conducted at Panjim Goa in English language. The award passed by the Arbitrators shall be final and conclusive and binding on the Parties.

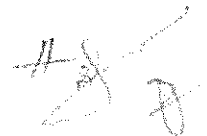
18. This Agreement has been printed in two sets and both the sets have been executed simultaneously and both shall be considered as original and the VENDORS and the DEVELOPERS will have one of such Agreement. All out of pocket and misc. expenses etc. including stamp duty, registration fees and incidental charges of this Agreement required for the successful implementation of the 'Project' and for effective development of the said part of the SAID PROPERTY shall be borne by the DEVELOPERS alone and the other Party shall not be called upon to contribute any amount towards such expenses.

#### SCHEDULE-I

##### *(Description of "the SAID PROPERTY")*

All that property bearing Survey No.93 Sub Division 3 situated at Bambolim known as "BAILEM FONDIM", "SAVELI GALI" or "OHOR", admeasuring 26,825 m<sup>2</sup> approximately, forming part of a larger property totalling 97500 sq. mtrs or thereabout within the limits of Village Panchayat Curca, Bambolim & Talaulim, Taluka of Tigwadi, Registration Sub-District of Ilhas, District of North Goa and neither described in land registration office nor enrolled under matriz and bounded as follows:

|       |                                                            |
|-------|------------------------------------------------------------|
| North | : By Plot surveyed under no.103                            |
| South | : By plots surveyed under No.94                            |
| East  | : By plot surveyed under No.93/1                           |
| West  | : By the plot of G.M.C surveyed under<br>nos.102/3 and 104 |

... to have been executed and handwritely signed shall be considered as original and the VENDORS and the DEVELOPERS will have one of such Agreement. All out of pocket and misc. expenses etc. including stamp duty, registration fees and incidental charges of this Agreement required for the successful implementation of the 'Project' and for effective development of the said part of the SAID PROPERTY shall be borne by the DEVELOPERS alone and the other Party shall not be called upon to contribute any amount towards such expenses.

#### SCHEDULE-I

##### *(Description of "the SAID PROPERTY")*

All that property bearing Survey No 93 Sub Division 3 situated at Bambolim known as "BAILIEM FONDIEM", "SAVELI GALT" or "OHOR", admeasuring 26,825 m<sup>2</sup> approximately, forming part of a larger property totalling 97500 sq. mtrs or thereabout within the limits of Village Panchayat Curca, Bambolim & Talaulim, Taluka of Tiswadi, Registration Sub-District of Ilhas, District of North Goa and neither described in land registration office nor enrolled under matríz and bounded as follows:

North : By Plot surveyed under no. 103  
 South : By plots surveyed under No. 94  
 East : By plot surveyed under No. 93/1  
 West : By the plot of G.M.C. surveyed under  
 nos. 102/3 and 104

## SCHEDULE II

### The Schedule of works comprised in DEVELOPERSS SCOPE OF WORK

#### 1. Specifications/Amenities/Buildings/Flats

##### RCC:

1. Earthquake resistant structure

##### Flooring:

2. Vitrified high glass tiles 2'x2' in entire flat (Premium quality)
3. Anti-skid tiles in toilets and terraces (Premium quality)

##### Kitchen:

1. Granite kitchen platform, with stainless steel sink with drain board.
2. Glazed/Ceramic dado tiles 2' above platform
3. Provision for exhaust fan & Gas Leak Detector
4. Anti-cockroach trap for outlets

##### Doors/Windows:

1. Decorative moulded main door
2. Internal moulded Flush doors
3. Jam width door frame with polish
4. Powder coated / anodised aluminum door for balconies
5. 2/3 track powder coated/anodised aluminum windows/louvers

##### Toilets:

1. Concealed plumbing with premium quality C.P. fittings
2. Designer glazed dado tiles on the walls
3. Single lever bathroom fixtures in bathrooms

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4. Wall mounted E.H.W. in kitchen
5. Corner washbasins
6. Granite door frames
7. Mirror

**Electrification:**

1. Corroded copper wiring with circuit breakers
2. Cable and telephone points in living room and master bedroom
3. AC. Points in bedrooms
4. Premium quality switches (ISO marked)
5. Shuttered plug socket to avoid accidental contact

**POP:**

1. POP / Gypsum / Cement Plaster treatment in entire flat

**Painting:**

2. Superior wall finish full washable emulsion
3. Textured Paint finishes on the external walls

**General amenities for the building:**

1. Anti-termite treatment
2. Decorative entrance lobby
3. Fully automatic lifts

**2. Infrastructure - Specifications/Amenities**

**General:**

1. Leveling & Filling as required
2. Compound Wall

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1. Main gates with Security office
2. Internal roads with rain water drainage
3. Street Lighting
4. Garden and Landscaping
5. Common over head & underground water storage tanks
6. Furnished Society Office
7. Club House
8. Generator for lift & Staircase lights/Common areas
9. Transformer / Sub - station etc. for necessary supply of power to all the constructed areas.
10. Rain water harvesting system
11. Model Flat
12. Sewage Treatment Plant and intermediate septic tanks
13. Underground electrical cables, service cables, water lines, sewage lines and other services
14. Parking facilities on Stilts

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## SCHEDULE-III

LIST OF DOCUMENTS EVIDENCING THE TITLE OF THE  
VENDORS

Part I & XIV of Record of Rights in respect of property  
surveyed under Survey No. 93/3 of Village Bambodun,  
Taluka Fawadi, Goa

Deed of Sale dated 25.04.2006 registered in the office of  
the Sub Registrar of Ilhas Goa under No.1239 at pages  
388 to 408, Book-1, volume 1634 dated 03.05.2006 in  
respect of property surveyed under Survey No. 93/3

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PRODUCED BY AN AUTODESK EDUCATIONAL PRODUCT

PRODUCED BY AN AUTODESK EDUCATIONAL PRODUCT

road of 103 access

ANNEXURE-I

Plan

SECTOR 3

area 1745.01

SECTOR 2

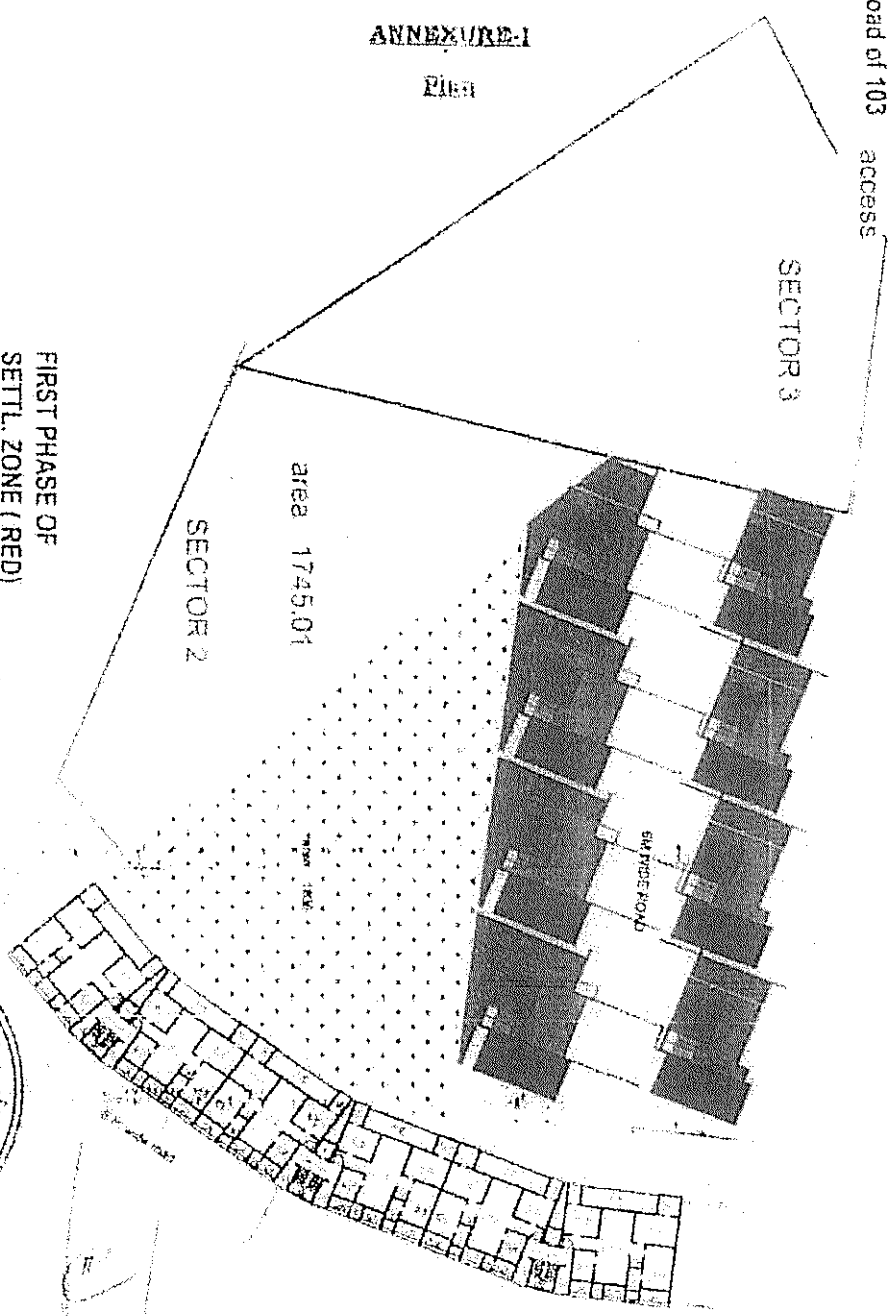
SHADE POOL

SECTOR 1

access

FIRST PHASE OF  
SETTL. ZONE (RED)

ROOF PLAN



## ANNEXURE II

## Nos. of Buildings/Flats

| Building No. | No. of Flats/Units |
|--------------|--------------------|
| 1            | 5                  |
| 2            | 6                  |
| 3            | 8                  |
| 4            | 5                  |
| 5            | 5                  |

#

ANNEXURE IIIPermissions/Sanctions/NOC's/License

- 1 Office of the Collector, North Goa District, Panaji - Goa  
Vide conversion sanad no RH/CNV/TIS/135/2008 Dated  
16.12.2011
- 2 The Town Planning, Town and Country Planning  
Department, Tiswadi Panaji Goa vide permission No.  
TIS/7554/BAM/TCP/13/377 Dated 27.02.2013
- 3 Directorate of Health Services, Urban Health Centre,  
Panaji - Goa vide NOC No. UHCP/DHS/NOC/12-13/3557  
Dated 13.03.2013
- 4 Village Panchayat of Curca, Bambolim and Talaulim,  
Tiswadi Taluka - Goa vide construction license no  
VP/CBT/2013-14/CONST/88 Dated 16.04.2013



ad. Application dated Nil, from Mr. Pascoal Trindade, C.O. Bamlolim, Tiswadi Taluka.

**SANAD  
SCHEDULE II**

1. Sec. Rule 7 of the Goa, Daman and Diu Land Revenue (Conversion of use of land and non-agricultural Assessment) Rules, 1969.

Whereas an application has been made to the Collector of North Goa (hereinafter referred to as the Collector) which expression shall include any officer whom the Collector shall appoint to exercise and perform his powers and duties under this grant) under section 32 of the Goa, Daman and Diu Land Revenue Code, 1968 (hereinafter referred to as the said Code which expression shall, where the context so admits, include the rules and orders thereunder) Mr. Pascoal Trindade, being the occupants of the plot registered under Survey No. 93/3(Part) known as 2 Situated at village Bamlolim, Tiswadi Taluka registered under Survey No. 93/3(Part) (hereinafter referred to as "the applicants, which expression shall, where the context so admits include his/her heirs, executors, administrators and assigns) for the permission to use the plot of land hereinafter referred to as the "said plot" described in the Appendix I hereto, forming a part Survey No. 93/3(Part) measuring 10000 Square Metres for the same a little more or less for the purpose of Residential Use.

Now, this is to certify that the permission to use for the said plot is hereby granted, subject to the provisions of the said Code, and rules thereunder, and on the following conditions, namely:

**1. Levelling and clearing of the land** - The applicants shall be bound to level and clear the land sufficiently to render suitable for the particular non-agricultural purpose for which the permission is granted to prevent insanitary conditions.

**2. Assessment** - The Applicants shall pay the non-agricultural assessment when fixed by the Collector under the said Code and rules thereunder with effect from the date of this sanad.

**3. Use** - The applicants shall not use the said land and building erected or to be erected thereon for any purpose other than Residential use, without the previous sanction of the Collector.

**4. Liability for rates** - The applicants shall pay all taxes, rates and cesses leviable on the said land.

**5. Penalty clause** - (a) if the applicants contravenes any of the foregoing conditions the Collector may without prejudice to any other penalty to which the applicants may be liable under the provisions of the said Code continue the said plot in the occupation of the applicant off payment of such fine and amount as he may direct.

(b) Notwithstanding anything contained in sub-clause (a) it shall be lawful for the Collector to direct removal or alteration of any building or structure erected or used contrary to the provisions of this grant within such time as specified in that behalf by the Collector, and on such removal or alteration not being carried out and recover the cost of carrying out the same from the applicant as an arrears of land revenue.

(c) If the Information, if any, furnished by the applicant for obtaining the Sanad is found to be false at later stage, the Sanad issued shall be liable to be withdrawn without prejudice to the legal action that may be taken against the applicant.

(d) If any dispute arises with respect to the ownership of the land, the Sanad granted shall stand void and the Construction/Development carried out shall be at the cost and risk of the applicants.

(e) The necessary road widening set-back to be maintained before any development in the land.

(f) Traditional access passing through the plot, if any, shall be maintained.

(g) No trees shall be cut except with prior permission of the competent authority.

Given

11/3/98

OF LAND AND REVENUE DEPARTMENT.

# APPENDIX - I

| Length and Breadth                   |                | Total Superficial Area | Forming (part of) Survey No. or Hissa No. | BOUNDARIES   |                    |             |                    | Remarks |
|--------------------------------------|----------------|------------------------|-------------------------------------------|--------------|--------------------|-------------|--------------------|---------|
| North to South                       | East to West   |                        |                                           | 5            |                    |             |                    |         |
| 1                                    | 2              | 3                      | 4                                         | North        | South              | East        | West               | 6       |
| 110.00 Sq. mts                       | 128.00 Sq. mts | 10000 Sq. mts          | Survey No. 93/3 (Part)                    | S. No. 103/1 | S. No. 93/3 (Part) | S. No. 93/1 | S. No. 93/3 (Part) | NIL.    |
| Village: Bambolim<br>Taluka: Tiswadi |                |                        |                                           |              |                    |             |                    |         |

## Remarks:-

1. The applicant has paid conversion fees of Rs. 2,50,000/- (Rupees Two Lakh Fifty Thousand Only) vide receipt No. 11414 dated 09-12-2011.
2. The Conversion has been approved by the Town Planner, Town and Country Planning Department, Mapusa vide his report No. TIS/6/25/TCP/09/TCR/233 dated 04/03/09.
3. The development/construction in the plot shall be governed as per rules in force.
4. The Dy. Conservator of Forest has given No objection for grant of Conversion vide report No. SCNV/TIS/DCNF/TECH/2009-10/107 DATED 07/05/2009.
5. The Dy. Collector, Tiswadi, vide letter No. TIS/15/16/17/19/207 dt. 21/10/2011 up to 20/11/2011 has hereunto set his hand and the seal of his Office on behalf of the Administrator of Goa, Daman and Diu and Mr. Pascoal Trindade, here also hereunto set his hands this 16<sup>th</sup> day of December, 2011.

(Pascoal Trindade)  
Applicant

(R. MIHIR VARDHAN)  
COLLECTOR OF NORTH GOA

## Signature and Designation of Witnesses

1. Manoj K. Phonsom

2. Bernardo R. Figueiredo

## Complete address of Witness

1. 14/DA-557/E Talagao Tiswadi, Goa

2. Hat 128/A-113 Bambolim, Goa

We declare that Mr. Pascoal Trindade, who have signed this Sanad is, to our personal knowledge the person he/she represents himself to be, and that he/she has affixed his/her signature hereunto in our presence:

1. Sm  
2. V. 4

To:-

1. The Town Planner, Town and Country Planning Department Tiswadi
2. The Mamlatdar of Tiswadi Taluka.
3. The Inspector of Survey and Land Records, Panaji
4. The Sarpanch, Village Panchayat, Bambolim, Tiswadi Goa

OFFICE OF THE TOWN PLANNER  
TOWN & COUNTRY PLANNING DEPT  
2<sup>ND</sup> FLOOR, JAI RAM COMPLEX  
TISWADI TALUKA OFFICE  
MALA, PANAJI GOA

TECHNICAL CLEARANCE ORDER

Technical Clearance is hereby granted for carrying out the work of proposed construction of Residential Complex and Compound wall as per the enclosed approved plans in the property zoned as (VP-1) in Outline Development Plan of Panaji (old ODP) situated at Bambolim village of Tiswadi Taluka bearing Sy.No.93/3(P) with the following conditions:

1. Construction shall be strictly as per approved plans. No change shall be effected in the approved plans/approved built spaces without the prior permission of this authority.
2. The permission granted shall be revoked, if any information, plans, calculations, documents and any other accompaniments of the application are found incorrect or wrong at any stage after the grant of the permission and the applicant will not be entitled for any compensation.
3. The permission shall be revoked if found expedient to such an action under the provision of section 50 of the Goa Town & Country Planning Act 1974.
4. The development permission will not entitle the applicant for making/laying any claim on water and any other connection from the government of Goa.
5. The Developer/applicant should display a sign board of minimum size 1.00 mts x 0.50 mts with writing in black colour on a white background at the site, as required under the Regulations.
6. The applicant shall obtain conversion sanad under the Goa Land Revenue Code 1968, before the commencement of any development/construction as per the permission granted by this order.
7. The soak pit should not be located within a distance of 15.00 meters from any other existing well in the plot area/plan.
8. The commencement and the completion of the work shall be notified to this office in writing in appropriate forms.
9. Completion certificate has to be obtained from this office before applying for occupancy certificate from the licensing authority.
10. Storm water drain should be constructed along the boundary of the effected plot abutting to the road.
11. Adequate utility space for the dustbin, transformer etc, should be reserved within the plot area.
12. In case of any cutting of sloppy land or filling of low lying land, beyond permissible limits prior permission of the Chief Town Planner shall be obtained before the commencement of the works as per the provisions of section 17(A) of the Goa Town & Country Planning Act 1974.
13. In case of compound walls, the gates shall be open inwards only and traditional access, if any passing through the property shall not be blocked.

*[Handwritten signature]*

- 14) The Ownership of the property shall be verified by the licensing body before issuing of the licence.
- 15) All the set back as shown on the site plan shall be strictly maintained.
- 16) The balconies proposed should not be covered in any fashion, which may lead to access FAR.
- 17) Along the intersection of the streets, no compound wall shall be raised to a height of more than 0.90 mts from the crown of the road for length of 0.9mts from the intersection of the street. This distance being measured from the corner point of the plot.
- 18) Maximum height of the compound wall along the boundary other than that abutting on a street may be permitted upto a height of 1.80 mts and along the boundary abutting on a street upto a 1.50 mts only and may be closed type upto a height of 90 cm only and of open type above that height.
- 19) Proposed stilt for parking shall be strictly used for parking of vehicles only and shall not be closed at any point of time.
- 20) Collection and disposal of solid and liquid waste shall be implemented as per the project report submitted.
- 21) Solar water heating/solar energy capturing system shall be implemented as per the project report submitted.
- 22) Fire department clearance shall be obtained if required.
- 23) This NOC is issued with Government approval.
- 24) The applicant should complete the approach road as per the PWD specification before obtaining occupancy certificate.

THIS ORDER IS ISSUED WITH REFERENCE TO THE APPLICATION UNDER INWARD NO.6234 DATED 10/9/12 FROM Mr. Pascoal Trindade.

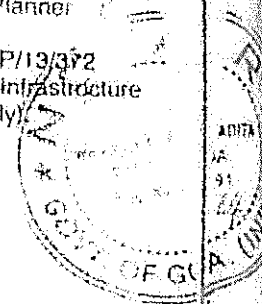
(THIS ORDER IS VALID FOR THREE YEARS FROM THE DATE OF ISSUE OF CONSTRUCTION LICENCE, PROVIDED THE CONSTRUCTION LICENCE IS ISSUED WITHIN THE PERIOD OF THREE YEARS).

(Verilka Dagur)  
Town Planner

NOTE: Pursuant to this office assessment order No. TIS/7544/BAM/TCP/13/372 dt. 27/2/13 the applicant vide challan No. 625 dt. 27/2/13 has paid the infrastructure tax of Rs. 9,08,100/- (Rupees Nine lakh Eight thousand One hundred only).

To,  
Mr. Pascoal Trindade,  
Dona Paula,  
Panaji-Goa.  
Copy to:

The Secretary,  
Office of the village Panchayat,  
Curca, Bambolim & Talaulim,  
Tiswadi Goa.



Government of India  
 Directorate of Health Services  
 Urban Health Centre, Poram

**NO OBJECTION CERTIFICATE**

These are to certify that my representative have inspected the construction of a Residential Complex & Compound wall below the Survey No 9VA(P) of Bamhodi village, Distt. B. and found it to be constructed in the following points of view.

Approximate No. of persons

No. of units for residential purpose 76

No. of units for commercial purpose 00

Total 76

No. of the Sewerage line for the above person

| No. of persons | L | R | Total |
|----------------|---|---|-------|
| 600            |   |   |       |

Whether the Sewerage line has been shown on the plan & if so, which side

Yes. South

Whether the Sewerage line is adequate to the above units/persons and if not what should be done

Yes

Distance of the Sewerage line from any drinking water well

More than 20 meter

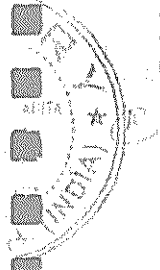
Whether the drains in the complex have been properly shown to discharge rain water

Yes

Whether there is any possibility of contaminating water in the nearby wells due to construction of septic tank and soak pit

NA

*[Handwritten signature]*



This NOC is issued on the condition that the applicant and/or builder shall observe the following requirements:

1. The SEP should not be located within a distance of 2000 meters from any other existing well in the plot area plan.
2. All the laborers employed in the construction activity shall possess valid Health Cards and the same shall be renewed every three months. NO laborers shall be engaged by the Builder/contractor unless he/she has a valid Health Card.
3. The NOC shall be revoked if the construction of the Septic tank, soak pit and drainage system of the premises are not as per the approved plan.
4. The applicant shall construct a separate soak pit in order to absorb the sewage water from the kitchen and from other non-sewage resources.
5. Accumulation of water shall be prevented in pits in and around the site so as to avoid the breeding of mosquitoes.
6. The builder/contractor shall take adequate anti-dust measures at the construction site in consultation with the Health Officer/Medical Officer or a Sanitary Inspector.
7. NOC from the authority shall be obtained before obtaining the Occupancy Certificate.
8. The sanitary orders have to be provided to all laborers residing on the construction site.
9. The NOC is liable to be withdrawn if the conditions stipulated above are not complied with or if it is established that the NOC has been obtained using fraudulent means.
10. Construction board with details should be displayed at the construction site.

Yours faithfully,

*(Dr. Mangala Tantiya)*  
Health Officer  
Urban Health Centre, Panaji

C To:  
Shri Pascoal Trimbade,  
Donor, Dona Paula, Panaji Goa.

Copy to: 1. The Director, Directorate of Health Services, Chief, Panaji. For information.  
2. The Secretary, V.P. St. Cures Hospital & Laboratory Goa.  
3. The Medical Officer, I.C. Primary Health Centre, Condam.

## APPENDIX C4

Village Panchayat Building LicenceVillage Panchayat Curca Bambolim & Talaulim, Tiswadi-Goa.CONSTRUCTION LICENCE

No. P/91/2014-14 dated 27/02/2014

Date: 26/02/2014

is hereby granted for carrying out the construction of the building complex on the site as per the approved plan and conditions thereon (hereinafter referred to as 'the plan').

- a) As per the enclosed approval plan/plans in the property owned at (V/P) in the (V/P) and situated at **Bambolim** village/Town bearing Survey No. 114/3(P).
- b) The Objection Certificate issued by the Director of Health Services, Government of Goa vide No. DHO/DP/DHS/ROC/12-13/3557 dt. 13/03/2014 from conditions 1 to 10.
- c) The Town Planner, Town & Country Planning Department, Tiswadi, Panaji, Goa vide No. Tis/7554/BAM/TCP/13/377 dated 27/02/2014 from conditions 1 to 24.
1. The applicant shall notify the Panchayat for giving the alignment of the building.
2. The construction should maintain the minimum prescribed horizontal and vertical clearance from any overhead electrical line passing adjacent to the construction.
3. All RCC/Structural works shall be designed and supervised by the Engineer who has signed the Structural Liability Certificate submitted to the Panchayat.
4. No material for construction or earth from excavations or any other construction material shall be stacked on the Public road.
5. The Building should not be occupied unless the Occupancy Certificate is obtained from the Panchayat.
6. The Construction licence shall be revoked if the construction work is not executed as per the approved plans and the statement therein and whenever there is any false statement or misrepresentation of any material passed, approved or shown in the application on which the permit was based.
7. The applicant should construct a separate soak pit in order to discharge in the village water.
8. Any soak pit should be constructed at a minimum distance of 15 meters away from any well.
9. The ventilation pipe of the septic tank should be provided with a mosquito net.
10. The Applicant should connect the pipeline from their latrine/WC's to the sewerage line at their own cost, when the sewerage line is commissioned.
11. The Applicant should fix a board at a prominent place whenever the construction is started including the number, the date and the authority for which the licence for development work has been granted.
12. All the building material and other rubbish should be cleared from the construction site before applying for the Occupancy certificate.
13. Water storage tanks shall be provided with mosquito proof lids and over flow pipes. The tanks should be provided with access ladders wherever necessary.
14. The drains surrounding the plot if any should be constructed with RCC and should be covered with removable RCC slabs of sufficient thickness.
15. The applicant should gift the road widening area to the Village Panchayat before applying for the Occupancy certificate, if the applicant has utilized the extra FAR in lieu of the road widening affecting the plot.
16. The applicant should plaster and paint the building internally as well as externally before applying for Occupancy certificate. Exposed brick/laterite/concrete/stone/ashlars masonry finish to building will also be accepted.



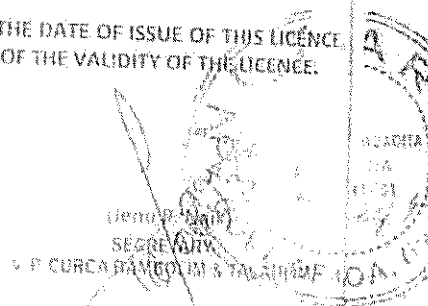
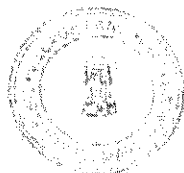
Date: 26/02/2014

Handwritten signature and initials.

17. The applicant should provide a dustbin at a convenient place accessible for the Municipality vehicle for collection of garbage.
18. Road widening area shall be adjusted to the existing road level before applying for occupancy certificate.
19. Garbage and Parking area shown in the approved plan shall be strictly used for parking purpose only and should be easily accessible to vehicles. No commercial activities shall be allowed in these areas.
20. Access up to the entrance of the building is to be paved and is provided with drainage facilities.
21. Space for parking of vehicles is clearly demarcated on the ground.
22. No Restaurants/Bars will be permitted in the shops unless a separate soak pit is provided besides conforming to the rules in force.
23. No commercial activities will be permitted in the shops unless a separate permission is obtained from this Panchayat.
24. All Temporary sheds/Existing buildings shown to be demolished in the plan are demolished before applying for Occupancy certificate.
25. Fire Escape staircase, if applicable shall be constructed as indicated in the approved plans.
26. All internal courtyards should be provided with drainage outlet.
27. The applicant should maintain all existing natural drains in the plot and should not block them at any stage.
28. No soak pit or other structure should come in the road widening area.
29. The plot boundary should be cordoned off by continuous sheet fencing either of wood or metal during the construction period.
30. The construction of compound wall should not obstruct any pathway or any public access. The applicant shall make necessary arrangement for smooth flow of rain water by keeping adequate opening in the compound wall for all purpose.
31. No gates shall open outwards on to the road.
32. The construction of the compound wall should be as per the approved plan. The applicant shall inform this Panchayat after the completion of the compound wall.
33. Drinking water well should be 15 meters away from any soak pit.

The Construction licence is issued as per the Resolution No. 5(1) held on 12/04/2014 in Panchayat meeting and Construction licence fees to the tune of Rs. 2,50,200/- is collected with Receipt No. 105/76 dt. 16/04/2014.

**THIS LICENCE IS VALID FOR A PERIOD OF THREE YEARS FROM THE DATE OF ISSUE OF THIS LICENCE. RENEWAL IF REQUIRED SHALL BE APPLIED WITHIN THE PERIOD OF THE VALIDITY OF THE LICENCE.**



To,  
Mr. Pascoal Trindade,  
Palluka Mansion,  
Near White house,  
Dona Paula, Tiswadi Goa

IN WITNESS WHEREOF, I have hereunto set my hand and seal of my office in the respective hands of the DAY MONTH AND YEAR HEREINAFTER MENTIONED

Signed sealed delivered by

Within named VENDOR 1

Of the First Part

*Signature on production of*  
*Driving license (held/issued)*  
*Doc 1013 21/7/2014 21-7-2014*

Mr. Pascoal Trindade

for self and as attorney of Mrs. Albertina Trindade

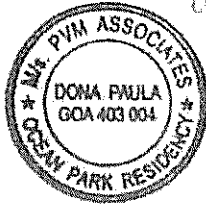
Signed sealed delivered by

Within named VENDOR 2

Of the First Part

*Signature on production of*  
*RAV CARD ADS PS 20778N*  
*Govt ID Card*

Mr. Vikram Shah



Signed sealed delivered by

Within named VENDOR 2

Of the First Part

*Signature on production of*  
*Driving license 6/11/01/2008*  
*Doc 1013 21/7/2014 17-05-1976*

Mr. Murlidhar Sadarangani

EXECUTED BEFORE ME  
 WHICH I ATTEST

Signed sealed delivered by

Within named DEVELOPERS

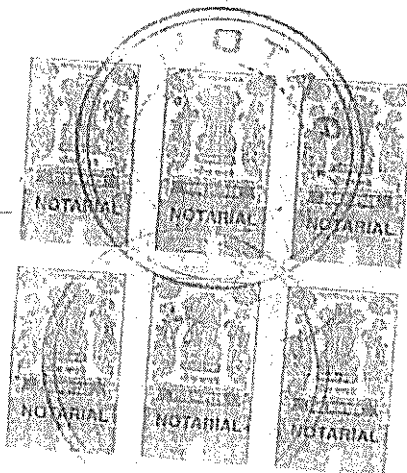
Of the Second Part

*Signature on production of*  
*Electric Commission 7/2/2014/14*  
*Doc 1763 358*  
*Doc 1763 21/11/07*  
*Doc 25-04-2014*

M/s. Kuval Projects Pvt Ltd

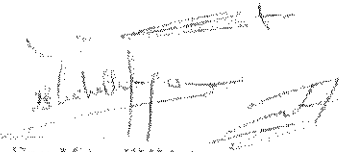
Witnesses:

1. MANUEL C. DIAS *Signature*
2. Joyce Pereira *Signature*



## RECEIPT

Received a sum of Rs. 2,21,00,000/- (Rupees Two Crore Twenty One Lakhs Only) vide Cheque Dated 25.04.2014 drawn on IDFC Bank Limited, Taleigao Branch, bearing no.000001 from within named Developers M/s. Kunal Projects Pvt Ltd the receipt thereof is duly acknowledged by the withinnamed Venkatesh M/s. PVM Associates.



For M/s. PVM Associates



CNR: GANG02-002540-2013

SCS 52/2013/A

**ORDER BELOW (Exbt. D-4)**

**(Delivered on this the 13<sup>th</sup> day of the month of March,  
2020)**

This order shall dispose off the Application for Temporary Injunction filed by the Plaintiff at exhibit D-4.

2. The contents of said application is not reiterated herein as the order is typed below the said exhibit D-4.

3. In brief the defendants upon being served appeared and filed their affidavit in reply at exhibit D-17. Plaintiff filed affidavit in rejoinder at exhibit D-18. Defendant no. 1 and 2 filed reply to affidavit in rejoinder at exhibit D-19. Both the parties relied on following documents :

(1) Copy of permission dated 08.10.2013 and 15.10.2013 obtained from Hon'ble Administrative Tribunal to the plaintiff to file the suit.

(2) The copy of Tombasao Book No.1 and Tombasao Book no.2 showing that the said property Saveli gali and Oros belong to the Comunidade of Bambolim alongwith English translation..

- (3) Old survey plan (planta) is available in the office of Director of Settlement and Land Records Government of Goa alongwith New Survey plan of Village Bambolim.
- (4) Copy of Form II (Area) Book of village of S.NO.89, 90/1 and 2, 93.
- (5) Copy of the Govt. Gazette dated 02.09.1965 notification dated 18.08.1965 and award dated 30.03.1966.
- (6) Copy of letter dated 26.02.1966.
- (7) Copy of the Govt. Gazette dated 18.12.1969 notification dated 04.12.1969.
- (8) Copy of Minutes of Auction dated 03.01.1971 of "OROS" and Minutes of Auction of "Saveli Gali" alongwith translation copy.
- (9) Copy of orders in case no.CAJ/ARAC/PRC/10/EHD-11/71 and 18/1971 the order dated 20.12.1971, 10.12.1971 passed by the Mamlatdar of Tiswadi .
- (10) Copy of the Govt. Gazette dated 15.01.1981 notification dated 31.12.1980 and Award LAO/386 dated 23.03.1981.
- (11) Copy of the Judgment and Decree dated 06.08.1986 in Special Civil Suit no.127 and 128/A.
- (12) Copy of applications for intervention, application for withdrawal filed by Maximo Mergulhao and judgment and order dated 15.01.1982.

- (13) Copy of the records of the year 1939 of payment of foros ground rent alongwith English Translation.
- (14) The copy of the Award dated 22.11.1993, 24.12.2002 in LCA no. 104/1994.
- (15) Copy of the Judgment dated 31.08.2000 in LAC 98/1987.
- (16) Copy of the Judgment dated 24.08.1993 in LAC 9/1981 and 31.08.2000 in LAC 100/87.
- (17) Copy of award of land Acquisition Officer dated 04.10.1985.
- (18) Copy of Judgment dated 07.08.1995 in LAC No.96/1987.
- (19) Copy of Judgment dated 07.06.1988 in W.P. No.2/1988.
- (20) Copy of the said compromise terms dated 19.11.1998, the order passed on 21.11.1998 and the Decree dated 21.11.1998 in Special Civil Suit no. 222/94/B before Civil Judge Senior Division at Panaji.
- (21) Copy of Judgment dated 18.02.2009 in W.P. No.102/2009.
- (22) Copy of Order dated 03.07.2009 in W.P. No.102/2009.
- (23) Copy of Judgment dated 29.03.2012 in Writ Petitions no. 506/2009, 557/2009, 577/2009 and 657/2011 and order of the Deputy Collector dated 01.08.2011 which is produced in Writ Petitions no.506/2009, 557/2009, 577/2009 and 657/2011.

- (24) Copy of letter dated 05.12.2012 and dated 09.10.2012.
- (25) Copy of judgment and decree dated 11.04.2001 in Special Civil Suit No.15/2001/A.
- (26) Copy of 3 Sale Deeds dated 25.04.2006 executed between defendant no. 1, 3 and 4.
- (27) Plaintiff crave leave to refer and rely upon the sale deed dated 18.07.2007.
- (28) Copy of compromise decree dated 25.01.2007 in Regular Civil Suit No.6/2007/C before Civil Judge Senior Division at Panaji.
- (29) Copy of the Agreement for sale dated 29.08.1989.
- (30) Copy of Sale deed dated 24.04.2006.
- (31) Copy of Form I & XIV of survey no. 93/2, 3 and 4.
- (32) Copy of public notice published in Navhind Times dated 31.01.2013 and reply dated 15.02.2013 and 21.02.2013.
- (33) Copy of the survey report of Mr. Prazares Gonsalves.

4. Plaintiffs as well as defendant filed written synopsis which are at exhibit D-20 and D-21 as well as argued orally in length.

5. It is pertinent to note that the present suit as of now is being contested only by defendant no. 1 and 2 whereas defendant no. 3 to 9 are proceeding exparte.

6. Points that arise for my determination and my findings thereon are as follows.

| Points for determination                                                                   | Findings                |
|--------------------------------------------------------------------------------------------|-------------------------|
| 1. Whether the plaintiff proves that there is prima facie case infavour of the plaintiff ? | Affirmative             |
| 2. Whether irreparable loss will be caused to the plaintiff ?                              | Affirmative             |
| 3. In whose favour balance of convenience tilts ?                                          | In favour of plaintiff. |

### REASONS

#### Point no. 1

7. In order to prove prima facie case in favour of the plaintiffs, Ld. Advocate for the plaintiffs contended that the Sale Deed of defendant no.3 in favour of defendant no. 1 and 2 is void as consent decree was obtained by fraud in SCS No.222/94/B.

8. Per contra Ld. Advocate Shri R. Rao for the defendant no. 1 and 2 contended that defendant no. 1 and 2 are bonafide purchasers and they have purchased from defendant no. 3 after the consent decree was passed and hence disputed that the suit properties bearing survey no. 93/2, 93/3 and 93/4 of Village of Bambolim in Tiswadi Taluka SCS No. 52/2013/A

does not belong to the plaintiff as the document of Form -2 is not the title document and it is a Gaunkar Book and relied upon the decision of Hon'ble High Court of Bombay Bench at Aurangabad in Second Appeal No.780 of 2005 - Wherein the Hon'ble High Court has discussed as to what is Gaunkar book and its terms in its notion is the calculation of an area of field as per the glossary of measurements terms in manual of land surveying.

9. Learned Advocate Shri. P. Kamat for the Plaintiff further contended that the Decree in Special Civil Suit No. 222/94/B is illegal as the suit was in respect of only Survey No.89/3 and the Decree is in respect of 89/3 and in regards to survey No.93/2,93/3 and 93/4 which was not the subject matter of the suit in Special Civil Suit No. 222/94/B and that thus there is fraud in the same and there are illegalities in the said Decree.

10. Per contra Learned Advocate Shri. R. Rao for the Defendants No.1 and 2 contended that it was a consent Decree and in view of Order 23 of CPC it is permissible.

11. In my considered view so far as the fraud in Decree is concerned it is larger Issue where a thorough investigation is required and evidence to that effect deserves to be lead and at

this prima-facie stage one cannot directly jump to the conclusion of the fraud and illegalities as they are triable issue.

12. Learned Advocate Shri. R. Rao for the Defendants contended that the Plaintiff has failed to identify the suit properties and to show their title to the said property and hence the present Application deserves to be dismissed.

13. Per Contra Learned Advocate Shri. P. Kamat for the Plaintiff contended that the survey records does not show the Comunidade lands as the Comunidade is maintaining their own books of land owned by them.

14. To this contention, my opinion is that in view of consent terms filed by the Plaintiff and the predecessor in title of the Defendants No.1 and 2 wherein the consent Decree is obtained nowhere also mentions that the suit property originally belonged to the Defendants and during consent Decree the suit property was allotted to the Present Defendant No.3 who is predecessor in title of the Defendant No.1 and 2 and who has chosen to remain silent in the present proceedings as he did not appear. Hence, prima-facie some right of Plaintiff can be visualized without going into the merits of the case and the burden shall be on the Plaintiff on merits to prove the same. Moreover, Defendant No.1 and 2's right are flowing from the Consent Decree passed in Special Civil Suit

No. 222/94/B and the said Decree is under challenge and not yet finalized.

15. Learned Advocate Shri. R. Rao for the Defendants further contended that the area of the suit property does not tally and hence there is dispute in area. All this aspects has to be seen on merits and prima facie, as the said properties are referred to in the consent Decree in Special Civil Suit No.222/94/B, this aspects has to be looked into on merits.

16. Learned Advocate Shri. R. Rao for the Defendants further contended that the Defendants had paid foro which has been accepted by the Communiade in one stretch and hence the present Application does not survive. Per contra learned Advocate Shri. P. Kamat for the Plaintiff contended that the mere acceptance of payment cannot envisage any title on the Defendants in view of the fact that the Decree itself is illegal and the said foro is based on the said Decree. In my considered opinion, this fact also deserves to be considered on merits as regards the payment of foro and how much was due and how much paid and when and how?

17. The contention of the Learned Advocate for the Defendants that the survey records reflect the names of the Defendants and hence prima-facie the case is in favour of Defendants, in my considered opinion, is devoid of merits, as

X the said names came in survey records only subsequent to the Consent Decree which is under challenge and pending before Hon'ble High Court.

18. The glaring point which invites my attention and drives to say that the prima -facie case is in favour of the Plaintiff is the condition in the consent terms which flows from the Consent Decree passed in Special Civil Suit No. 222/94/B is Conditions No.1 ,2 and 3 which reads as under :-

" (1)The defendant hereby agrees to allot in favour of the association of the Gauncars of the Comunidade of Bambolim, 40 plots, each admeasuring 252 square metres, 16 plots being denoted under Nos. 13, 14 and 29 to 42 located in survey no. 93/2, 10 plots denoted under Nos. 9 to 11 and 21 to 23 located in survey no. 93/3, 14 plots being denoted under Nos. 33 to 46 located in survey no.93/4 of Village Bambolim, Tiswadi Taluka, under village Panchayat of Curca, Bambolim & Talaulim as shown in the plans annexed hereto with boundaries of the plots marked in red colour ink.

(2) The defendant further agrees to allot in favour of the plaintiffs 5 plots, each admeasuring 252 square metres, the same bearing nos. 24 to 28 located in the survey no. 93/3 of the Village of Bambolim, Tiswadi Taluka under village Panchayat of Curca, Bambolim & Talaulim as shown in the above annexed plan of the said survey no. 93/3.

(3) In consideration of the allotment and the handing over of the plots aforesaid free from payment of any consideration, development charges, and subject to the subsisting rights in terms of the allotment as aforesaid, the plaintiffs hereby agree that they have no claim, right, title, interest, objection regarding the ownership and/or development of the properties bearing survey nos. 89/3, 90/1, 93/2, 93/3 and 93/4 of the Village of Bambolim, Tiswadi Taluka under Village Panchayat of Curca, Bambolim & Talaulim".

19. Hence, it is crystal clear that the predecessor in title of the Plaintiff had to follow the condition-No.1 and 2 of the terms and thereafter had to give consideration to the present Plaintiff which admittedly has not been done till date and hence the right of the Plaintiff is found to be alive as the same has not been complied by the Defendants themselves and Defendant went to do all other acts wherein the property was developed and plots were sold too, but without adhering to the conditions of the consent terms itself.

20. If the consent terms as was binding on the Plaintiff so was also binding on the Defendants too and which terms were condition precedent as can be read from the wordings of condition no.3 of the consent terms i.e "In consideration of allotment and handing over of the plots aforesaid free from payment of any consideration, development charges..... the

plaintiff hereby agrees that Plaintiff have no right, interest, claim or title..." This condition clearly denotes that only upon consideration the present Plaintiff agrees that they have no right or interest of title to the present suit property, which in other terms means, if no consideration as per the terms is paid then the Plaintiff has right, interest, claim over the suit properties.

21. The predecessor in title of the Defendant No.1 and 2 ought to have complied the conditions of the Consent Terms and then do other development and sell which he failed to do so.

22. Moreover, the right of the present Defendant No.1 and 2 who are contesting hotly in the present matter flows only through the Sale Deed executed by Defendant No.1 subsequent to the Consent Decree passed in Special Civil Suit No.222/94/B and which is yet to be finalized. Hence, when the said Special Civil Suit No.222/94/B is sub-judiced and Decree is under challenge the Court has to look into the aspect of maintaining the Suit property till the disposal of the present Suit and it also becomes incumbent to verify about the Decree as the fate of the entire suit lies on the Decree of SCS No.222/94/B which is presently under stay.

23. Hence, I have no hesitation to state that there is prima-facie case against the Defendants and in favour of the Plaintiff and hence Point No.1 of the determinations stands answered in Affirmative.

**Point no.2:**

24. In order to prove the point No.2 the Plaintiff had to prove that there is irreparable loss and injury caused to them if the present Application for temporary Injunction is not allowed.

25. Learned Advocate Shri. R. Rao for the Defendants contended that there is no irreparable loss and injury to the Plaintiff as the Plaintiff can be compensated for the same as the Consent terms itself depicts compensation to the Plaintiff and drew my attention to Condition No.7 of the Consent Decree dated 21/11/1998 passed in Special Civil Suit No.222/94/B.

26. If one peruses the condition No.7 of the Consent Decree which reads as under :-

" (7)The defendant shall hand over the sub divided plots as aforesaid and as agreed upon after obtaining final NOC on or before the expiry of 36 months from the date of execution of these presents, time being the essence of the terms, failing

which the defendant shall be liable to pay a sum of Rs.300/- as damages in respect of each plot and per month of delay".

27. The said amount of Rs.300/- is stated to be as damages in default to handover the plots, however, it also mentions that the said plots to be handed over within 36 months and time being essence of contract. Admittedly the said time has already lapsed for the Defendants to comply with the Consent Decree and hence it cannot be said that there is no irreparable loss being caused to the Plaintiff as the compensation is stated in the Consent Decree. Damages are different from the words compensation. Damages are on account of failure which is in one way a sort of penalty and hence cannot be equivalent to saying that it will compensate the Plaintiff.

28. The contention of Learned Advocate Shri. R. Rao for the Defendant that if at all the Court is inclined to allow the present Application then it has to be only in respect of the 5 plots and not the entire property as in the Consent Decree the Plaintiff are to be allotted with only 5 plots and remaining 40 plots are allotted to the Gaunkars. This contention also in my considered opinion devoid of merits, I say so because, the Consent Decree itself is under challenge and the subject matter of the present suit is part of the Consent Decree and the title to the Defendants are based on the Consent Decree only and

hence the present Temporary Injunction cannot be restricted only to the 5 plots supposed to be allotted to the Plaintiff which was condition precedent which otherwise has not been done within the stipulated time frame as reflected in condition No.7 of the Consent Decree passed in Special Civil Suit No.222/94/B.

29. If the present Temporary Injunction is not granted the definitely irreparable loss and injury will be caused to the Plaintiff as the property is under constant development and the nature of suit property gets changed. Hence Point No.2 of determination stands answered in Affirmative.

**POINT NO.3:-**

30. In order to prove this point of determination it is necessary to verify in whose favour the balance of convenience tilts. In the instant case admittedly, the Consent terms and Decree is not fulfilled in toto and there are some aspects where time was essence of contract was not followed and which affected the Plaintiff and hence the balance of convenience tilts in favour of the Plaintiff.

31. In view of above, I am inclined to pass the following :

**ORDER**

Defendant no. 1 and 2, their agents, servants or any other persons acting through them are restrained by way of

temporary injunction from starting any development and construction activities or changing the nature of the suit property and alienating, transferring the suit property under survey no.93/2, 3, 4 of Village Bambolim in any manner till the disposal of the suit.

Pronounced in open court.

**(Artikumari N. Naik)**  
Ad-hoc Senior Civil Judge,  
'A' Court, Panaji

Panaji.  
Dated:13.03.2020  
ys\*

# LOONKAR DEVELOPERS PVT LTD

CIN : U45200MH2005PTC150992

18

Date: 29th October, 2022

Regd A.D / By Courier

To,

Legal Heirs of Late Mr. Pascoal Trindade

1) Albertina Trindade and

2) Riva Trindade

both residing at Palbrika Mansion

House No. 21/23/A,

Near Rosary School, PO. NIO,

Dona Paula, Goa, 403004

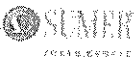
Sir/Madam,

Re: Agreement for Sale dated 12/11/2012 and Sale deed dated 14/07/2014 in respect of property bearing survey no. 93/2 of village Bambolim, Taluka Tiswadi- Goa admeasuring 35,600 sq. mtrs

At the outset, I, Mr. Rahuul Shah, the Director M/s. Loonkar Developers Pvt. Ltd. have lots of grief and regrets for the untimely demise of Mr. Pascoal Trindade.

Under the circumstances arose on account of the demise of late Mr. Pascoal Trindade, we would like to address you as under:

1. In the Year 2005 my Father Mr. Ramesh Shah was approached by Late Mr. Arvinder Singh Sethi alongwith Mr. Vikram Shah with the proposal to invest in the properties at village Bambolim, Goa which are very near to the developments of very prestigious project viz. Aldeia de Goa with which Late Mr. Pascoal and Mr. Vikram Shah were closely associated.



Regd. Office: 203, Peninsula Corporate Park, Tower-1, 4th Wing, Convent Road, Kadambari, Lower Parel, Mumbai - 400 013  
Tel: +91 22 4068 4052 / 2424 4057 / Fax: +91 22 2430 1019 / E-mail: info@loonkardevelopers.com / Website: www.loonkardev.com



# LOONKAR DEVELOPERS PVT LTD

CIN : U45200MH2005PTC150992

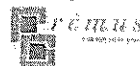
2. After discussions and negotiations for purchase of various properties at village Bambolim, Goa at brought terms and conditions by and between our Company, Late Mr. Pascoal Trindade, Mr. Vikram Shah and Mr. Arvinder Singh Sethi wherein it was specifically provided that Mr. Pascoal & Mr. Vikram shall be responsible & liable to settle all and every claim of any person/s at their own cost in respect of the property is jointly purchased by them.
3. The properties were agreed to be purchased by the consortium members in an entity to be formed by and between them but however at the insistence of the Original Owner the properties bearing Survey no. 93/2, 93/3 and 93/4 at village Bambolim totally admeasuring 97,500 m2 were purchased in the name of Mr. Pascoal Trindade from and out of the funding provided by consortium members including our company.
4. After the purchase of the properties further funding were provided to obtain various clearances as required.
5. In the year 2009-10 various petitions were filed by the Constituents of Comunidade of Bambolim objecting to the purchase of the properties by Mr. Pascoal Trindade which litigations were jointly defended by the consortium member's and ultimately the title of the property become clear and marketable.
6. As long time has elapsed for the title clearance after the purchase of the properties our company opted for the outright sale of the entire property which was not agreeable to other consortium members and thereby it was decided to partition the properties amongst the consortium members.

*for*

2.



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Tel. : 01 22 4088 4088 / 2404 4567 ; Fax: 01 22 2400 1919 ; E-mail: [sales@sumergroup.co.in](mailto:sales@sumergroup.co.in) ; Website: [www.sumergroup.co.in](http://www.sumergroup.co.in)

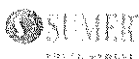


# LOONKAR DEVELOPERS PVT LTD

CIN : U45200MH2005PTC150992

18

7. In terms of the investment made by our company we were allotted one of the property Viz. 93/2 admeasuring 35,600 m2 and an agreement for sale was entered by our company with Late Mr. Pascoal and Ms. Albertina Trindade and subsequently a sale deed was executed Dated 14/07/2014.
8. After divisioning of the properties as aforesaid we commenced the development on the property purchased by us as aforesaid of infrastructure viz. compound fencing, internal road, levelling and filling etc. and incurred substantial cost.
9. In the year 2020 to our shock and surprise an injunction order dated 13/03/2020 was passed by senior division, civil court at Goa in the declaration suit filed by comunidade of Bambolim restraining all the activities on the properties purchased by Late Mr. Pascoal vide sale deeds dated 25<sup>th</sup> April 2006 which includes the property purchase by our company.
10. Being bonafide Purchaser we impleaded ourselves into the said suit filed by the Comunidade of Bambolim and are co-operating in every possible manner with Late Mr. Pascoal viz. defendant No.1 in the said suit No.52/2013/A.
11. Somewhere in October 2020 we were approached by Mr. Vikram Shah informing us that along with Late Mr. Pascoal and him have approached the Comunidade of Bambolim for the amicable settlement of all the litigations for the win-win situation for all concerned parties and have finalised the draft terms and requires our companies support as one of the demand of the Comunidade of Bambolim is for the allotment of certain



# LOONKAR DEVELOPERS PVT LTD

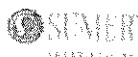
CIN : U45200MH2005PTC150992

area to be carved out from our property for construction of the welfare centre for the village.

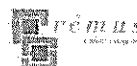
12. Although it was responsibility and liability of Late Mr. Pascoal, Ms Albertina and Mr. Vikram Shah we have consented to allot certain area to be carved out in our property as the same demanded by the Comunidade of Bambolim for their welfare centre as Survey No.93/2 own by our company being adjacent to their village.
13. By the Letter dated 20.11.2020, Mr Pascoal Trinidad and Ms Albertina Trinidad addressed to the Managing committee of Comunidade of Bambolim wherein a proposal of Settlement was offered by Mr Pascoal Trinidad and Ms Albertina Trinidad against the withdrawal of all the litigation and dispute filed by Comunidade of Bambolim in various Foras. The Copy of the Letter dated 20.11.2020 is attached herewith as Annexure '1'.
14. Thereafter by letter dated 27.11.2020 addressed by the Advocate of Comunidade to Mr Pascoal Trinidad, the Advocate sought certain clarification with respect to the terms of Settlement and had informally accepted the terms of Settlement offered by Mr Pascoal Trinidad and Mrs Albertina Trinidad. The Copy of the Letter dated 27.11.2020 is attached herewith as Annexure '2'.
15. In reply to the aforesaid letter, the Advocate of Mr Pascoal Trinidad and Ms Albertina Trinidad by its letter dated 02.12.2020 provided clarification as sought by the Advocate of Comunidade. Under the said letter the Advocate has specifically mentioned that Mr Pascoal and Ms Albertina are ready and willing to enter upon the consent terms on the settlement

*PS*

4



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# LOONKAR DEVELOPERS PVT LTD

CIN : U45200MH2005PTC150992

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terms offered by them against the withdrawal of all the dispute and litigations filed by comunidade in various Foras. The Copy of the Letter dated 02.12.2020 is attached herewith as Annexure '3'.

16. We had agreed to Participate in the execution of consent terms and allotment of area as required by the Comunidade of Bambolim, at a very reasonable valuation.
17. As we are aware that draft consent terms were approved by all the parties and were awaiting for the approval from the Revenue Department for filing before the honourable court to obtain the consent decree. However due to ill health of Mr. Pascoal in the later part of 2021 and thereafter his demise the entire process was stranded.
18. Upon inquiry by us with Mr. Vikram Shah for the status of the matter we were informed that the legal heirs of Late Mr. Pascoal are not co-operating in court proceedings and/or to provide documentation etc. which is further delaying and jeopardising all the efforts for amicable resolution of pending litigation's. Further we are also informed that non co-operation by the legal heirs of Late Mr. Pascoal may result into negative verdict.
19. That it is imperative, as legal heirs of the Late Mr. Pascoal Trindade, that Mrs. Albertina Trindade and his son Mr. Riva Trindade to come forward to do all acts necessary to give productive effect to stalled business activities of M/s. Loonkar Developers Pvt. Ltd. at the earliest.
20. Further I, appeal to Mrs. Albertina Trindade and Mr. Riva Trindade to perform and carry out all the said requisite acts within 15 days from the

# LOONKAR DEVELOPERS PVT LTD

CIN - U45200MH2005PTC150992

receipt of this letter, else it shall be deemed that yourselves are unwilling to perform your part as envisage hereinabove and in which event M/s. Loonkar Developers Pvt. Ltd. will have no option but to take appropriate measures to make good of their investments with adequate compensations.

Thanking You,

Yours faithfully

For Loonkar Developers Pvt. Ltd.



Rahuul Shah

(Director)

Encls : As above

C.C. to: (1) Mr. Vikram Shah  
28, Capri, 9, Manav Mandir Road,  
Walkeshwar,  
Malabar Hill, Mumbai - 40006.

(2) Murlidhar Sadarangani  
S-3, Eden Hall,  
Dr. Annie Besant Road,  
Worli, Mumbai - 400018

o/c

DW2

SCS no. 52/2013/A

IN THE COURT OF CIVIL JUDGE SENIOR DIVISION,  
AT PANAJI

SCS No.52/12013/A  
Exh. No. C/159

Deposition of witness no. DW1 for the defendant.

On Oath

I do hereby on Solemn affirmation state that ....

My Name : Riva Anthony Trindade

Father Name: Pascoal Irineu Trindade

Age : 50 yrs.

Occupation : Business

Resident : . Dona Paula Goa.

Examination in Chief of PW1 by Ld. Adv. P. Rao for the Defendant  
no.20

I am producing affidavit in evidence. I affirm the contents of my affidavit and the contents of affidavit are as per my say. I identify my signature at point A on page 25. Same is taken on record and marked as Exhibit C/160.

I am producing certified copies of Form No. I and XIV of survey no. 93/2 and 93/3 and 93/4. Same are taken on record and marked as Exhibit C/161 colly.

I am producing notarized copy of Form no. 3 of Form No. I and XIV of survey no. 93/2 and 93/3 and 93/4. Same are taken on record after comparing with the original and marked as Exhibit C/162.

I am producing notarised copy of the certificate issued by the plaintiff. Same are taken on record after comparing with the original and marked as Exhibit C/163 subject to production of English translation.

I am also relying on the documents produced by DW1

DW2

SCS no. 52/2013/A

Cross Examination by Ld. Advocate P. Kamat for the Plaintiff

The statements made in my affidavit are based on the record and not based on my personal knowledge. I have read the contents of the plaint and the written statement. I say that I was looking after day to day business of my father and he had informed me about this case. I have not appeared in the Court in the present case earlier.

Q. Are you aware that originally the suit property was belonging to Comunidade of Bambolim?

Ans: I say that the property was purchased by my father from one friend Distosa.

Said property earlier belongs to ancestors of Distosa. Her ancestors name is Maria Concessao Rodrigues. She acquired the said property on payment of 20 years Foro to Comunidade of Bambolim. The property was granted by the plaintiff to Maria. It is true that originally the property was owned by Comunidade of Bambolim.

Q. Do you have any document of grant issued by Comunidade of Bambolim by following the procedure under the Code of Comunidade in favour of Maria Concessao Rodrigues?

Ans: I have receipt of payment of 20 years Foro and same is produced by us.

Besides that we do not have any document regarding the grant. I do not know Portuguese. I say that the said document refers

DW2

SCS no. 52/2013/A

to payment made. It is mentioned in the said document that the receipt is in respect of the grant given by the Comunidade to Maria. It is not true to suggest that my preceding statement is false.

To the suggestion that there is no mention of the property known as "Ohor Oros Saveligali" in the said certificate, I say that I do not know. The total area of the property is 97,500 sq. mts. It is true that there is no document of inscription and description of this property in the name of Maria Concessao Rodrigues. It is not true to suggest that my statements in paragraph 2 and 3 of the affidavit in evidence are false.

I say that Form I and XIV is the document on the basis of which I made statement in paragraph 4 of the affidavit in evidence. I do not know when this Form I and XIV was prepared. It is not true to suggest that my statements in paragraphs 4, 5, 6 of my affidavit in evidence are false.

I say that the statements made in paragraphs 7 to 14 of the affidavit in evidence are based on information given by my father. I say that I have read the documents mentioned in this paragraphs. It is not true to suggest that Maria Concessao Rodrigues was never owner of the property described in paragraph 3 of my affidavit in evidence.

I am aware that in the three sale deeds dated 25.4.2006 referred in paragraphs 16 to 18 of the affidavit in evidence it is mentioned that the defendant no.1 shall honour the commitment made to the Comunidade of Bambolim. I say that the commitment

DW2

SCS no. 52/2013/A

was to give 45 crores to the Comunidade of Bambolim. I am not aware why this commitment was made. I voluntarily say that the later the said commitment was not visible. It is not true to suggest that my statement in paragraph 15 that the properties were purchased for valuable consideration is a false statement. It is not true to suggest that the three sale deeds dt. 25.4.2006 are illegally executed without having ownership right. I am aware of the consent decree dt. 21.11.1998 in Special Civil Suit 222/1994 passed in the suit filed by the Comunidade of Bambolim against Maximo Mergulho. I am aware that the said decree was passed without obtaining approval from the Administrative Tribunal as required under the Code of Comunidade. I am not aware whether the Comunidade of Bambolim has filed an application being Miscellaneous Civil Application no. 6/2010 to set aside the consent decree dated 21/11/1998.

It is true that in the survey records of the suit property names of other persons were recorded and therefore RCS no. 6/2007/C was filed.

I do not have any document to show the name of Maria Concessao Rodrigues in the Government survey records. It is not true to suggest that the name of Maximo Mergulho is illegally inserted in Form 3 at Exhibit 163. It is not true to suggest that my statement in paragraph 20, 21, 22, 24 are false. It is not true to suggest that the RCS no. 6/2007/C was filed in collusion with the persons who were tenant of the property belonging to the

DW2

SCS no. 52/2013/A

Comunidade of Bambolim. It is not true to suggest that entries in tenants column of the survey records of the suit property were illegally deleted by paying money to the tenants whose names were in the survey records. It is not true to suggest that my statements in paragraph 25 to 30 of my affidavit in evidence are false.

I have the copy of the consent of the register with sub registrar as mentioned in para 31. It is not true to suggest that my preceding statement is false. With reference to my statement in paragraph 32 of the affidavit in evidence I do not remember from what date and year the name of defendant no.1 is reflected in survey records. It is not true to suggest that my statements in paragraph 33 to 37 of my affidavit in evidence are false.

I am not aware whether the case related to claim of tenancy in relation to suit property is pending before the Dy. Collector at Panaji. It is not true to suggest that my statement at paragraph 38 to 42 of my affidavit in evidence are false.

I am not aware about the details of order in Writ Petition no. 102/2009 mentioned by me in paragraph 43 of the Affidavit in Evidence. It is not true to suggest that my statement in paragraph 44 to 46 of my affidavit in evidence are false.

It is true that the permissions mentioned in para 47 to 54 in my affidavit in evidence are obtained by defendant no.1 when the application for setting aside consent decree dated 21.11.1998 in S.C.S no. 222/1994 is pending. It is not true to suggest that the said permissions are obtained by misrepresentation and without any right

DW2

SCS no. 52/2013/A

of ownership of the defendant no.1 in the suit property. As regard to my statement in para 54 of affidavit in evidence I am not aware of what is called as "Tombasao Records". It is not true to suggest that my statement in paragraphs 51 to 59 of my affidavit in evidence are false.

It is true that I do not have any expert report or certificate to establish that the property under survey no. 93/2, 93/3 and 93/4 correspond to certificate produced by me at Exhibit 163. It is not true to suggest that my statement in paragraph 60 to 65 of my affidavit in evidence are false. It is not true to suggest that the plaintiff is owner of the suit property and documents of the plaintiff produced in the present suit relates to survey no. 93/2, 93/3, 93/4 and other acquired properties by the Government. It is not true to suggest that the property "Bailem Fondeim" and property "Ohor, Oros, Saveligali" are different properties. It is not true to suggest that "Bailem Fondeim" is not the property under survey no. 93/2, 93/3 and 93/4 of village Bambolim. It is not true to suggest that after acquisition of the land by the Government the area under survey no. 93/2, 93/3 and 93/4 were unacquainted properties from the properties of the plaintiff which are mentioned in the plaint.

I am aware that my father had given proposal for settlement to the Comunidade.

To the suggestion that in the pending suit defendant no. 1 had given proposal for settlement of the dispute in the present suit, I am not aware of such proposal.

DW2

SCS no. 52/2013/A

Shown to the witness Exhibit 124 I identify signature of my father at point A. this is the proposal given by my father. I am not aware whether the plaintiff has accepted the said proposal. I am not aware if the Comunidade had held general body meeting to discuss the said proposal and had even accepted the proposal and consent terms were submitted to the Administrative Tribunal for approval. It is not true to suggest that I am deposing falsely.

R.O.A.F.C.

Panaji

Dated: 02.05.2022

Certified that the examination  
of this witness is recorded in  
my presence and hearing.

Before me

SCJ 'A' Court,  
Panaji

MP/-

ADV. PRINCEY LAMA

OFFICE NO 2, FIRST FLOOR,  
 CASA IMMACULADA BUILDING,  
 Near Progress High School,  
 Josa Falcao Road, Panaji-Goa.  
 PH: 2235975 MBL: 9422166975

Date: 27/11/2020

To,  
 Pascoal Trindade  
 R/o Palbrika Mansion,  
 Near Our Lady of Rosary High School,  
 Dona-Paula Tiwadi, Goa

Subj: Your letter dated 20/11/2020 for settlement of Special Civil Case No. 52/2013 submitted to Comunidade of Bambolim.

Sir,

With reference to above letter this is to inform you that the said letter was discussed by the managing committee of Comunidade of Bambolim in the presence of prominent Gaekars on 21/11/2020. However, the Escrivao/Secretary of Comunidade of Bambolim from the office of the Administrator of Comunidade was not present and the minutes could not be recorded as per Code of Comunidade.

The Managing Committee and the Gaekars who were present after discussion need following clarifications from you:

a. That Comunidade wants 5000 Sq.mts land under survey no. 93/2 of Village Bambolim which is towards the village side and this area should be touching existing road. However as per court records the said area under survey No. 93/2 is sold to M/s Loonkar Developers who is also party in the suit and it was kept under mortgage to the bank by M/s Loonkar Developers. Therefore the managing committee of Comunidade of Bambolim wants to know how Mr. Pascoal Trindade will be able to give it and the said encumbrance need to be cleared with the involvement of M/s Loonkar Developers before signing the consent terms and hence clarification on this point is required by the Comunidade.

b. In case above issue is clarified then Proper plan of the plot of 5000 Sq.mts land under survey no. 93/2 with location, dimensions as well as demarcation with size of structures with specifications agreed to be constructed by you are required to be given by you to the Comunidade in order to place the same before the general body of the Comunidade to take the final decision which has to be called by with the approval of the Administrator of Comunidade.

c. The letter dated 20/11/2020 is signed by you and it does not have signature of Mrs. Albertina Trindade. Hence this needs to be clarified.

d. The settlement shall be only in respect of survey No. 91/2, 3 and 4 of village Bambolim and the Communitade will proceed with survey No. 89/3 and 90/1 unless it is settled by the parties involved in Special Civil Case 4/2014/A and other cases.

e. The draft terms of settlement/consent terms need to be drawn in consultation with advocate for the Communitade for placing before the General body for approval and any modifications if suggested by the General body then the same should be included and then further procedure for obtaining approval from the Administrative Tribunal will have to be initiated.

f. You may file application for modification of earlier order under which direction was given for disposal of SCS 52/2013/A by Hon'ble High Court for which Communitade will give consents since finalization of consent terms and approval from Administrative Tribunal will take considerable time and the court is making on day to day hearing.

g. The meeting managing committee of Communitade of Bambolim is scheduled to meet on Sunday, 6/12/2020 and you are requested to clarify on above before above date which the managing Committee will discuss for further action.

Yours faithfully,

Adv. Proney Kamat  
ADV. PRONEY KAMAT  
16-7, CASA IMMACULADA  
NEAR CHURCH, JOSE PALLAO ROAD  
Copy sent by information to

Communitade of Bambolim

UMESH NAO  
associates  
a d v o c a t e s

Happy Home Building, Vasundhara Marg,  
Panaji, Goa, India-403 001

Phone: 901 832 2234/890

Phone: 9948907086/72-991986018/951

E-mail: umeshnao@gmail.com, umeshnao@panaji.com

Umesh

Ramach

Sayali Patil

Wednesday, 2 December 2020

To,

Proney Kaniat, Advocate,  
A7 - 2, First Floor, Casa Immaculada,  
Near Progress High School,  
Jose Falcão Road,  
Panaji, Goa - 403 001

REPLY TO LETTER

DATED 27.11.2020

Dear colleague,

This has reference to the Letter communication received from you by my client, Mr. Pascoal Trindade in furtherance of the Letter dated 20.11.2020 issued by him proposing a settlement of litigation pending before various fora in respect of the properties bearing Survey Nos. 93/2, 93/3 and 93/4, Bambolim, Goa. I am instructed to address you as under:-

1. At the outset, my client fervently requests you to henceforth ensure that any all discussions held on this subject, be minuted by the Escrivão in order to rule out any misunderstandings or misinterpretations, given the chequered history of this litigation.
2. With regards to the clarifications sought by the Managing Committee of the Comunidade, my client wishes to offer the following para-wise responses:-

*[Handwritten signature]*

UMESH RAO &  
associates  
a d v o c a t e s

In reference to Para *in seriatim*

- a. My client is agreeable to allocate the agreed 5000 sq. mts. in Survey No. 93/2 and in such manner that it is abutting an existing road. As per the enquiries conducted by my client with M/s. Loonkar Developers, there are no subsisting encumbrances in respect of the land held by them. M/s. Loonkar Developers has also agreed to release the land held by them, if required, to accommodate the 5000 sq. mts. to be allocated to the Comunidade.
- b. My client is agreeable to allocate an unencumbered area of 5000 sq. mts. in Survey No. 93/2 which has been consented to by M/s. Loonkar Developers. A plan demarcating the said area is under preparation by my clients' architect and shall be made available to the Comunidade in due course.
- c. My client states that Mrs. Albertina Trindade is in full and complete knowledge of the ongoing effort for settlement. My client states that in terms of the Portuguese Civil Code applicable to Goans, he is the administrator of his wife's estate. In any event of the matter, Mrs. Albertina Trindade will sign the Consent Terms for the satisfaction of the Comunidade.
- d. My client states that the proposal extended by him is limited to the properties held by him i.e., Survey Nos. 93/2, 93/3 and 93/4, Bambolim, Goa. These properties are subject-matter of various litigations. My client is willing to share a list of the various cases and counter-cases that exist inter se my client and the Comunidade, including but not limited to

UMESH RAO &  
associates

ADVOCATES

CS/66/2009 filed by Mr. Benevelo Boaventura D'Souza and others. All these cases will be required to be mentioned in the Consent Terms and unconditionally withdrawn after execution thereof.

- e. My client is aware that the Consent Terms would have to be pre-approved by the General Body as well as the Administrative Tribunal. My client request you to inform him of the date of the meeting of the General Body so as to enable him to share the proposed Consent Terms.
- f. My client states that appropriate proceedings will be taken out by him before the Hon'ble High Court of Bombay at Goa in order to seek modification of the directions for early disposal.
- g. Stands answered in view of the foregoing.

Yours sincerely

(Umesh Rao, Advocate)

vide of Bambolim

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## Daily Status

Civil and Criminal Courts, Panaji

In the court of : Civil Judge, Senior Division and C.J.M.

CNR Number : GANG020025402013

Case Number : SCS/0000052/2013

Comunidade of Bambolim versus Mr. PascoalTrinidade

Date : 10-01-2025

## Business

: Called out today. Adv. P. Gawandi present for the plaintiff. Adv. R. Rao present for the defendant and file Exbt. D-191 Application seeking time to seek extension from the Honble High Court for filing consent terms. OP-short time granted. Matter adjourned at 10.00 a.m.

## Next Purpose

: REPORT

## Next Hearing

: 27-01-2025

## Date

Civil Judge, Senior Division and C.J.M.

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## Daily Status

Civil and Criminal Courts, Panaji

In the court of : Civil Judge, Senior Division and C.J.M.

CNR Number : GANG020025402013

Case Number : SCS/0000052/2013

Comunidade of Bambolim versus Mr. PascoalTrinidade

Date : 12-11-2024

## Business

: Called out today. Adv. N. Gauns present for the plaintiff. Adv. T. Souto present for the defendant and file Exbt. D-190 Application seeking time to seek extension from the Honble High Court for filing consent terms. OP-time granted. Matter adjourned at 2.30 p.m.

Next Purpose : REPORT

Next Hearing : 10-01-2025

Date

Civil Judge, Senior Division and C.J.M.

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## Daily Status

Civil and Criminal Courts, Panaji

In the court of : Civil Judge, Senior Division and C.J.M.

CNR Number : GANG020025402013

Case Number : SCS/0000052/2013

Comunidade of Bambolim versus Mr. PascoalTrinidade

Date : 27-09-2024

## Business

: Called out today. Adv. N. Adpaikar h/f Adv. P. Kamat present for the plaintiff. Adv. T. Souto present for defendant No. 20. As the present court was shifted to FTC court building and same is shifted back today to earlier A Court premises for the purpose of shifting all the files and as the court is busy in dictating orders in direction matters, matter adjourned. Matter adjourned at 2.30 p.m.

Next Purpose : CLARIFICATION

Next Hearing : 12-11-2024

Date

Civil Judge, Senior Division and C.J.M.

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## Daily Status

Civil and Criminal Courts, Panaji

In the court of : Civil Judge, Senior Division and C.J.M.

CNR Number : GANG020025402013

Case Number : SCS/0000052/2013

Communiade of Bambolim versus Mr. PascoalTrinidade

Date : 28-06-2024

## Business

: Called out today. Adv. N. Gauns present for the  
plaintiff and file Exbt. D-189 Application for time.  
OP-time granted. None present for the defendant.  
Matter adjourned at 2.30 p.m.

## Next Purpose

: CONSENT TERMS

## Next Hearing

: 30-07-2024

## Date

Civil Judge, Senior Division and C.J.M.

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Jose

**IN THE HIGH COURT OF BOMBAY AT GOA**  
**CIVIL REVISION APPLICATION NO.41 OF 2018**

PASCOAL TRINDADE.,

... APPLICANT

Versus

COMUNIDADE OF BAMBOLIM, REP. BY  
THEIR ATTORNEY AND ANR.,

... RESPONDENTS

Ms Tabita Souto, Advocate for the Applicant.

Mr Pranay A. Kamat, Advocate for Respondent No.1.

**CORAM:- BHARAT P. DESHPANDE, J.****DATED :- 15th July, 2023**

P.C.:

Learned Counsel for the Applicant placed on record notice of withdrawal issued to the L.Rs. of deceased Applicant. She submits that Applicant expired about a year back and inspite of oral as well as written requests, the legal heirs are not coming forward.

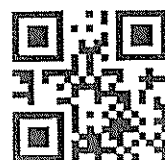
2. The name of the legal representative was called out, however no one is present. In view of the death of the Applicant herein about a year back, CRA filed in the this Court stands abated.

3. Proceedings closed.

**BHARAT P. DESHPANDE, J.**

JOSE  
FRANCISCO  
D'ALBUQUERQUE

Digitally signed by Jose  
Francisco D'Albuquerque  
DN: cn=Jose Francisco D'Albuquerque,  
o=GOA, ou=GOA, email=jose@goa.nic.in, c=IN



Presented on : 18.12.2019  
Registered on : 18.12.2019  
Decided on: 30.10.2023  
Duration: Years/ Months/ Days  
03 10 12

**IN THE COURT OF THE DISTRICT JUDGE-3  
AT PANAJI**

(Before: Smt. Vijayalaxmi R. Shivolkar, District Judge-  
3 at Panaji)

**CNR no. GANGo10025252019**

**Civil Revision Application no.43/2019**

Comunidade of Bambolim,  
Through its Attorney

Mr. Luis Abreu,

Aged 72 years

Bambolim P.O. GMC Complex,

Bambolim, Tiswadi Goa

r/o/ H. No. 283/C,

PO GMC Complex, Bambolim.

.. Applicant

(Original respondent no.2)

Versus

1. Pascoal Trinidade

(deceased through LR's)

Major of age, Indian National,

Businessman, Resident of

Palbrika Mansion, Near Our Lady of

Rosary School, Dona Paula,

Taluka Tiswadi, Goa,

(original Appellant)

a. Mrs. Albertina Trinidade,

Aged 83 years, widow of

Late Pascoal Trinidade

b. Mr. Riva Anthony Trinidade,

aged 50 yerts, son of

late Pascoal Trinidade,

c. Mrs. Karita Trinidade,

Aged 40 years, wife of

Mr. Riva Anthony Trinidade

All resident of House NO. 21/23/A,

Palbrika Mansion, NIO,

Dona Paula, 403004.

2. Village Panchayat of Curca,  
Bambolim & Talaulim,  
Through its Secretary,  
Panchayat Office, Bambolim,  
Tiswadi, Goa.

(Original Respondent no.1)

...Respondents

Ld. Advocate Mr. V. Kamat present for the Applicant at the time of final arguments and Ld. Advocate Ms. J. Monteiro holding for Ld. Advocate Mr. V. Kamat present at the time of passing Order.

None present for LR's of Respondent No.1.

Ld. Advocate Ms. B. Vernekar present for the Respondent no.2 at the time of filing written arguments and Ld. Advocate Ms. S. Kauthankar present at the time of passing Order.

### ORDER

(Delivered on this the 30<sup>th</sup> day of the month of October, of the year, 2023)

The subject matter of this present revision application is the impugned Judgment and Order dated 28.11.2019 passed by the Director of Panchayats, Panaji Goa in case no. No. DP/APPEAL/N/16/2019 filed by the respondent no.1 against the respondent no.2 and

the applicant. The parties shall be herein after referred to as "Appellant and Respondents" respectively as referred to in the said appeal before the Director of Panchayat, Panaji Goa, for the sake of convenience.

2. Briefly stated, it was the case of the appellant that the original appellant in the said appeal that he was the lawful owner in possession and enjoyment of the property under survey no. 93/3(part) by virtue of sale deed dated 25.04.2006. The appellant was granted conversion sanad dated 16.12.2011 and had obtained Technical Clearance dated 27.02.2013 for the purpose of development /construction of a residential complex and the compound wall. The revised drawings submitted by the appellant was accepted by the office of the TCP, pursuance to which appellant applied for licence with respondent no.1. After having a site inspection, respondent no.1 communicated to the appellant that her application is rejected as there was

no access and there was a default in the title of the appellant.

3. The respondent no.2 was impleaded in the said proceedings at his request whereby the respondent no.2 filed its detailed reply stating that property under survey no. 93/3(part) in respect of which application for licence was filed by the appellant with the respondent no.1, corresponds to the property of the respondent no.3 under Lote no.49 as shown in the Tombacao Plan no. 15037 known as 'Saveli Gali'.

4. It is further the case of the respondent no.2 that the said property was acquired in the year 1965. That in the year 1971 there was an auction held and the said property under survey no.93 was sub divided into four plots i.e. Survey nos.93/1, 93/2, 93/3 and 93/4. The survey no. 93/1 was acquired by the Government for setting up Goa Medical College and the other sub division of survey no.93 were owned by the respondent

no.2. Since the year 2010, the applicant filed several litigations before the court of law which are pending disposal. The respondent no.2 further claimed that the respondent no.1 rightly rejected the application of the appellant as there is no access to the said property.

5. That the panchayat after hearing the parties in the said Panchayat Appeal was pleased to pass the impugned order dated 28.11.2019 allowing the appeal of the appellant. Aggrieved by the same, the respondent no.2, (the applicant herein), filed this present appeal against the impugned said order dated 28.11.2019.

6. Heard oral arguments advanced by Ld. Advocate Mr. V. Kamat on behalf of the applicant. The applicant as well respondent no.2 sought to rely upon the written synopsis of arguments filed in the said panchayat appeal.

7. Considering the facts of the case of the respondent no.1 as well as that of the appellant, the point that arises for my determination is:

1. Whether the impugned order was passed overlooking all the voluminous documents produced by the applicant herein in the said panchayat appeal and therefore the impugned order is arbitrary, perverse and contrary to the provision of law and against the settled principle of law?

2. Whether the impugned Order dated 28.11.2019 calls for interference by this Court?

### REASONS

#### Point Nos. 1 and 2

8. Both these points are taken together for discussion for the sake of convenience.

9. Ld. Advocate Shri V. Kamat for the applicant submitted that the respondent no.1 did not have a clear title to the suit property. The Village Panchayat Curca-

Bambolim rightly rejected the application of the respondent no.1 for issuance of licence on the basis of the revised plan. It is submitted that the application for licence was rejected as the appellant could not comply with the clauses of the TCP clearance i.e Clause 13 of the TCP clearance.

10. The Ld. Director of Panchayat has failed to give correct finding with respect to the objection raised by the village panchayat stating there is no access to the proposed site whilst rejecting the application of the appellant and submitted that the impugned order is not sustainable in the eyes of law and the same be set aside. The respondent no.1 Village Panchayat Curca supported their decision of rejecting the application for revised permission for construction in survey no.93/3 and contended that there was no perversity or illegality in rejecting the same.

11. It is further the contention of the respondent no.1

that during the site inspection by the panchayat body no road of 10 meters in width was found and since there was a dispute of ownership of the said property between the appellant and the respondent no.2, the Village Panchayat, Curca, rightly dismissed the application filed by the appellant for revised permission. Thus the respondent no.1 supported the stand taken by the applicant in this civil revision application and contended that the impugned order passed by the Ld. Director of Panchayat is arbitrary and against the principle of settled law.

12. Ld. Advocate Shri V. Kamat drew my attention to the provisions contained in part II of the Regulations. Regulation 3.4 reveals that a final word of the Town and Country Planning Authority in the matter of construction activity is limited to the technical aspect of the construction activity. There are several other aspects of construction of building which would fall within the domain of consideration of panchayat. Rules

12 to 34 relates to construction activities, Rule 13 is for means of access, Rule 26 relates to water supply and sanitary installation, Rule 29 relates to disposal of sewage and Rule 33 relates to architectural features.

13. It is submitted that the approval on all these aspects has to be of the panchayat. Therefore the Ld. Director of Panchayat committed an error in accepting the contention of the appellant in the said appeal that the construction of the building has been in accordance with the plans sanctioned and there is no role to be played by the panchayat, except formally issuing the occupancy certificate.

14. The Ld. Director of Panchayat has erred not to consider the objections of the respondents that appellant was not the exclusive owner of the property under survey no.93/3, as alleged and that the sale deed dated 25.04.2006 having challenged being the subject matter before the Hon'ble Civil Court, the appellant

therefore was without a clear title in his favour which being one of the reason for the rejection of the construction license.

15. It is submitted that the ld. Director of Panchayat failed to consider the fact that the previous permissions/approvals given to the appellant had expired and therefore the respondent no.1 was well within its right to assess, examine the file of the appellant de-novo and therefore no fault can be attributed with the respondent no.1 for assessing the process all over again, which obligation respondent no.1 carried out by adhering to the principle of natural justice and accordingly rightly impleaded respondent no.2 in the process. There is no clear finding given by the ld. Director of Panchayat in respect of the first ground of no 10 meters wide access to the proposed site on the basis of which application for license was rejected. The citation relied upon by the respondent

no.2 though has been distinguished but not discussed before making it inapplicable to the case.

16. Ld. Advocate Shri V. Kamat submitted to this court that the construction of the appellant has been stopped in view of the stay granted by the civil court. Perusal of the operative part of the impugned order, it seems that the Ld. Director of Panchayat accepted the claim and contention of the appellant on the ground that there was no order from the competent court of law giving a finding on the aspect of title or an order restraining the appellant, from doing construction /development activity in the property. Now since the construction has been already stopped.

17. Be that as it may, the respondents herein have sufficiently shown that the impugned order was passed without considering the legal documentation placed on record by the respondents before the Ld. Director of Panchayat. The impugned order is passed giving

direction to the panchayat to issue licence to the appellant despite the fact that the appellant is not having a clear title to the property where the alleged construction is to be carried out.

18. There is no error committed by the respondent no.1 while rejecting the revised permission to the appellant on the ground of no access and defective title of the appellant. As such the respondent no.1 herein has shown that the impugned order passed by the Ld. Director of Panchayat is arbitrary and against the settled principle of law and as such warrants inference for which, I answer both the points of determination in the affirmative. Hence, the following:-

### ORDER

The Civil Revision Application filed by the Applicant stands allowed.

The impugned order dated 28.11.2019 is quashed  
and set aside.

Parties to bear their own cost.

Proceedings closed.

Pronounced in the Open Court.

Sd/  
**(Vijayalaxmi R. Shivolkar)**  
District Judge-3, Panaji.

Panaji  
Dated:-30/10/2023  
Sr\*

PVM ASSOCIATES  
FINANCIAL STATEMENTS  
FOR THE YEAR ENDED  
31<sup>st</sup> MARCH 2024

Acknowledgement Number: 296536040310724

Date of filing : 31/07/2024

**INDIAN INCOME TAX RETURN ACKNOWLEDGEMENT**

(Where the data of the Return of Income in Form ITR-1(SAHAJ), ITR-2, ITR-3, ITR-4(SUGAM), ITR-5, ITR-6, ITR-7 filed and verified)

(Please see Rule 12 of the Income-tax Rules, 1962)

Assessee

Vikram

2024

|                                    |                                                                                               |                                 |                 |
|------------------------------------|-----------------------------------------------------------------------------------------------|---------------------------------|-----------------|
| PAN                                | AACAP9411F                                                                                    |                                 |                 |
| Name                               | PVM ASSOCIATES                                                                                |                                 |                 |
| Address                            | Ocean Park Residency, Opp N.I.O. Colony, Dona Paula, Panaji, 19-Maharashtra, 91-INDIA, 403004 |                                 |                 |
| Status                             | AOP/BOI                                                                                       | Form Number                     | ITR-5           |
| Filed u/s                          | 139(1)-On or before due date                                                                  | e-Filing Acknowledgement Number | 296536040310724 |
| Current Year business loss, if any |                                                                                               |                                 |                 |
| Taxable Income and Tax Details     | Total Income                                                                                  | 1                               |                 |
|                                    | Book Profit under MAT, where applicable                                                       | 2                               |                 |
|                                    | Adjusted Total Income under AMT, where applicable                                             | 3                               |                 |
|                                    | Net tax payable                                                                               | 4                               |                 |
|                                    | Interest and Fee Payable                                                                      | 5                               |                 |
|                                    | Total tax, interest and Fee payable                                                           | 6                               |                 |
| Accreted Income and Tax Detail     | Taxes Paid                                                                                    | 7                               |                 |
|                                    | (+) Tax Payable /(-) Refundable (7-8)                                                         | 8                               |                 |
|                                    | Accreted Income as per section 115TD                                                          | 9                               |                 |
|                                    | Additional Tax payable u/s 115TD                                                              | 10                              |                 |
|                                    | Interest payable u/s 115TE                                                                    | 11                              |                 |
|                                    | Additional Tax and interest payable                                                           | 12                              |                 |
|                                    | Tax and interest paid                                                                         | 13                              |                 |
|                                    | (+) Tax Payable /(-) Refundable (13-14)                                                       | 14                              |                 |
|                                    |                                                                                               | 15                              |                 |

Income Tax Return electronically transmitted on 31-Jul-2024 15:22:27 from IP address 175.96.56.56  
 verified by VIKRAM SHAH having PAN AAJP52978N on 20-Aug-2024 using ITR-Verification Form /Electronic Verification Code TG691KRQWI generated through Aadhaar OTP

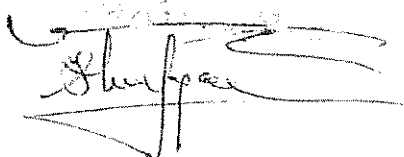
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**DO NOT SEND THIS ACKNOWLEDGEMENT TO CPC, BENGALURU**

"If the return is verified after 30 days of transmission of return data electronically, then date of verification will be considered as the date of filing the return (Notification No.05 of 2022 dated 29-07-2022 issued by the DGIT (Systems), CBDT)."



## RVP ASSOCIATES

Balance Sheet for the year ending 31st March, 2024

|                                | Amount (Rs.) | Amount (Rs.) | Assets                       | Amount (Rs.) | Amount (Rs.) |
|--------------------------------|--------------|--------------|------------------------------|--------------|--------------|
| <b>Current Account</b>         |              |              |                              |              |              |
| Other Current Assets - Capital | 7,897,590    |              | <b>Current Accounts</b>      |              |              |
| Vikram Shah - Capital          | 12,301,250   |              | Revolving Trade - Current    | 6,975,450    |              |
| Vikram Shah - Capital          | 12,301,250   | 32,500,000   | Vikram Shah - Current        | 12,060,662   |              |
|                                |              |              | Muridher Sadarangani-Current | 4,821,958    | 23,858,070   |
| <b>Current Liabilities</b>     |              |              | <b>Investments</b>           |              |              |
| Advance & Deposits             | 22,420,726   |              | Land Cost                    | 33,058,647   |              |
| Sundry Creditors               | 11,800       | 22,432,526   | HDFC - Flexi FD              | 322,676      | 33,381,323   |
| <b>Profit &amp; Loss A/c</b>   |              |              |                              |              |              |
| Opening Balance                |              |              |                              |              |              |
| Current Period                 | 14,021       |              |                              |              |              |
| Less: Transferred              | 12,363       |              | <b>Current Assets</b>        |              |              |
|                                |              |              | Income Tax                   | 125,063      | 125,063      |
| <b>Loans (Liability)</b>       |              |              | Loans & receivable           |              | 908,000      |
| Alka Sadarangani               | 1,110,000    |              | Cash-in-hand                 | 303,300      |              |
| Sharan Sadarangani             | 1,110,000    |              | Bank Accounts                | 76,770       |              |
| Sheela Sadarangani             | 1,000,000    |              |                              |              | 380,070      |
| Kunal Projects Current         | 500,000      | 3,720,000    |                              |              |              |
| <b>Total</b>                   |              | 58,652,526   | <b>Total</b>                 |              | 58,652,526   |

Signature

PVM Associates  
Profit & Loss A/c  
A.Y 2023-24

| Profit & Loss A/c for the year ended 31st March, 2024 |        |                              |        |
|-------------------------------------------------------|--------|------------------------------|--------|
| Particulars                                           | Amount | Particulars                  | Amount |
| To Professional Fees                                  | -      | By Interest on HDFC Flexi FD | 14,080 |
| To Bank Charges                                       | 59     | By Income Tax Refund         | -      |
| To Income Tax AY 22-23                                | -      |                              |        |
| To Net Profit                                         | 14,021 |                              |        |
| Total                                                 | 14,080 |                              | 14,080 |

4880000  
S. K. Jaiswal

A.Y. 2024-2025

Particulars : Pvm Associates  
 Address : Ocean Park Residency  
 Opp N.I.C. Colony  
 Dona Paula, Panaji - 403 004

Previous Year : 2023-24  
 PAN : APCA1234  
 Date of Formation : 01/01/2023  
 Status : AOP (MOP)

Tax w/s 115BAC

## Statement of Income

## Profits and gains of Business or Profession

Rs. P.S. Rs.

Business-1

Net Profit Before Tax as per P &amp; L a/c

Income chargeable under the head "Business and Profession"

## Total Income

Total income rounded off u/s 286A

Tax on total income

Add: Surcharge

Tax with Surcharge

Add: Cess

Tax with surcharge and cess

Balance tax payable

## Schedule 1

18A

4,200

| Surcharge rate | Surcharge | Tax+Surcharge |
|----------------|-----------|---------------|
| 25%            | 1,050     | 5,250         |

## Bank A/c's

## Bank Accounts in India

## Bank Name

Hdfc bank ltd

| Account No.  | IFS Code   | Type of Account |
|--------------|------------|-----------------|
| 502000040143 | HDFC000236 |                 |
| 52           | 8          |                 |

Date : 30-Jul-2024

Place : Panaji

For Pvm Associates

Authorised Signatory



P-7.8

**BEFORE THE HON'BLE SOLE ARBITRATOR, MR.  
NITIN N. SARDESSAI, SR. ADVOCATE, PANAJI GOA**

**IN THE MATTER OF**

Mr. Vikarm Shah  
son of late Chinubhai Manilal Shah,  
aged about 73 years, married,  
businessman, Indian National,  
resident of 28, Capri Building,  
9, Manav Mandir Road,  
Near Teen Batti Walkeshwar,  
Malabar Hill,  
Mumbai – Maharashtra,  
400 006.

**...Claimant**

**Versus**

1. Mr. Riva Trindade  
Major of age, Resident of  
Palbrika Mansion,  
NIO Circle,  
Dona Paula,  
Tiswadi, Goa - 403004;

2. Mrs. Albertina Trindade  
Major of age,  
Resident of Palbrika Mansion,  
NIO Circle, Dona Paula,  
Tiswadi, Goa - 403004;

3. Mrs. Karita Trindade  
Major of age,  
Resident of Palbrika Mansion,  
NIO Circle, Dona Paula,  
Tiswadi, Goa - 403004;

4. Mr. Murilidhar Sadarangani  
Son of Shamdas Jetaram Sadarangani,  
Aged about 55 years,  
Resident of S-3, Edcn Hall,  
Dr. Annie Beasant Road,  
Worli, Mumbai - 400 018.

...Respondents

(all the above are registered addresses of the parties)

**APPLICATION SEEKING INTERIM RELIEFS UNDER**  
**SECTION 17 OF THE ARBITRATION AND**  
**CONCILLATION ACT 1996**

**MAY IT PLEASE YOUR LORDSHIPS**

The Claimant/Applicant above named most respectfully states and submits as under:

1. The Claimant has filed the a Claim against the Respondents in terms of Arbitration Clause of Articles of Association dated 01/04/2013 entered into between the Claimant, the Mr. Pascoal Trindade(Pascôal) and the Respondent No.4 herein.
2. The Claimant states that the Claimant craves leave of this Hon'ble Tribunal to refer and rely upon the averments made in the Statement of Claim and the documents annexed thereto for the purpose of adjudicating on the merits of this Application as if the same were incorporated herein verbatim; repetition of the same is avoided to further burden the docket of this Hon'ble Tribunal.
3. The Claimant states that as set out in the Statement of Claim, the Claimant, Mr. Pascoal Trindade and Mr. Murali

Sadarangi entered into M/s PVM Associates, vide Article of Association dated 01/04/2013 (AOA) in respect of the said properties i.e. Survey Nos. 93/3 and 93/4 of Village Bambolim.

4. A bare perusal of the Article of Association dated 01/04/2013, clearly brings out that the Claimant and Mr. Murali Sadarangi have advanced sums of Rs.71,00,000/- and Rs.68,50,000/- respectively, to Mr. Pascoal Trindade from time to time for the purpose of obtaining various clearances / sanctions / Nocs / license and payment towards Legal and professional charges with respect to the development to be undertaken on the said properties.
5. The Claimant states that the AOA dated 01/04/2013 also categorically records therein that Mr. Trindade, by way of his share of contribution to the Association thereby brought and introduced into the Association the said properties valued at Rs. 3,09,50,000/- and accordingly recorded in the

books of account of the Association. The members agreed that the capital account of Mr. Trindade, shall be credited amount of Rs.1,23,01,250/- and the balance amount of Rs.1,86,48,750/- was credited to the current account of Mr. Trindade. The said properties having been introduced into the Association ceased to remain properties of Mr. Trindade and were now properties of the Association and Trindade would hold the same for and on behalf of the Association.

6. The Claimant states that in accordance with the Agreement dated 25th April 2014, it was the responsibility of Late Mr. Pascoal Trindade and the Claimant to resolve any interferences/dispute by the Villagers in respect of the said properties at their own cost.
7. The Claimant states that Mr. Ram Daryanani, had contacted Late Pascoal Trindade several times to expedite the process of settling the litigation to enable the continuation of the stalled development activities in the said property.

8. The Claimant states that upon and after great persuasion the Claimant, the Late Mr. Pascoal Trindade agreed to settle the disputes raised by Comunidade of Bambolim amicably and requested the Claimant to negotiate the settlement terms with the Comunidade of Bambolim which terms were finally and mutually agreed by the parties concerned and accordingly a consent term draft was prepared and both the parties in the said suit viz. Comunidade of Bambolim and Late pascoal Mr. Trindade along with his wife Mrs. Albertina Trindade put their signatures of approval on the same.

9. The Claimant states that prior to the demise of Mr Pascoal Trindade, he had forwarded the draft of approved consent terms to the Claimant. However due to intervening Covid pandemic and due to the untimely demise of Mr Pascoal Trindade, the same could not be pursued further viz. obtaining various approvals from the Administrator of

Comunidade, Tribunal of Comunidade and Revenue Department Govt. of Goa. The consent terms remained to be filed before the Hon'ble Court.

10. The Claimant states that after untimely demise of Late Mr. Pascoal Trindade, the Claimant and the Respondent No. 4 approached and solicited the co-operation of the Respondent Nos. 1 to 3 as legal representatives of Late Mr. Pascoal Trindade in order to defend the said suit, filling of consent terms. The other stake holders viz. M/s. Kuval projects pvt. Ltd. and M/s. Loonkar Developers Pvt Ltd. also vide their notices dated 22/02/2023 and 29/10 /2022 solicited the support and co-operation of the Respondent Nos. 1 to 3 in lieu of their huge investments in the said properties.

11. The Claimant states that the Respondent Nos. 1 to 3 however, without assigning any reasons whatsoever, despite being the legal heirs and representatives of Late Pascoal

Trindade and in spite of repeated requests and pleas by all the concerned parties, the Respondent Nos. 1 to 3 have neither responded nor come forward to co-operate to either attend or pursue the proceedings pending before the Hon'ble Court nor to sign documents required by intending purchaser.

12.The Claimant states that pursuant to the demise of Mr. Pascoal Trindade, the Respondent No.1 and 2 have been arrayed as parties to the Civil Suit as his legal representatives and heirs.

13.The Claimant states that in October 2020, the Claimant, with the knowledge and consent of the stake holders approached the comunidade of Bambolim seeking an amicable settlement of all the litigations and finalised the draft consent terms and accordingly, vide Letter dated 20/11/2020 addressed by Late Pascoal Trindade and his wife, to the Managing committee of the Comunidade of

Bambolim, a proposal of Settlement was offered in order to compromise all pending litigation and disputes with the Comunidade of Bambolim, the Respondent No.1 has admitted this fact in his deposition before the Hon'ble Civil Court as well.

14.The Claimant states that on the basis of the representation made by the Claimant and Late Mr. Trindade, Loonkar developers Pvt. Ltd. earmarked an area of 5,000 sq. mts. for allotment to the Comunidade of Bambolim for the construction of certain facilities to be used as a recreational and welfare centre for the villagers on mutually agreed terms by and between Loonkar Developers and PVM associates.

15.The Claimant states that vide Letter dated 27/11/2020, addressed by the Legal Representative of the Comunidade of Bambolim certain clarifications were sought in respect of

the terms of settlement and the Comunidade had informally accepted the same.

16. The Claimant states that in response to the letter dated 27/11/2020, the Claimant vide its legal representative addressed a communication dated 02/12/2020 and provided the clarification sought for by the comunidade specifically stating on instructions that Late Mr. Pascoal Trindade and Mrs. Albertina Trindade were ready and willing to execute the consent terms based on the settlement offered.

17. The Claimant states that as the terms of settlement with the Comunidade of Bambolim involves financial implications Late Mr. Pascoal Trindade and the other members of PVM Associates had mutually agreed to sell the property bearing survey no.93/4 to intending purchaser as identified by Late Mr. Pascoal Trindade, to generate the funding required to meet the commitments made vide the consent terms viz payment to Comunidade of Bambolim, payment to M/s.

Loonkar Developers Pvt. Ltd for and towards their allotment of part of their property and towards the construction cost of the football ground/welfare centre at the time of execution of consent terms and accordingly all the members of the consortium, were taken into confidence and their consent was taken in respect of the execution of Consent Terms and the allotment of the areas as required by the Comunidade of Bambolim at a very reasonable valuation. This clearly constituted a binding concluded Agreement which would now bind the Respondent Nos. 1 to 3 as well.

18. The Claimant states that in pursuance of the foregoing, the draft of the consent terms were also forwarded for approval through the Administrative Tribunal and to the Revenue Department, Government of Goa.

19. The Claimant states that owing to the ill health of Late Pascoal Trindade in the later part of the year 2021, and

thereafter his untimely demise, the entire process of obtaining the approvals as required by the Comunidade of Bambolim for the filling of the consent terms in suit bearing no.52/2013A were stalled.

20. The Claimant states that the factual matrix enumerated hereinabove clearly brings out that despite the Late Pascoal Trindade having addressed various communications to the Comunidade of Bambolim and to other authorities, which has been admitted by the Respondent No.1 in his deposition, the Respondent Nos. 1 to 3 have failed and neglected to come forth and render and co-operation for the closure of the proceedings and/or to execute the necessary documentation with respect to the same, which has resulted in the delay of the project and has jeopardised the investment made by the Claimant in the purchase and development of the said properties.

21. The Claimant states that since no one is representing the interest of Late Pascoal Trindade in the Special Civil Suit No. 52/2013/A pending before the Civil Judge Senior Division at Panaji, there is likelihood of an adverse Order being passed affecting the interest of the Claimant and also of that of M/s. Loonkar Developers Pvt. Ltd and M/s. Kuval Projects Pvt. Ltd.

22. The Claimant states that the Hon'ble High Court of Bombay at Goa vide Order dated 18/02/2025 has been pleased to extend the time to decide the Special Civil Suit No. 52/2013/A pending before the Civil Judge Senior Division at Panaji till 31/12/2025; however, the Suit is for Final hearing on 03/03/2025 as is evident from Roznama dated 04/02/2025 of Special Civil Suit No. 52/2013/A.

23. The Claimant states that it is an admitted position that the Respondent Nos. 1 to 3 have also failed to defend the interest of the Claimant and the Respondent No.4 in

proceedings CRVA/43/2019 and case No. CRVA/3/2020 initiated by Comunidade of Bambolim against the development permissions in the properties bearing Survey No. 93/2 and 93/4 of village Bambolim, and solely owing to the default on the part of the Respondent Nos. 1 to 3, the Hon'ble District Court vide order dated 30/10/2023 has been pleased to set aside the order dated 28/11/2019 passed by the Director of Panchayats, Panaji, Goa thereby occasioning huge loss of Rs. 20,00,00,000/- (Rupees Twenty Crores) to PVM associates and further losses to M/s. Kuval Projects Pvt. Ltd who was given the development rights in respect of the said properties and is bound to initiate proceedings against for the recovery of the losses occasioned to them.

24. The Claimant states that it is an admitted position that the Respondent Nos. 1 to 3 have also failed to defend the Civil Revision Application No.41/2018 instituted before the

Hon'ble High Court of Bombay at Goa against Order dated 23/10/2018 passed by the Civil Judge Senior Division in Case No.CRA/2/2016/B directing the holding of an enquiry in respect of the consent terms arrived in Case No.SCS/222/1994, which consent terms are the basis of the title to the said properties. The Hon'ble High Court owing to the non-appearance of the Respondent Nos. 1 and 3 has been pleased to dismiss the same as abated as the Respondent Nos. 1 to 3 have failed to co-operate and get impleaded as the legal heirs of Late Pascoal Trindade.

25. The Claimant therefore is constrained to move the present Application seeking interim reliefs from this Hon'ble Tribunal.

26. Pending hearing and final disposal of the Claim, the Claimant is entitled to an Order appointing the Claimant as a Receiver in respect of the said properties and removing the said properties from the custody of the Respondent Nos.

1 to 3 and committing the same to the custody and management of the Claimant and conferment upon the claimant all powers as to bringing, defending and settlement of suits and for the realisation, management, protection, preservation and improvement of the said properties, and the execution of documents as the owner himself has, or such of those powers as this Hon'ble Tribunal thinks fit.

27. Pending the hearing and final disposal of the Claim, the Claimant is entitled to an Order directing the Respondent Nos. 1 to 3 to deposit before this Hon'ble Tribunal or into an account as directed by this Hon'ble Tribunal an amount of Rs.20 Crores or such further amounts as directed by this Tribunal or to file an Affidavit of their movable and immovable assets before this Hon'ble Tribunal which can be attached by this Hon'ble Tribunal to secure the claim of the Claimant in the present proceedings.

28. Pending the hearing and final disposal of the Claim, the Claimant is entitled to an Order from this Hon'ble Court attaching the said properties on such terms and conditions as this Hon'ble Tribunal deems fit and proper.

29. The Claimant respectfully states and submits that it is evident that the Respondent No.1 to 3 are hell bent to defeat the rights of the Claimant, the Respondent No.4, themselves and also cause loss to M/s. Loonkar Developers Pvt. Ltd and M/s. Kuval Projects Pvt. Ltd. This itself warrants intervention by this Hon'ble Tribunal to protect the legal rights of the Claimant at the ad-interim stage itself.

30. The Claimant respectfully states and submits that the Claimant has clearly established a strong case higher than a prima facie case in its favour and has a great chance to succeed in the present arbitration proceedings.

31. The factual matrix enumerated hereinabove clearly demonstrates that the Balance of Convenience is in favour of the Claimant.

32. The Claimant respectfully submits that the subject matter of the present arbitration is property which is a rare commodity and not an article of ordinary commerce, therefore, the Claimant is likely to suffer irreparable loss if the interim reliefs as claimed for by the Claimant are not granted by this Hon'ble Tribunal.

33. In view of the above, the Claimant humbly prays that

#### **PRAYERS**

- a. This Hon'ble Tribunal be pleased to pass an Order appointing the Claimant as a Receiver in respect of the said properties and removing the said properties from the custody of the Respondent Nos. 1 to 3 and committing the same to the custody and management of the Claimant and conferment upon the claimant all

powers as to bringing, defending and settlement of suits and for the realisation, management, protection, preservation and improvement of the said properties, and the execution of documents as the owner himself has, or such of those powers as this Hon'ble Tribunal thinks fit;

- b. This Hon'ble Tribunal be pleased to direct the Respondent Nos. 1 to 3 to deposit before this Hon'ble Tribunal or into an account as directed by this Hon'ble Tribunal an amount of Rs.20 Crores or such further amounts as directed by this Tribunal or to file an Affidavit of their movable and immovable assets before this Hon'ble Tribunal which can be attached by this Hon'ble Tribunal to secure the claim of the Claimant in the proceedings pending before this Tribunal;

- c. This Hon'ble Tribunal by way of an of Order of Attachment secure the said properties against alienation or creation of any third party rights on such terms and conditions as this Hon'ble Tribunal deems fit and proper;
- d. Ex-parté ad-interim reliefs in terms of prayer clause (a) to (c) above
- e. Any other order or relief in the circumstances of the case.

**Panaji – Goa**

**01.03.2025**

**VIKRAM C. SHAH**

**CLAIMANT**

## AFFIDAVIT IN SUPPORT

I, Vikram Shah, son of Chinubhai Shah, aged 74 years, Indian national and resident of 28, Capri, Manav Mandir Road, Walkeshwar, Mumbai, the Applicant herein, do hereby on solemn oath state as under:—

1. I say that I have read and understood the contents of the accompanying Application seeking interims reliefs and accordingly affirm the contents of the foregoing paragraphs 1 to 25, 29(part), 30(part), 31(part), 32(part) of the present Application to be true and correct to my knowledge as well as on the basis of the record available with me, whereas the contents of remaining paragraphs is based on legal advice which I believe to be true.

I say that the foregoing paragraph is true and correct.

Solemnly affirmed at Mumbai

on this \_\_\_\_\_ day of February, 2025.

Deponent



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ANNEXURE A

AOP AGREEMENT DATED 17/09/2006

ANNEXURE B

SALE DEED DATED 30/03/2007

ANNEXURE C

SALE DEED DATED 10/11/2020

ANNEXURE D

FINAL COPY OF BALANCE SHEET AS ON 31/03/2022

ANNEXURE E

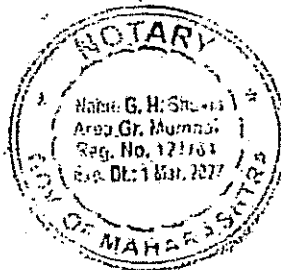
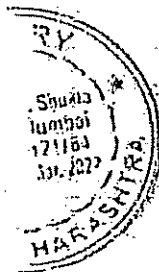
FINAL COPY OF BALANCE SHEET AS ON 31/03/2023

ANNEXURE F

FINAL COPY OF BALANCE SHEET AS ON 30/06/2023

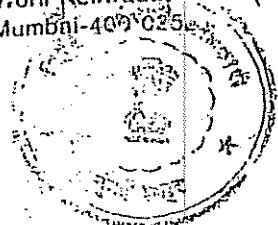
ANNEXURE G

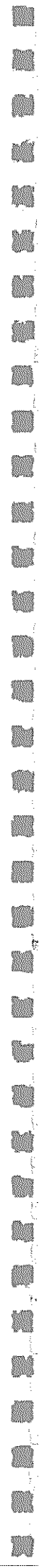
WORKING OF THE CAPITAL GAIN TAX PAYABLE



CERTIFIED TRUE COPY

H. B. NAMDARIAN (IRANI)  
Sindhi Sadhera Chawl,  
157, Worli Koliwada,  
Worli, Mumbai-400 025





*Ignore*  
*as filed*  
*twice*

**BEFORE THE HON'BLE SOLE ARBITRATOR, MR.  
NITIN N. SARDESSAI, SR. ADVOCATE, PANAJI GOA**

**IN THE MATTER OF**

Mr. Vikarm Shah  
son of late Chinubhai Manilal Shah,  
aged about 73 years, married,  
businessman, Indian National,  
resident of 28, Capri Building,  
9, Manav Mandir Road,  
Near Teen Batti Walkeshwar,  
Malabar Hill,  
Mumbai – Maharashtra,  
400 006.

**...Claimant**

**Versus**

1. Mr. Riva Trindade  
Major of age, Resident of  
Palbrika Mansion,  
NIO Circle,  
Dona Paula,  
Tiswadi, Goa - 403004;

2. Mrs. Albertina Trindade  
Major of age,  
Resident of Palbrika Mansion,  
NIO Circle, Dona Paula,  
Tiswadi, Goa - 403004;

3. Mrs. Karita Trindade  
Major of age,  
Resident of Palbrika Mansion,  
NIO Circle, Dona Paula,  
Tiswadi, Goa - 403004;

4. Mr. Murilidhar Sadarangani  
Son of Shamdas Jetaram Sadarangani,  
Aged about 55 years,  
Resident of S-3, Edcn Hall,  
Dr. Annie Beasant Road,  
Worli, Mumbai - 400 018.

...Respondents

(all the above are registered addresses of the parties)

**APPLICATION SEEKING INTERIM RELIEFS UNDER**  
**SECTION 17 OF THE ARBITRATION AND**  
**CONCILLATION ACT 1996**

**MAY IT PLEASE YOUR LORDSHIPS**

The Claimant/Applicant above named most respectfully states and submits as under:

1. The Claimant has filed the a Claim against the Respondents in terms of Arbitration Clause of Articles of Association dated 01/04/2013 entered into between the Claimant, the Mr. Pascoal Trindade(Pascoal) and the Respondent No.4 herein.
2. The Claimant states that the Claimant craves leave of this Hon'ble Tribunal to refer and rely upon the averments made in the Statement of Claim and the documents annexed thereto for the purpose of adjudicating on the merits of this Application as if the same were incorporated herein verbatim; repetition of the same is avoided to further burden the docket of this Hon'ble Tribunal.
3. The Claimant states that as set out in the Statement of Claim, the Claimant, Mr. Pascoal Trindade and Mr. Murali

Sadarangi entered into M/s PVM Associates, vide Article of Association dated 01/04/2013 (AOA) in respect of the said properties i.e. Survey Nos. 93/3 and 93/4 of Village Bambolim.

4. A bare perusal of the Article of Association dated 01/04/2013, clearly brings out that the Claimant and Mr. Murali Sadarangi have advanced sums of Rs.71,00,000/- and Rs.68,50,000/- respectively, to Mr. Pascoal Trindade from time to time for the purpose of obtaining various clearances / sanctions / Nocs / license and payment towards Legal and professional charges with respect to the development to be undertaken on the said properties.
5. The Claimant states that the AOA dated 01/04/2013 also categorically records therein that Mr. Trindade, by way of his share of contribution to the Association thereby brought and introduced into the Association the said properties valued at Rs. 3,09,50,000/- and accordingly recorded in the

books of account of the Association. The members agreed that the capital account of Mr. Trindade, shall be credited amount of Rs.1,23,01,250/- and the balance amount of Rs.1,86,48,750/- was credited to the current account of Mr. Trindade. The said properties having been introduced into the Association ceased to remain properties of Mr. Trindade and were now properties of the Association and Trindade would hold the same for and on behalf of the Association.

6. The Claimant states that in accordance with the Agreement dated 25th April 2014, it was the responsibility of Late Mr. Pascoal Trindade and the Claimant to resolve any interferences/dispute by the Villagers in respect of the said properties at their own cost.
7. The Claimant states that Mr. Ram Daryanani, had contacted Late Pascoal Trindade several times to expedite the process of settling the litigation to enable the continuation of the stalled development activities in the said property.

8. The Claimant states that upon and after great persuasion the Claimant, the Late Mr. Pascoal Trindade agreed to settle the disputes raised by Comunidade of Bambolim amicably and requested the Claimant to negotiate the settlement terms with the Comunidade of Bambolim which terms were finally and mutually agreed by the parties concerned and accordingly a consent term draft was prepared and both the parties in the said suit viz. Comunidade of Bambolim and Late pascoal Mr. Trindade along with his wife Mrs. Albertina Trindade put their signatures of approval on the same.
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Comunidade, Tribunal of Comunidade and Revenue Department Govt. of Goa. The consent terms remained to be filed before the Hon'ble Court.

10. The Claimant states that after untimely demise of Late Mr. Pascoal Trindade, the Claimant and the Respondent No.4 approached and solicited the co-operation of the Respondent Nos. 1 to 3 as legal representatives of Late Mr. Pascoal Trindade in order to defend the said suit, filling of consent terms. The other stake holders viz. M/s. Kuval projects pvt. Ltd. and M/s. Loonkar Developers Pvt Ltd. also vide their notices dated 22/02/2023 and 29/10 /2022 solicited the support and co-operation of the Respondent Nos. 1 to 3 in lieu of their huge investments in the said properties.

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Trindade and in spite of repeated requests and pleas by all the concerned parties, the Respondent Nos. 1 to 3 have neither responded nor come forward to co-operate to either attend or pursue the proceedings pending before the Hon'ble Court nor to sign documents required by intending purchaser.

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Bambolim, a proposal of Settlement was offered in order to compromise all pending litigation and disputes with the Comunidade of Bambolim, the Respondent No.1 has admitted this fact in his deposition before the Hon'ble Civil Court as well.

14.The Claimant states that on the basis of the representation made by the Claimant and Late Mr. Trindade, Loonkar developers Pvt. Ltd. earmarked an area of 5,000 sq. mts. for allotment to the Comunidade of Bambolim for the construction of certain facilities to be used as a recreational and welfare centre for the villagers on mutually agreed terms by and between Loonkar Developers and PVM associates.

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20. The Claimant states that the factual matrix enumerated hereinabove clearly brings out that despite the Late Pascoal Trindade having addressed various communications to the Comunidade of Bambolim and to other authorities, which has been admitted by the Respondent No.1 in his deposition, the Respondent Nos. 1 to 3 have failed and neglected to come forth and render and co-operation for the closure of the proceedings and/or to execute the necessary documentation with respect to the same, which has resulted in the delay of the project and has jeopardised the investment made by the Claimant in the purchase and development of the said properties.

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25. The Claimant therefore is constrained to move the present Application seeking interim reliefs from this Hon'ble Tribunal.

26. Pending hearing and final disposal of the Claim, the Claimant is entitled to an Order appointing the Claimant as a Receiver in respect of the said properties and removing the said properties from the custody of the Respondent Nos.

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33.In view of the above, the Claimant humbly prays that

#### **PRAYERS**

- a. This Hon'ble Tribunal be pleased to pass an Order appointing the Claimant as a Receiver in respect of the said properties and removing the said properties from the custody of the Respondent Nos. 1 to 3 and committing the same to the custody and management of the Claimant and conferment upon the claimant all

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- b. This Hon'ble Tribunal be pleased to direct the Respondent Nos. 1 to 3 to deposit before this Hon'ble Tribunal or into an account as directed by this Hon'ble Tribunal an amount of Rs.20 Crores or such further amounts as directed by this Tribunal or to file an Affidavit of their movable and immovable assets before this Hon'ble Tribunal which can be attached by this Hon'ble Tribunal to secure the claim of the Claimant in the proceedings pending before this Tribunal;

- c. This Hon'ble Tribunal by way of an of Order of Attachment secure the said properties against alienation or creation of any third party rights on such terms and conditions as this Hon'ble Tribunal deems fit and proper;
- d. Ex-parté ad-interim reliefs in terms of prayer clause (a) to (c) above
- e. Any other order or relief in the circumstances of the case.

**Panaji – Goa**

**01.03.2025**

**VIKRAM C. SHAH**

**CLAIMANT**

## AFFIDAVIT IN SUPPORT

I, Vikram Shah, son of Chinubhai Shah, aged 74 years, Indian national and resident of 28, Capri, Manav Mandir Road, Walkeshwar, Mumbai, the Applicant herein, do hereby on solemn oath state as under:—

1. I say that I have read and understood the contents of the accompanying Application seeking interims reliefs and accordingly affirm the contents of the foregoing paragraphs 1 to 25, 29(part), 30(part), 31(part), 32(part) of the present Application to be true and correct to my knowledge as well as on the basis of the record available with me, whereas the contents of remaining paragraphs is based on legal advice which I believe to be true.

I say that the foregoing paragraph is true and correct.

Solemnly affirmed at Mumbai

on this \_\_\_\_\_ day of February, 2025.

Deponent



## ANNEXURE A

AOP AGREEMENT DATED 17/09/2006

## ANNEXURE B

SALE DEED DATED 30/03/2007

## ANNEXURE C

SALE DEED DATED 10/11/2020

## ANNEXURE D

FINAL COPY OF BALANCE SHEET AS ON 31/03/2022

## ANNEXURE E

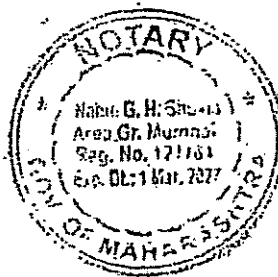
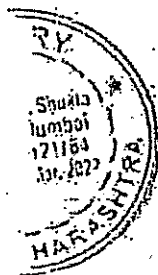
FINAL COPY OF BALANCE SHEET AS ON 31/03/2023

## ANNEXURE F

FINAL COPY OF BALANCE SHEET AS ON 30/06/2023

## ANNEXURE G

WORKING OF THE CAPITAL GAIN TAX PAYABLE



CERTIFIED TRUE COPY

H. B. NAMDARIAN (IRANI)  
Sindhi Sadhera Chawl,  
157, Worli Koliwada,  
Worli, Mumbai-400 025

